

The TEXICAN



DANE COOLIDGE

The
TEXICAN



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THE TEXICAN

BY THE SAME AUTHOR

HIDDEN WATER. With four illustrations in color by
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CHICAGO



The calf was like its mother, but she, on account of her brand and ear-marks, held the entire attention of the Texan

[Chapter IV]

THE TEXICAN

BY
DANE COOLIDGE

AUTHOR OF "HIDDEN WATER"

WITH ILLUSTRATIONS IN COLOR BY
MAYNARD DIXON



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A. C. McCLURG & CO.
1911

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TO MY OLD FRIEND
DANE COOLIDGE
WHO HAS STAYED WITH ME THROUGH ALL MY TROUBLES
THIS BOOK IS AFFECTIONATELY DEDICATED BY
THE AUTHOR

"Oh, out from old Missouri
I set me forth to roam
Indicted by a jury
For toling hawgs from home.

"With faithful Buck and Crowder
I crossed the Western plains
Then turned them loose in the Cow-Country
And waited for my gains.

"And now I'm called a Cattle King
With herds on many a stream—
And all from the natural increase
Of that faithful old ox-team."
The Song of Good-Eye.

CONTENTS

CHAPTER		PAGE
I	<u>VERDE CROSSING</u>	11
II	<u>GOOD EYE, THE MAVERICK KING</u>	22
III	<u>THE DOUBLE CROSS</u>	32
IV	<u>THE SHOW-DOWN</u>	46
V	<u>LOST DOG CAÑON</u>	60
VI	<u>"THE VOICE OF REASON</u>	74
VII	<u>THE REVOLUTION</u>	90
VIII	<u>THE DAY AFTER</u>	105
IX	<u>DEATH AND TAXES</u>	123
X	<u>STAMPEDED</u>	142
XI	<u>THE CATTLE WAR</u>	156
XII	<u>MOUNTAIN LAW</u>	173
XIII	<u>WELCOME HOME</u>	183
XIV	<u>THE KANGAROO COURT</u>	196
XV	<u>THE REVOLUTION IN FACT</u>	216
XVI	<u>BACK TO NATURE</u>	238
XVII	<u>THE POWER OF THE PRESS</u>	255
XVIII	<u>THE LAW'S DELAY</u>	278
XIX	<u>THE LAST CHANCE</u>	295
XX	<u>THE LAW AND THE EVIDENCE</u>	318
XXI	<u>NEVER AGAIN</u>	355

ILLUSTRATIONS

	PAGE
<u>The calf was like its mother, but she, on account of her brand and ear-marks, held the entire attention of the Texan</u>	<i>Frontispiece</i>
<u>Pecos's ever-ready pistol was out and balanced in his hand</u>	58
<u>As the rout went by Angy saw Pecos, tied to his horse, his arms bound tight to his sides</u>	189
<u>"You will turn this jail into a hog-waller, will you?" he demanded</u>	253
<u>She laid a brown hand against the bars as if in protest and motioned him nearer the screen</u>	313

THE TEXICAN

CHAPTER I

VERDE CROSSING

THE languid quiet of midday lay upon the little road-house that stood guard by Verde Crossing. Old Crit and his wild Texas cowboys had left the corral at dawn, riding out mysteriously with their running irons in their chaps; the dogs had crawled under José Garcia's house and gone to sleep; to the north the Tonto trail stretched away vacant and only the brawling of the Verde as it rushed over the rocky ford suggested the savage struggle that was going on in the land. Within the adobe fort that served for both store and saloon Angevine Thorne, Old Crit's roustabout, sat tipped back in his chair breathing thoughtfully through a mouth-organ while a slender Mexican girl, lingering by the doorway, listened in childish adoration.

"Oyez, Babe," she pleaded, lisping in broken English, "sing 'Work iss Done' for me, *otra vez*, once more."

"Yore maw will be singin' a different tune if you don't hurry home with that lard," counselled Babe, but seeing that she was in no mood to depart he cleared his throat to sing. "You don't know how bad this makes me feel, Marcelina," he said, rubbing his hand over his bald spot and smoothing down his lank hair, "but I'll sing you the first verse—it ain't so bad." He stood up and turned his eyes to heaven; a seraphic smile came into his face, as if he saw the angels, and in a caressing tenor voice he began:—

"A jolly group of cowboys, discussing their plans one day
When one says, 'I will tell you something, boys, before I'm gone away.
I am a cowboy as you see, although I'm dressed in rags.
I used to be a wild one, a-taking on big jags.
I have a home, boys, a good one, you all know,
Although I have not seen it since long ago.
I am going back to Dixie, once for to see them all;
I am going back to Dixie to see my mother when work is done this Fall.

"After the round-ups are over, after the shipping is all done,
I am going to see my mother before my money is all gone.
My mother's heart is breaking, breaking for me, and that's all.
And with God's help I will see her when work is done this Fall."

A pause followed his last words and the singer limped in behind the counter. "Well, that's all, now," he said, waving her away, "go on home, child—can't you see it makes me feel powerful bad?"

The girl smiled with the sweet melancholy of her race. "I like to feel bad," she said. "Sing about the wind."

Angevine Thorne looked down upon her and shook his head sadly. "Ah, Marcelina," he said, "you are growing up to be a woman." Then he sighed and began again:—

"That very same night this poor cowboy went out to stand his guard.
The wind was blowing fiercely and the rain was falling hard.
The cattle they got frightened and ran in a mad stampede.
Poor boy, he tried to head them while riding at full speed.
Riding in the darkness so loudly he did shout,
A-trying to head the cattle, a-trying to turn them about,
When his saddled night-horse stumbled and upon him did fall.
Now the poor boy will not see his mother when work is done this Fall."

"And now the rest—how he died," breathed Marcelina, and once more the troubadour smiled.

"We picked him up so gently and laid him on his bed,
A-standing all around the poor cowboy, a-thinking he was dead,
When he opened wide his blue eyes, looked around and said:
'Boys, I think those are the last steers I shall ever head.
So Bill, you take my saddle, and Charley, you take my bed,
And George, you take my six-shooter and be sure that I am dead.
I am going to a new range, for I hear my Master's call,
And will not see my aged mother when work is done this Fall.

"After the round-ups were over, after the shipping was all done,
I was going to see my mother before my money was all gone.
My mother's heart is breaking, breaking for me and that's all,
And if God had spared my absence I would have seen her
When work was done this Fall."

A rapt silence, such as artists love, followed the last wailing cadence of the song; the stillness of the desert crept in upon them, broken only by the murmur of the river and an almost subterranean thud of hoofs; then with a jingle of spurs and the creaking of wet leather a horseman rode up and halted before the door. The water sloshed in his boots as he dismounted but he swung into the store with the grace of a cavalier—a young man, almost a boy, yet broad-shouldered and muscular, with features moulded to an expression of singular resolution and courage. A heavy pair of apron chaps—sure sign of Texas—cumbered his limbs and the wooden handle of a Colts forty-five showed above its holster in the right leg; for the rest, he wore a new jumper over his blue shirt, and a broad, high-crowned hat, without frills. As the stranger headed for the bar with business-like directness Angevine Thorne felt a sudden sense of awe, almost of fear, and he wondered for the instant if it was a hold-up; but the Texan simply dropped a quarter on the counter and motioned to a bottle.

"Two," he corrected, as Babe filled a single glass; and, shoving the second one towards his host, who eyed it with studied unconcern, the cowboy tossed off his own and looked around.

"What's the matter?" he inquired, as Babe moved thoughtfully away; "swore off? All right, you drink the chaser, then," and leaving the superfluous glass of water on the bar he drank the whiskey himself.

"Ughr! That's the real old tarantula-juice," he observed, as the fiery liquor made him shudder. "Since when did you swear off?"

"Six weeks," responded Babe, shortly. "How's Texas?"

"All right," replied the cowboy. "Did it git away with you?"

"Yep," returned the bar-keeper. "Don't like to talk about it—say, is they anybody left in Texas?"

The stranger gazed at him shrewdly for a moment, and a grim light came into his eye.

"Don't like to talk about it," he said, "but now you speak of it I know of one feller, for sure—and dam' badly left, too. May be around on crutches by now." He glanced out at his horse, which had just shaken itself under the saddle, and let his gaze wander to Marcelina.

"Pretty girls you have in this country," he remarked, turning a little sidewise to Babe, but watching her from beneath his hat. "Don't speak any English, I suppose?"

"Nope," replied Babe, sullenly, "her mother don't like cowboys. *Oyez, Marcelina, vaya se a su madre, chiquita!*" But though her mother was calling, the wilful Marcelina did not move. Like an Aztec princess she stood silent and impassive, gazing out from beneath her dark lashes and waiting to catch some further word of praise from this dashing stranger. Undoubtedly, Marcelina was growing to be a woman.

"Name's Marcelina, eh?" soliloquized the cowboy, innocently. "Pity she can't savvy English—she's right pretty, for a Mex."

At that last unconscious word of derogation the regal beauty of Marcelina changed to a regal scorn and flashing her black eyes she strode towards the door like a tragic queen.

"*Gr-ringo!*" she hissed, turning upon him in the doorway, and seizing upon her pail of lard she scampered up the trail.

"Hell's fire!" exclaimed the *Tehanno*. "Did she understand what I said?"

"That's what," replied Babe, ungraciously, "you done queered yourself with her for life. She won't stand for nothin' against her people."

"Huh!" grumbled the newcomer, "that's what comes from drinkin' yore pisen whiskey. I begin to savvy now, Pardner, why you passed up that sheep-herder dope and took water."

He grinned sardonically, making a motion as of a pin-wheel twirling in his head, but the bar-keeper did not fall in with his jest. "Nothin' of the kind," he retorted. "W'y, boy, I could drink that whole bottle and walk a tight rope. I guess you don't know me—I'm Angevine Thorne, sometimes known as 'Babe'!" He threw out his chest, but the cowboy still looked puzzled.

"Did you come through Geronimo," inquired Babe, returning to the attack, "and never heard of me? Well then, Pardner, I'll have to put you wise—I'm Angevine Thorne, the Champion Booze-fighter of Arizona!" He dropped back to his pose and the cowboy contemplated him with grave curiosity.

"Mr. Thorne," he said, holding out his hand, "my name is Dalhart—Pecos Dalhart, from Texas—and I'm proud to make your acquaintance. Won't you have a drink on the strength of it?"

"Thank you just as much," replied Mr. Thorne, affably, "but I've sworn off. I've been the greatest booze-fighter of Arizona for twenty years, but I've sworn off. Never, never, will I let another drop of liquor pass my lips! I have been sentenced to the Geronimo jail for life for conspicuous drunkenness; I have passed my days in riotous living and my nights in the county jail, but the love of a good mother has followed me through it all and now I am going to quit! I'm saving up money to go home."

"Good for you," commented Pecos Dalhart, with the good-natured credulity which men confer upon drunkards, "stay with it! But say, not to change the subject at all, where can I git something to eat around here? I'm ganted down to a shadder."

"You're talkin' to the right man, son," returned Babe, hustling out from behind the bar. "I'm one of the best round-up cooks that ever mixed the sour-dough—in fact, I'm supposed to be cookin' for Crit's outfit right now and he just saws this bar-keep job off on me between times, so's to tempt me and git my money—when I git drunk, you savvy. He's a great feller, Old

Crit—one of the boys up the river has got a penny Crit passed off on him in the dark for a dime and he swears to God that pore Injun's head is mashed flat, jest from bein' pinched so hard. Pinch? W'y, he's like a pet eagle I had one time—every time he lit on my arm he'd throw the hooks into me—couldn't help it—feet built that way. An' holler! He'd yell *Cree* so you c'd hear him a mile if anybody tried to steal his meat. Same way with Crit. Old Man Upton over here on the Tonto happened to brand one of his calves once and he's been hollerin' about that maverick ever since. You've heard of this war goin' on up here, hain't you? Well that's just Old Crit tryin' to git his revenge. If he's burnt one U calf he's burnt a thousand and they ain't cowboys enough in Texas to hold up his end, if it ever comes to fightin'. This here is the cow-camp—throw yore horse in the corral over there and I'll cook up a little chuck—jest about to eat, myse'f."

CHAPTER II

GOOD EYE, THE MAVERICK KING

ANGEVINE THORNE was still talking mean about his boss when the cowboys came stringing back from their day's riding, hungry as wolves. At the first dust sign in the northern pass the round-up cook had piled wood on the fire to make coals and as the iron-faced punchers rode up he hammered on a tin plate and yelled:—

"Grub pile! Come a-runnin'!"

They came, with the dirt of the branding still on their faces and beards and their hands smeared with blood. Each in turn glanced furtively at Pecos Dalhart, who sat off at one side contemplating the landscape, grabbed a plate and coffee cup and fell to without a word. Last of all came Isaac Crittenden, the Boss, tall, gaunt, and stooping, his head canted back to make up for the crook in his back and his one good eye roving about restlessly. As he rode in, Pecos glanced up and nodded and then continued his industry of drawing brands in the dust. The Boss, on his part, was no more cordial; but after the meal was finished he took another look at the newcomer, spoke a few words with the cook, and strolled over for a talk.

"Howdy, stranger," he began, with a quick glance at the brands in the sand; "travellin' far?"

"Nope," responded Pecos, "jest up the trail a piece."

A shadow crossed the Boss's face—Upton's was "up the trail a piece"—but he did not follow that lead.

"Know any of them irons?" he inquired, pointing to the sand-drawings, which represented half the big brands between the Panhandle and the Gila.

"Sure thing," replied the cowboy, "I've run 'em."

"And burnt 'em, too, eh?" put in Crittenden, shrewdly; but Pecos Dalhart was not as young as he looked.

"Not on your life," he countered, warily, "that don't go where I come from."

"Of course not, of course not," assented the cowman, instantly affecting a bluff honesty, "and it don't go here, neither, if any one should inquire. A man's brand is his property and he's got a right to it under the law. I've got a few cows here myself—brand IC on the ribs—and I'd like to see the blankety-blank that would burn it. I'd throw 'em in the pen, if it was the last act. Where you travellin'?"

He jerked this out as a sort of challenge, and the cowboy rose to his feet.

"Upton's," he said briefly.

"Upton's!" repeated Crittenden, "and what do you figure on doin' up there?"

"Well, I heard he was a good feller to work for—thought I'd take on for a cow hand."

Pecos stated the proposition judicially, but as he spoke he met the glowering glance of Crittenden with a cold and calculating eye. The cattle-stealing war between John Upton of Tonto Basin and Old Crit of Verde Crossing was no secret in Arizona, though the bloody Tewkesbury-Graham feud to the north took away from its spectacular interest and reduced it to the sordid level of commercialism. It was, in fact, a contest as to which could hire the nerviest cowboys and run off the most cattle, and Pecos Dalhart knew this as well as Isaac Crittenden. They stood and glared at each other for a minute, therefore, and then Old Crit broke loose.

"Whoever told you that John Upton is a good feller is a liar!" he stormed, bringing his fist down into his hand. "He's jest a common, low-down cow-thief, as I've told him to his face; and a man that will steal from his friends will do anything. Now, young man, before we go any farther I want to tell you what kind of a reptile John Upton is. Him and me run our cattle over in Tonto Basin for years, and if we'd ever have any question about a calf or a *orehanna* I'd always say, 'Well, take 'im, John,' jest like that, because I didn't want to have no racket with a friend. But they's some people, the more you give in to 'em the more they run it over you, and they come a day when I

had to put my foot down and say, 'No, that calf is mine,' and I put my iron on 'im right there. Now that calf was mine, you understand, and I branded him IC on the ribs, in the corral and before witnesses, accordin' to law, but about a week afterward when I come across that critter, John Upton had run a big U after my brand, makin' it ICU. Well, you may laugh, but that's no kind of a joke to play on a friend and I jest hopped down off'n my horse and run a figger 2 after it, making it ICU2; and about the time John Upton gits his funny ICU brand in the book I goes down and registers ICU2, goin' him one better. Now that's carryin' a joke pretty far, and I admit it, but Upton wasn't funnin'; that crooked-nose dastard had set out to steal my cows from the start and, seein' I'd euchered him on the ICU racket he went ahead and slapped a big J in front of my IC iron, and began branding my cows into what he called his Jay-Eye-See brand. Well, that settled it. I'm an honest man, but when a man steals cows from me I don't know any way to break even in this country but to steal back, and while he was putting his J's on my IC critters I jumped in and put IC2's on his U's until he was ready to quit. He's *afraid* to burn my brand now—he dassent do it—and so he's beginnin' to squeal because I've got 'im in the door; but say—" he beckoned with his head—"come over here by the corral, I want to talk to you."

Throughout this long tale of woe Pecos Dalhart had shown but scant interest, having heard it already, with variations, from Babe. According to that faithless individual Old Crit would steal fleas from a pet monkey and skin them for the hide and tallow; his favorite pastime, outside of cattle-rustling, being to take on cowboys and then hold out their pay, a rumor which caused Pecos Dalhart to regard him warily.

"Now say," began the Boss of Verde Crossing, as soon as they were out of hearing, "you don't need to go to that hoss-thief Upton in order to git a job. I'm always lookin' for the right kind of man, myself. Have you had any experience at this kind of thing?" He went through the dexterous pantomime of burning a brand through a blanket, but the cowboy only turned away scornfully.

"If I had I'd never be dam' fool enough to talk about it," he said.

"Oho!" observed Crit, rubbing the side of his nose slyly, "you're travelling for your health, are you?"

"No!" snarled the Texan. "The only people that are lookin' for me are tryin' to keep away from me, so you don't need to work that auger any deeper. Now, Mr. Crittenden, I'm a man of few words—what can I do for you?"

"We-ell," began the cowman, and once more he paused to meditate.

"Since you inquire," continued the cowboy, "I don't mind tellin' you that I'm travellin' for excitement—and to grab some money. If you've got any proposition that might appeal to me, spit it out—if not, they's no harm done."

"Well, wait a minute!" cried Old Crit, peevishly.

"My time's valuable," observed Pecos, sententiously. "You can trust me as good as I can trust you—mebby better. I don't hear nobody accuse you of being sure pay, but if I take your job I want you to remember that I draw my money at the end of every month or else I collect and quit. Now if you can jar that proposition out of your system, I'll listen to it."

"I guess you'll do," said the cowman, as if quieting his own misgivings. "I've got a little special work that I want done on the quiet, markin' over some cows and calves. The man that does it will have to hide out up in that rough country and I'll pay him—forty dollars."

"Eighty," said the Texan.

"W'y, I'm only payin' my round-up hands thirty," protested Crittenden, weakly; "I'll give you fifty, though."

"Eighty, cash," said the cowboy. "You'll make that on the first ten calves."

"Sixty!" pleaded Crit.

"I want my money in my hand at the end of every month," added Pecos, and then there was a silence.

"All right," grumbled the cowman, at last, "but you understand I expect something to show for all that money. Now I want you to go around the corner thar like you was mad, 'n' saddle up and ride on, like you was goin' to Upton's. Then when it comes night I want you to ride back and camp out there by that big ironwood over against the mesa. As soon as me and the

boys are out of sight in the mornin' my Mexican, Joe Garcia, will come out to you with some grub and take you over to Carrizo Springs, and I want you to *stay* there as long as I keep driftin' U cows in over the Peaks. Now look—here's your job—I want you to burn every one of them Upton cows over into a Wine-glass"—he made the figure **U** in the sand—"and run it on the calves. Savvy? Well, git, then, and remember what I said about lookin' mad—I don't want my punchers to git onto this!"

CHAPTER III

THE DOUBLE CROSS

A MONTH passed, drearily; and while Ike Crittenden and his punchers gathered U cows on one side of the Four Peaks and shoved them over the summit Pecos Dalhart roped them as they came in to Carrizo Springs for water and doctored over their brands. The boys were following in the wake of Upton's round-up and the brands on the calves were freshly made and therefore easy to change, but it called for all of Pecos's professional skill to alter the cow brands to match. In order not to cause adverse comment it is necessary that the cow and calf shall show the same mark and since the mother's brand was always old and peeled Pecos called into requisition a square of wet gunny-sack or blanket to help give the antique effect. Spreading this over the old U he retraced the letter through it with a red-hot iron and then extended the brand downward until it formed a neat Wine-glass (W), scalded rather than seared into the hair. Such a brand would never look fresh or peel, though it might grow dim with years, and after working the ear-marks over on cow and calf the transformation was complete. But while the results of his labor was a fine little bunch of Wine-glass cows hanging around Carrizo Springs, to Pecos himself, tying a knot in a buckskin string to count off each weary day, the month seemed interminable.

There was a sound of music in the store as he rode into Verde Crossing and he spurred forward, eager for the sight of a human face and a chance to sit down and talk. But at the thud of hoofs and the chink of spurs Angevine Thorne brought his song to an untimely close and, as Pecos dismounted, Marcelina Garcia slipped out through the door and started towards home, favoring him in passing with a haughty stare.

"Good-morning, Mex!" he exclaimed, bowing and touching his heart in an excess of gallantry, "fine large day, ain't it?"

"*Gringo!*" shrilled Marcelina, flaunting her dark hair, "*Pendejo Texano!* Ahhr!" She shuddered and thrust out her tongue defiantly, but as the "fool

Texan" only laughed and clattered into the store she paused and edged back towards the door for further observations.

"W'y, hello, Angy!" cried Pecos, racking jovially up to the bar, "how's the champeen? Sober as a judge, hey? Well, gimme another shot of that snake-pisen and if it don't kill me I may swear off too, jest to be sociable! Say, what does 'pendayho' mean?" He glanced roguishly back towards the door, where he knew Marcelina was listening, and laughed when he got the translation.

"Dam' fool, hey? Well, I thought it was something like that—kinder p'lite and lady-like, you know. Marcelina hung that on me as I come in, but I called her a Mex and I'll stand by it. Where's Old Crit?"

Angevine Thorne drew himself up and regarded the cowboy with grave displeasure.

"Mr. Crittenden is out riding," he said, "and I'll thank you not to refer to the nativity of my friend, Miss Garcia."

"Certainly not—to be sure!" protested Pecos Dalhart. "If you will jest kindly give me an introduction to the young lady I'll—"

"See you in hell first," broke in Angy, with asperity. "Where you been all the time?"

"Ramblin' around, ramblin' around," answered Pecos, waving his hand vaguely. "What's the chances for a little music and song to while the time away? I'm lonely as a dog."

"Joe Garcia tells me he's been packin' grub out to you at Carrizo—what you been doin' in that God-forsaken hole?"

"Yore friend Joe talks too much," observed Pecos, briefly, "and I reckon *you* tell everything you know, don't you? Well and good, then, I'll keep you out of trouble with the Boss by listenin' to what you know already. Can you sing the 'Ranger,' or 'California Joe'? No? Can't even sing 'Kansas,' can you? Well, it's too bad about you, but I'm going to show you that they's another canary bird on the Verde, and he can sure sing." With this declaration Pecos

leaned back against the bar, squared his shoulders, and in a voice which had many a time carolled to a thousand head of cattle burst into a boastful song.

"Ooh, I can take the wildest bronco
Of the wild and woolly West;
I can back him, I can ride him,
Let him do his level best.
I can handle any creature
Ever wore a coat of hair,
And I had a lively tussle
With a tarnal grizzly bear."

He glanced slyly towards the door, threw out his chest, and essayed once more to attract the attention of his girl, if she was anywhere within a mile.

"Ooh, I can rope and tie a long-horn,
Of the wildest Texas brand,
And in any disagreement,
I can play a leading hand.
I—"

A dark mass of hair shading a pair of eyes as black and inquisitive as a chipmunk's appeared suddenly in the vacant square of the doorway and instantly the bold cowboy stopped his song.

"Good-morning, Miss Garcia," he said, bowing low, "won't you come in—now, Angy, do your duty or I'll beat you to death!" At this hasty aside Angevine Thorne did the honors, though with a bad grace.

"Marcelina, this is Mr. Dalhart—you better go home now, your mother's callin' you."

"I will not shake hands with a *Texano*!" pronounced Marcelina, stepping into the open and folding her arms disdainfully.

"Come on in then and hear the music," suggested Pecos, peaceably.

"Pah! The *Tehannos* sing like coyotes!" cried Marcelina, twisting up her lips in derision. "They are bad, bad men—*mi madre* say so. No, I go home—and when you are gone Babe will sing *sweet* moosic for me." She bowed, with a little smile for Babe, and glided through the doorway; and though he lingered about until Old Crit came in, Pecos Dalhart failed to catch another glimpse of this new queen of his heart.

It was dusk when Crittenden rode into camp, and at sight of Pecos Dalhart sitting by the fire the cowman's drawn face, pinched by hunger and hard riding, puckered up into a knot.

"What you doin' down here?" he demanded, when he had beckoned him to one side.

"Come down for my pay," responded the cowboy, briefly.

"Your pay," fumed Crittenden, "your pay! What do you need with money up at Carrizo? Say, have you been gittin' many?" he whispered, eagerly. "Have they been comin' in on you?"

"Sure thing. Branded forty-two cows, thirty calves, and sixteen twos. But how about it—do I draw?"

"Only thirty calves! W'y, what in the world have you been doin'? I could pick up that many mavericks on the open range. You must've been layin' down under a tree!"

"That's right," agreed Pecos, "and talkin' to myse'f, I was that lonely. But if you'll kindly fork over that eighty that's comin' to me we'll call it square, all the same—I only branded about a thousand dollars' worth of cows for you."

"Eighty dollars!" cried Old Crit. "W'y, I never agreed to nothin' like that—I said I'd give you sixty. But I'll tell you what I'll do," he added, quickly, "I'll make it eighty if you'll go up there for another month."

"After I git my first month's pay they will be time to discuss that," replied Pecos Dalhart, and after a thousand protestations the cowman finally went down into his overalls and produced the money.

"Now what about next month?" he demanded, sharply.

"Nope," said Pecos, pocketing his eighty dollars, "too lonely—too much trouble collectin' my pay—don't like the job."

"Give you eighty dollars," urged Crit, "that's a heap o' money for one month."

"Nope, this'll last me a while—so long." He started toward the corral but Crittenden caught him by the arm instantly.

"Here, wait a minute," he rasped, "what's the matter with you anyhow? I'm ridin' early and late on my round-up and dependin' on you to finish this job up! You ain't goin' to quit me right in the middle of it, are you?"

"That's what," returned Pecos. "I ain't so particular about brandin' a maverick once in a while—every cowman does that—but this idee of stealin' from a man you never saw goes agin' me. I git to thinkin' about it, an' it ain't right!"

"Aw, sho, sho, boy," protested Crittenden, "you don't want to mind a little thing like that—I thought you was a man with nerve. Now here, I can't stop to go out there now and I want to git that work finished up—I'll give you *eight-y-five dol-lars* to stay another month! This man Upton is the biggest cow-thief in the country," he went on, as Pecos shook his head, "it ain't stealin' to rob a thief, is it?"

"Oh, ain't it?" inquired the cow-puncher, gravely, and he smiled grimly to himself as Crittenden endeavored to set his mind at rest. "All right then," he said, cutting short the cowman's labored justification of cattle-rustling, "I'll go you—for a hundred."

"A hundred!" repeated Crittenden, aghast. "Well, for—all right, all right," he cried, as Pecos moved impatiently away. "Now you pull out of here the way you did before and I'll have Joe pack you over some more grub. A hundred dollars," he murmured, shaking his head at the thought, "that boy will ruin me."

Early the next morning Pecos Dalhart rode slowly up the trail that led to Carrizo Springs and the deserted country beyond, a land where as yet the cowmen had not extended their sway. To his left rose the sharp granite spires of the Four Peaks, to the right gleamed the silvery thread of the Salagua, that mighty river that flowed in from the east; and all the country between was a jumble of cliffs and buttes and ridges and black cañons, leading from the mountains to the river.

"So it ain't no crime to rob a thief, hey?" he muttered, when, topping the last ridge, he gazed down at Carrizo Springs and across at the white-worn trail

which led into the wilderness beyond. "Well, if that's the case I might as well search out that country over there and git busy on Old Crit. A man's a dam' fool to steal a thousand dollars' worth of cattle and only git eighty dollars for it."

Three days later, riding by a trail that led ever to the east, Pecos came upon a narrow valley filled with cottonwoods and wild walnuts and echoing to the music of running water. A fine brook, flowing down from the brushy heights of the Peaks, leaped and tumbled over the bowlders and disappeared through a narrow cleft below, where the two black walls drew together until they seemed almost to block the cañon. As Pecos rode cautiously down the creek-bed he jumped a bunch of cattle from the shade of the alders and, spurring after them as they shambled off, he saw that they bore the familiar U, even to the young calves. Undoubtedly they belonged to the same bunch that he had been working on over at Carrizo Springs—the fresh-branded calves and U cows that Crittenden was shoving over the Peaks. Riding farther down the gulch Pecos came upon a cave at the base of the overhanging cliff. In time past the Indians had camped there, but the ashes of their fires were bedded and only their crude pictures on the smoke-grimed rocks remained to tell the tale. It was the cave of Lost Dog Cañon.

On their trip over the simple-minded José had spoken of a lost cañon somewhere over in the mountains but Pecos had never dreamed of finding a paradise like this. According to José the Cañon of Perro Perdito was haunted by a spirit which was *muy malo*, throwing down great rocks from the sides of the cañon and howling like a lost dog at night, but in the broad light of noonday Pecos was undaunted and he rode on into the tunnel-like box cañon until it pinched down to a mere cleft. It was an eerie place, but there never was a ghost yet that threw a track like a cow and, led on by their familiar foot-prints among the rocks, Pecos forged ahead until he stepped out suddenly into a new world. Behind him the pent and overhanging walls shut out the light of day but here the sun was shining into a deep valley where in exquisite miniature lay parks and grassy meadows, while cathedral spires of limestone, rising from the cañon floor, joined their mighty flanks to the rim-rock which shut the whole space in. The glittering waters of the Salagua, far below, marked a natural barrier to the south and as Pecos Dalhart looked at the narrow trail which had brought him in he began instinctively to figure on a drift fence, to close the entrance to the pocket,

and make the hidden valley a mile-wide pasture and corral. All nature seemed conspiring to make him a cattle-rustler and this hidden pasture, with its grass and water and the gate opening at his very door, cast the die. Two days later he moved his camp to Lost Dog Cañon and flew at the fence with feverish energy. Within a week he had the box cañon barricaded from wall to wall and then, as the U cows came down to the creek to drink, he roped them, worked over their brands, and threw them into his new pasture. By this time, with his tongue in his cheek, he attached a circle instead of a bar to the U and named his new brand the Monkey-wrench (⌘). If he had any qualms as to the morality of this last act Pecos did not let them interfere with his industry in any way. The ethics of the cattle business will not stand too stern a scrutiny, even at this late date, and the joke on Old Crit was so primordial in its duplicity that it obscured the finer moral issues. Like many another cowman of those early days Pecos Dalhart had made his start with the running iron and with luck and judgment he might yet be a cattle king.

CHAPTER IV

THE SHOW-DOWN

IT is a great sensation to feel that you are a prospective cattle king, but somehow when Pecos Dalhart rode back to Verde Crossing his accustomed gaiety had fled. There were no bows and smiles for Marcelina, no wordy exchanges with the garrulous Babe—there is a difference, after all, between stealing cows for eighty dollars a month and stealing for yourself, and while a moralist might fail to see the distinction it showed in its effect on Pecos's spirits.

"I'm goin' down to Geronimo," he grumbled, after an uneasy hour at the store, during which he had tried in vain the cheering power of whiskey; "you can tell Crit I'll be back to-morrow night for my time," and without volunteering any further information he rode down to the river, plunged across the rocky ford and was swallowed up in the desert. Two days later he returned, red-eyed and taciturn, and to all Babe's inquiries he observed that the Geronimo saloons were the worst deadfalls west of the Rio Grande, for a certainty. His mood did not improve by waiting, and when Crittenden finally rode in after his long day's work he demanded his money so brusquely that even that old-timer was startled.

"Well, sho, sho, boy," he soothed, "don't git excited over nothin'! To be sure I'll pay you your money." He went down into his overalls with commendable promptitude, but Pecos only watched him in surly silence. Something in his pose seemed to impress the shifty cowman; he drew forth a roll of bills and began to count them out, reluctantly. "Twenty, forty, sixty, eighty, a hundred—there it is—now what's all this racket about?"

"Nothin'," responded Pecos, stowing away the greenbacks, "but you can git somebody else to finish up that job."

"Well, here," snapped the cowman, warming up a little as Dalhart cooled down, "don't I git no accountin' for this month's work? How many did you brand and what you quittin' for?"

"I branded sixty-seven cows, fifty-five calves, and thirty two-year-olds," replied the cowboy, boldly, and Crittenden, not knowing in what iron they were branded, chuckled gleefully.

"Umm," he murmured, "wall, say now, that ain't so bad. Old Upton will make a buck-jump at the moon when he finds this out. But lookee here, boy, I'm goin' to be driftin' cows into that country for another month yet, and that'll be as long as we can brand and ear-mark on account of the flies in June. Now I want to make a dicker with you for jest one more month and I'll be generous with you—how about a hundred and ten—that's pretty nigh four months' wages for a cow-punch!"

"No, I've done quit!" protested Pecos, vigorously. "Steal your own cattle! When I want to go into the rustlin' business I'll rustle for myse'f!"

"Jest one more month," insisted Old Crit, "I'll give you a hundred and twenty!"

The cowboy looked at him a minute and smiled sneeringly. "Well, bein' as yore money seems to be burnin' a hole in yore pocket," he said, "I guess I'll have to take it away from you, but I'll tell you right now I don't approve of this cow-stealin'—it's likely to git a man into trouble!"

"All right, all right," said Crittenden, making haste to clinch the bargain, "a hundred and twenty, then; and they hain't nobody ever been convicted in Geronimo County yet for stealin' cows, so you don't need to worry none. Pull your freight, now, and I'll be over later on to see what you've done."

As Pecos Dalhart and José Garcia rode up the Carrizo trail the next morning driving their pack animals before them, the conversation was chiefly between José and his mules. Pecos did not approve of Mexicans and José did not approve of Pecos—he had been making love to his girl, Marcelina. But about a mile out of Verde Crossing they came across an object that was worthy of comment—an old cow and her calf, both so curiously marked that no cowboy could pass them unnoticed. The cow was covered from shoulder to flank with minute red and white spots and, plastered generously across her face, was a variegated blotch of the creamy dun color peculiar to Chihuahua stock. The calf was like its mother, even to the dun face and

spotted neck and ears, but she, on account of her brand and ear-marks, held the entire attention of the Texan.

"What brand you call that, Joe?" he inquired, as the old cow contemplated them from the hillside.

"*Mi fiero!*" exclaimed the Mexican, proudly tapping himself on the chest.

"Oh, it's yourn, is it?" commented Pecos. "Looks like an Injun arrer struck by lightnin', don't it? Well, these Mexican irons are too many for me—I see you got winders in her ears!"

"You bet," assented Joe, "that my mark, un *ventano*, un slash, un *anzuelo!*"

"A window, a slash, and an underbit, hey—you don't figure on anybody stealin' *her*, unless they cut 'er ears off, do you? How many cows you got?"

"Oh, six—eight," answered José, pride of possession loosening up his tongue, "this good milk cow."

"Milk cow, eh?" repeated Pecos, and then he stopped and pondered a while. Only the day before he had recorded his Monkey-wrench brand at Geronimo, although he did not have an honestly acquired cow in the world—here was a chance to cover his hand. "How much you take for cow, Joe?" he asked. "I like milk, my camp."

"You take calf too?" inquired the Mexican, shrewdly.

"Sure," said Pecos, "give you twenty dollars for the cow and ten for the calf!" He drew a roll of bills from his pocket and began to peel them off temptingly.

"You geev twenty-five for cow," suggested Joe, his slow wits beginning to move at the sight of real money.

"All right," said Pecos, briskly, "I'll give you twenty-five for the cow and five for the calf—but you have to give me bill of sale."

"*Stawano*," assented the Mexican, "and I vent her when we geet to camp, too. Dam' Ol' Crit," he observed, as he pocketed the money, "I work for heem long time—he make me take trade een store—all time in debt!"

He threw the spotted cow and calf in with the pack animals and when they had arrived at Carrizo Springs he roped her and, true to his promise, ran his Indian arrow brand on her shoulder, thus making her a living document and memorandum of sale. In the cow country that "vent" on the shoulder is the only bill of sale required, but Pecos drew up a formal paper giving the ear-marks and brand, and after Joe had signed it and gone he roped Old Funny-face again and ran a Monkey-wrench on her ribs beneath the original mark, all of which is strictly according to law. After that he herded her close, letting the little Monkey-wrench calf have all the milk, while he waited expectantly for Old Crit to drop in.

At the beginning of his long month of waiting Pecos Dalhart was watchful and conservative. He branded up all the cattle that had drifted into Lost Dog Cañon, drove them down into his hidden pasture and closed the breach in his drift fence—then he moved back to Carrizo and went soberly about his work. Old Funny-face and her spotted calf were the only Monkey-wrench cows at Carrizo Springs and though he held a bill of sale for them Pecos was finally compelled to drive them over the trail to his Lost Dog pasture in order to keep them from sneaking back home to Verde Crossing and tipping his hand prematurely to Isaac Crittenden. He was a hard man, Old Crit, especially when his pocket-book was touched, and Pecos looked for a gunplay when the Boss finally found him out; but if Crittenden got wind of his duplicity in advance he might come over with all his Texas cowboys and wipe Mr. Pecos Dalhart off the map. So at the start he was careful, running nothing but Wine-glasses on the U cows that still came drifting in over the mountains, but as the days went by and his courage mounted up against the time when he was to face Old Crit a spirit of bravado crept in on him and made him over-bold. All he wanted now was a show-down, and he wanted it quick—one Monkey-wrench brand would tell the story. With a sardonic grin Pecos put his rope on a likely young maverick and burned a Monkey-wrench on his ribs; then, in order that there should be no mistake, he worked over the brand on a U cow and put his iron on the calf. As the last days of the month dragged by and the fighting spirit within him clamored for action he threw caution to the winds, running a Monkey-wrench on every cow-brute he caught.

For weeks Pecos had watched the brow of the hill where the Verde trail came in, and he wore his six-shooter constantly, even at his branding, but

when at last Crittenden finally rode in on him he was so intent about his work that he almost overlooked him. Only the fidgeting of his horse, which was holding the rope taut on a big U cow that he had strung out, saved him from being surprised at his task and taken at a disadvantage. One glance was enough—it was Crit, and he was alone. Pecos stood up and looked at him as he came slowly down the hill—then, as the cow struggled to get up, he seized his running iron from the fire, spread a wet sack over her brand, and burned a big Monkey-wrench through the steaming cloth.

"Hello!" hailed the cowman, spurring eagerly in on him. "Are you catchin' many?"

"Oodles of 'em!" answered Pecos, loosening his tie-down strings and swinging up on his horse. "Git up there, cow, and show yourse'f off to the Boss!" He slackened the taut reata that was fastened around her hind feet and as the old cow sprang up, shaking off the sack, the smoking Monkey-wrench on her ribs stood out like hand-writing on the wall.

"Wh-what's that?" gasped Crit, staring at the mark. "I thought I told you to run a Wine-glass!"

"That's right," assented Pecos, dropping his hand to his hip, "but I got tired of runnin' your old brand, so I studied out a little improvement!"

He laughed hectoringly as he spoke and the realization of the fraud that had been perpetrated upon him made Crittenden reel in the saddle.

"Hev—hev you recorded that brand?" he demanded, tensely.

"I certainly have," responded Pecos, "and I didn't see no Wine-glass registered before me, neither. If I'd been real foxy, like some people I know, I would've put that in the book too and euchered you out of the whole bunch. But I'm good-natured, Mr. Crittenden, and bein' as I was takin' your money I branded most of these U cows in the Wine-glass. I hope you'll be able to take this reasonable."

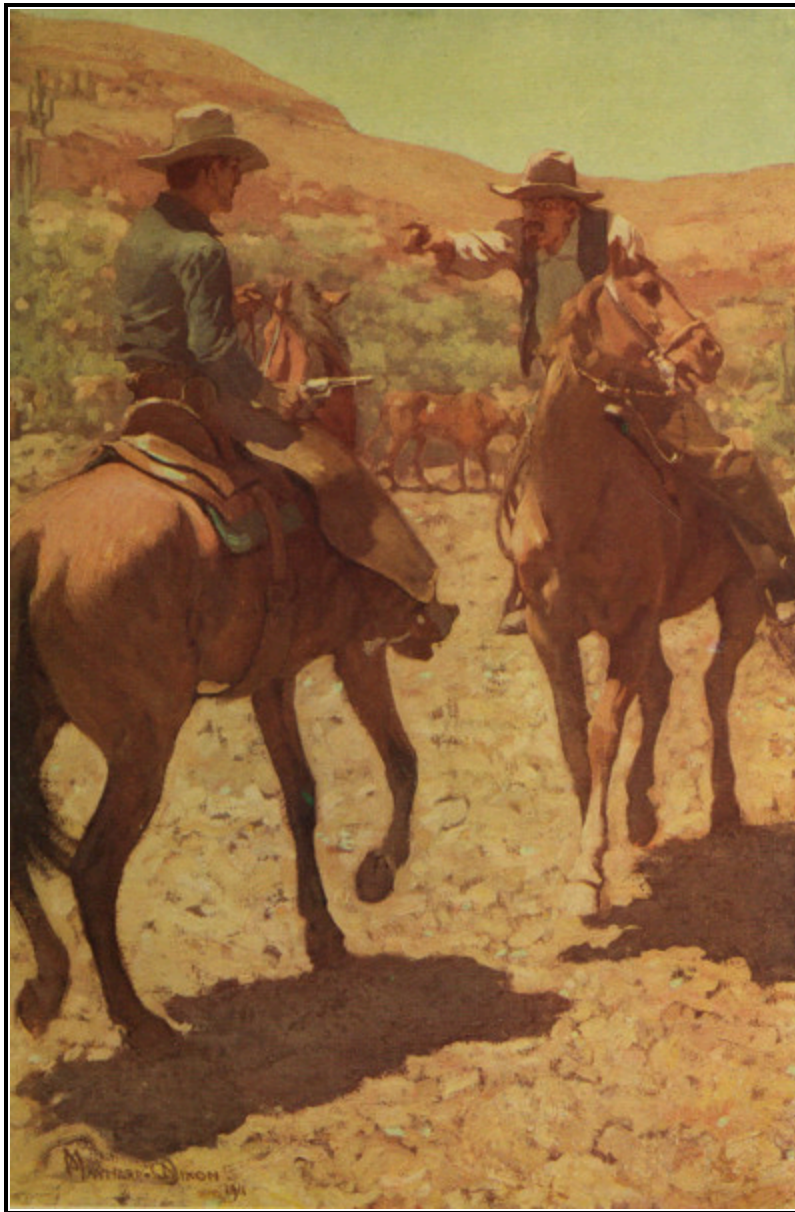
"Reasonable!" screamed Crittenden, "reasonable! W'y, if I wasn't the most reasonable man on earth I'd shoot you so full of lead it'd take a wagon to haul you to the graveyard. But you don't know who you're up against, boy, if you think you can fool me like this—the man don't live that can give Ike

Crittenden the double cross. I been in the business too long. Now I give you jest five minutes to make me out a bill of sale for your entire brand, whatever you call it. Ef you *don't*—"

He rose up threateningly in his stirrups and his one good eye glared balefully, but Pecos had been expecting something like this for a month or more and he did not weaken.

"Go ahead," he said, "my brand is the Monkey-wrench; I come by it as honest as you come by the Wine-glass, and I'll fight for it. If you crowd me too hard, I'll shoot; and if you try to run me out of the country I'll give the whole snap away to Upton."

"W'y, you son of a—" began the cowman malignantly, but he did not specify. Pecos's ever-ready pistol was out and balanced in his hand.



Pecos's ever-ready pistol was out and balanced in his hand

"That'll do, Mr. Crittenden," he said, edging his horse in closer. "I never took that off o' nobody yet, and 'tain't likely I'll begin with you. If you're lookin' for trouble you'll find I can accommodate you, any time—but listen to reason, now. This ain't the first time a cowman has got himse'f into trouble by hirin' somebody else to do his stealin' for him—I've been around some, and I know. But they ain't no use of us fightin' each other—we're both in the same line of business. You leave me alone and I'll keep shut about this—is it a go?"

The fires of inextinguishable hate were burning in Old Crit's eye and his jaw trembled as he tried to talk.

"Young man," he began, wagging a warning finger at his enemy, "young man—" He paused and cursed to himself fervently. "How much will you take for your brand?" he cried, trying to curb his wrath, "and agree to quit the country?"

"I ain't that kind of a hold-up," replied Pecos, promptly. "I like this country and I'm goin' to live here. They's two or three hundred head of cattle running in here that I branded for you for a hundred and eighty dollars. They're worth two or three thousand. I've got a little bunch myself that I picked up on the side, when I wasn't stealin' for you. Now all I ask is to be left alone, and I'll do the same by you. Is it a go?"

The cold light of reason came into Crittenden's fiery orb and glittered like the hard finish of an agate.

"Well," he said, grudgingly, "well—oh hell, yes!" He urged his horse sullenly up the hill. "Another one of them smart Texicans," he muttered, "but I'll cure him of suckin' eggs before I'm through with 'im."

CHAPTER V

LOST DOG CAÑON

THE silence of absolute loneliness lay upon Lost Dog Cañon like a pall and to Pecos Dalhart, sprawling in the door of his cave, it seemed as if mysterious voices were murmuring to each other behind the hollow gurgling of the creek. From far down the cañon the bawling of cows, chafing against the drift fence, echoed with dreary persistence among the cliffs, and the deep subterranean rumbling which gave the place its bad name broke in upon his meditations like the stirring of some uneasy devil confined below. On the rim of the black cañon wall that rose against him a flock of buzzards sat in a tawdry row, preening their rusty feathers or hopping awkwardly about in petty, ineffectual quarrels—as shabby a set of loafers as ever basked in the sun. For a week Pecos had idled about his cave, now building pole houses to protect his provisions from the rats, now going out to the point to watch the Verde trail, until the emptiness of it had maddened him. At first he had looked for trouble—the veiled treachery of some gun-man, happening in on him accidentally, or an armed attack from Old Crit's cowboys—but now he would welcome the appearance of Crit himself. In action Pecos could trust his nerves absolutely, but he chafed at delay like a spirited horse that frets constantly at the bit. If it was to be a game of waiting Crittenden had won already. Pecos threw away his cigarette impatiently and hurried down the cañon to catch his horse.

"Where's Old Crit?" he demanded when, after a long ride, he stalked defiantly into the store at Verde Crossing.

"Damfino," replied Babe, looking up from a newspaper he was reading, "gone down to Geronimo, I guess."

"Is he lookin' for me?" inquired Pecos, guardedly.

"W'y, not so's you notice it," answered the bar-keeper, easily. "It'd be the first case on record, I reckon, bein' as he owes you money. In fact, until you

collect your last month's pay the chances are good that you'll be lookin' for him. Did you see the new sign over the door?"

"No," said Pecos, "what is it?"

"Post Office!" replied Babe, proudly. "Yes, sir, Old Good Eye has certainly knocked the persimmon this time and put Verde Crossing on the map. They's lots of ranchers up and down the river—and you, of course, over there at Carrizo—and Crit figured it out some time ago that if he could git 'em to come here for their mail he'd catch their trade in whiskey; so what does he do but apply to the Post Office Department for a mail route from here to Geronimo and bid in the contract himself! Has to send Joe down about once a week, anyhow, you understand, and he might as well git the Government to pay for it. So you can write home to your folks now to send your mail to Verde Crossing—tell your girl too, because if we don't git ten letters a week we lose our route."

Pecos twisted uneasily on his chair. Like many another good Texan he was not writing home.

"Ain't got no girl," he protested, blushing beneath his tan.

"No?" said Angy, "well that's good news for Marcelina—she was inquiren' about you the other day. But say, here's some advertisements in this paper that might interest you. Umm—lemme see, now—'Genuine Diamonds, rings, earrings, and brooches, dollar forty-eight a piece, to introduce our new line.' That's pretty cheap, ain't it! 'Always acceptable to a lady,' it says. Yes, if you don't want 'em yourself you can give 'em away, see? You know, I'm tryin' to git the fellers around here interested, so's they'll write more letters."

He threw this out for a feeler and Pecos responded nobly. "Well, go ahead and order me them rings and earrings," he said, "I'm no cheap sport. What else you got that's good?"

Angevine Thorne dropped his paper and reached stealthily for a large mail-order catalogue on the counter. "Aprons, bath-tubs, curtains, dishes," he read, running his finger down the index. "Here's some silk handkerchiefs that might suit you; 'green, red, blue, and yaller, sixty cents each; with embroidered initials, twenty cents extra.'"

"I'll go you!" cried the cowboy, looking over his shoulder. "Gimme half a dozen of them red ones—no squaw colors for me—and say, lemme look at them aprons."

"Aprons!" yelled Angy. "Well—what—the—"

"Aw, shut up!" snarled Pecos, blushing furiously. "Can't you take a joke? Here, gimme that catalogue—you ain't the only man on the Verde that can read and write—I've had some schoolin' myself!"

He retired to a dark corner with the "poor man's enemy" and pored over it laboriously, scrawling from time to time upon an order blank which Angy had thoughtfully provided. At last the deed was done, all but adding up the total, and after an abortive try or two the cowboy slipped in a twenty-dollar bill and wrote: "Giv me the rest in blue hankerchefs branded M." Then he sealed and directed the letter and called on Babe for a drink.

"How long before I'll git them things?" he inquired, his mind still heated with visions of aprons, jewelry, and blue handkerchiefs, branded M,— "two or three weeks? Well, I'll be down before then—they might come sooner. Where's all the punchers?"

"Oh, they're down in Geronimo, gettin' drunk. Round-up's over, now, and Crit laid 'em off. Gittin' kinder lonely around here."

"Lonely!" echoed Pecos. "Well, if you call this lonely you ought to be out in Lost Dog Cañon, where I am. They's nothin' stirrin' there but the turkey-buzzards—I'm gittin' the willies already, jest from listenin' to myself think. Say, come on out and see me sometime, can't you?"

"Nope," said Babe, "if you knew all the things that Crit expects me to do in a day you'd wonder how I git time to shave. But say, what you doin' out there, if it's a fair question?"

"Who—me? Oh, I've made me a little camp over in that cave and I'm catchin' them wild cattle that ooze along the creek." He tried to make it as matter-of-fact as possible, but Angevine Thorne knew better.

"Yes, I've heard of them wild cows," he drawled, slowly closing one eye, "the boys've been driftin' 'em over the Peaks for two months. Funny how

they was all born with a U on the ribs, ain't it?"

"Sure, but they's always some things you can't explain in a cow country," observed Pecos, philosophically. "Did Crit tell you anything about his new iron? No? Called the Wine-glass—in the brand book by this time, I reckon."

"Aha! I see—I see!" nodded Angy. "Well, Old Good Eye wants to go easy on this moonlightin'—we've got a new sheriff down here in Geronimo now—Boone Morgan—and he was elected to put the fear of God into the hearts of these cowmen and make 'em respect the law. W'y, Crit won't even pay his taxes, he's that ornery. When the Geronimo tax-collector shows up he says his cows all run over in Tonto County; and when the Tonto man finally made a long trip down here Crit told *him* his cows all ran in Geronimo County, all but a hundred head or so, and John Upton had stole them. The tax-collectors have practically give up tryin' to do anything up here in the mountains—the mileage of the assessor and collector eats up all the profits to the county, and it's easier to turn these cowmen loose than it is to follow 'em up. This here Geronimo man jumped all over Crit last time he was up here, but Crit just laughed at him. 'Well,' he says, 'if you don't like the figgers I give, you better go out on the range and count them cows yourself, you're so smart.' And what could the poor man do? It'd cost more to round up Old Crit's cattle than the taxes would come to in a lifetime. But you want to look out, boy," continued Angy earnestly, "how you monkey around with them U cattle—Boone Morgan is an old-timer in these parts and he's likely to come over the hill some day and catch you in the act."

"Old Crit says they never was a man sent up in this county yet for stealin' cattle," ventured Pecos, lamely.

"Sure not," assented Angevine Thorne, "but they's been a whole lot of 'em killed for it! I don't suppose he mentioned that. Have you heard about this Tewkesbury-Graham war that's goin' on up in Pleasant Valley? That all started over rustlin' cattle, and they's over sixty men killed already and everybody hidin' out like thieves. A couple of Crit's bad punchers came down through there from the Hash-knife and they said it was too crude for them—everybody fightin' from ambush and killin' men, women, and children. I tell you, it's got the country stirred up turrible—that's how come Boone Morgan was elected sheriff. The people down in Geronimo figured

out if they didn't stop this stealin' and rustlin' and alterin' brands pretty soon, Old Crit and Upton would lock horns—or some of these other cowmen up here in the mountains—and the county would go bankrupt like Tonto is, with sheriff's fees and murder trials. No, sir, they ain't been enough law up here on the Verde to intimidate a jackrabbit so far—it's all down there in Geronimo, where they give me that life sentence for conspicuous drunkenness—but you want to keep your ear to the ground, boy, because you're goin' to hear something drap!"

"What d'ye think's goin' to happen, Babe?" asked the cowboy, uneasily. "Old Crit can't be scared very bad—he's laid off all his punchers."

"Huh! you don't know Crit as well as I do," commented Babe. "Don't you know those punchers would've quit anyhow, as soon as they got their pay? He does that every year —lays 'em off and then goes down to Geronimo about the time they're broke, and half of 'em in jail, mebby, and bails 'em out. He'll have four or five of 'em around here all summer, workin' for nothin' until the fall round-up comes off. I tell you, that man'll skin a flea anytime for the hide and taller. You want to keep out of debt to him or he'll make you into a Mexican peon, like Joe Garcia over here. Joe's been his corral boss and teamster for four years now and I guess they's a hundred dollars against him on the books, right now. Will drink a little whiskey once in a while, you know, like all the rest of us, and the Señora keeps sendin' over for sugar and coffee and grub, and somehow or other, Joe is always payin' for a dead horse. Wouldn't be a Mexican, though," observed Babe, philosophically, "if he wasn't in debt to the store. A Mexican ain't happy until he's in the hole a hundred or so—then he can lay back and sojer on his job and the boss is afraid to fire 'im. There's no use of his havin' anything, anyhow—his relatives would eat 'im out of house and home in a minute. There was a Mexican down the river here won the grand prize in a lottery and his relatives come overland from as far as Sonora to help him spend the money. Inside of a month he was drivin' a wood-wagon again in order to git up a little grub. He was a big man while it lasted—open house day and night, *fiestas* and *bailes* and a string band to accompany him wherever he went—but when it was all over old Juan couldn't buy a pint of whiskey on credit if he was snake-bit. They're a great people, for sure."

"That's right," assented Pecos, absently, "but say, I reckon I'll be goin'." The social qualities of the Spanish-Americans did not interest him just then—he was thinking about Boone Morgan. "Gimme a dollar's worth of smoking tobacco and a box of forty-fives and I'll hit the road."

"There's one thing more you forgot," suggested Angevine Thorne, as he wrapped up the purchases.

"What—Marcelina?" ventured Pecos, faintly.

"Naw—your *mail*!" cried Angy, scornfully, and dipping down into a cracker box he brought out a paper on the yellow wrapper of which was printed "Pecos Dalhart, Verde Crossing, Ariz."

"I never subscribed for no paper!" protested Pecos, turning it over suspiciously. "Here—I don't want it."

"Ump-umm," grunted Angy, smiling mysteriously, "take it along. All the boys git one. You can read it out in camp. Well, if you're goin' to be bull-headed about it I'll tell you. Crit subscribed for it for every man in Verde—only cost two-bits a year. Got to build up this mail route somehow, you know. It's called the *Voice of Reason* and it's against the capitalistic classes."

"The which?" inquired Pecos, patiently.

"Aw, against rich fellers—these sharks like Old Crit that's crushin' the life out of the common people. That's the paper I was showin' you—where they was advertisin' diamonds for a dollar forty-eight a piece."

"Oh," said Pecos, thrusting it into his chaps, "why didn't you say so before? Sure, I'll read it!"

CHAPTER VI

"THE VOICE OF REASON"

THE fierce heat of summer fell suddenly upon Lost Dog Cañon and all the Verde country—the prolonged heat which hatches flies by the million and puts an end to ear-marking and branding. Until the cool weather of October laid them and made it possible to heal a wound there was nothing for Pecos to do but doctor a few sore ears and read the *Voice of Reason*. Although he had spent most of his life in the saddle the school-teacher back on the Pecos had managed to corral him long enough to beat the three R's into him and, being still young, he had not yet had time to forget them. Only twenty summers had passed over his head, so far, and he was a man only in stature and the hard experience of his craft. He was a good Texan—born a Democrat and taught to love whiskey and hate Mexicans—but so far his mind was guiltless of social theory. That there was something in the world that kept a poor man down he knew, vaguely; but never, until the *Voice of Reason* brought it to his attention, had he heard of the conspiracy of wealth or the crime of government. Not until, sprawling at the door of his cave, he mumbled over the full-mouthed invective of that periodical had he realized what a poor, puny creature a wage-slave really was, and when he read of the legalized robbery which went on under the name of law his young blood boiled in revolt. The suppression of strikes by Pinkertons, the calling out of the State Militia to shoot down citizens, the blacklisting of miners, and the general oppression of workingmen was all far away and academic to him—the thing that gripped and held him was an article on the fee system, under which officers of the law arrest all transient citizens who are unfortunate enough to be poor, and judges condemn them in order to gain a fee.

"*Think, Slave, Think!*" it began. "You may be the next innocent man to be thrown into some vile and vermin-infested county-jail to swell the income of the bloated minions who fatten upon the misery of the poor!"

Pecos had no difficulty in thinking. Like many another man of wandering habits he had already tasted the bitterness of "ten dollars or ten days." The hyenas of the law had gathered him in while he was innocently walking down the railroad track and a low-browed justice of the peace without asking any useless questions had sentenced him to jail for vagrancy. Ten days of brooding and hard fare had not sweetened his disposition any and he had stepped free with the firm determination to wreak a notable revenge, but as the sheriff thoughtfully kept his six-shooter Pecos had been compelled to postpone that exposition of popular justice. Nevertheless the details of his wrongs were still fresh in his mind, and when he learned from the *Voice of Reason* that the constable and judge had made him all that trouble for an aggregate fee of six dollars Pecos was ready to oppose all law, in whatsoever form it might appear, with summary violence. And as for the capitalistic classes—well, Pecos determined to collect his last month's pay from Old Crit if he had to take it out of his hide.

When next he rode into Verde Crossing the hang-dog look which had possessed Pecos Dalhart since he turned rustler was displaced by a purposeful frown. He rolled truculently in the saddle as he came down the middle of the road, and wasted no time with preliminaries.

"Where's that blankety-blank Old Crit?" he demanded, racking into the store with his hand on his hip.

"Gone down to Geronimo to git the mail," replied Babe, promptly.

"Well, you tell him I want my pay!" thundered Pecos, pacing up and down.

"He'll be back to-night, better stay and tell him yourself," suggested Babe, mildly.

"I'll do that," responded Pecos, nodding ominously. "And more'n that—I'll collect it. What's doin'?"

"Oh, nothin'," replied Babe. "There was a deputy assessor up here the other day and he left this blank for you to fill out. It gives the number of your cattle."

"Well, you tell that deputy to go to hell, will you?"

"Nope," said Babe, "he might take me with him. It happens he's a deputy sheriff, too!"

"Deputy,—*huh!*" grumbled Pecos, morosely. "They all look the same to me. Did Crit fill out his blank?"

"Sure did. Reported a hundred head of Wine-glasses. Now what d'ye think of that?"

Pecos paused and meditated on the matter for an instant. It was doubtful if Crittenden could gather more than a hundred head of Wine-glasses, all told. Some of them had drifted back to their old range and the rest were scattered in a rough country. "Looks like that deputy threw a scare into him," he observed, dubiously. "What did he say about my cattle?"

"Well, he said you'd registered a new brand and now it was up to you to show that you had some cattle. If you've got 'em you ought to pay taxes on 'em and if you haven't got any you got no business with an iron that will burn over Upton's U."

"Oh, that's the racket, is it? Well, you tell that deputy that I've got cattle in that brand and I've got a bill of sale for 'em, all regular, but I've yet to see the deputy sheriff that can collect taxes off of me. D'ye think I'm goin' to chip in to help pay the salary of a man that makes a business of rollin' drunks and throwin' honest workingmen into the hoosegatho when he's in town? Ump-um—guess again!"

He motioned for a drink and Babe regarded him curiously as he set out the bottle.

"You been readin' the *Voice*, I reckon," he said, absent-mindedly pouring out a drink for himself. "Well, say, did you read that article on the fee system? It's all true, Pardner, every word of it, and more! I'm a man of good family and education—I was brought up right and my folks are respectable people—and yet every time I go to Geronimo they throw me into jail. Two-twenty-five, that's what they do it for—and there I have to lay, half the time with some yegg or lousy gang of hobos, until they git ready to turn me loose. And they call that justice! Pecos, I'm going back to Geronimo—I'm going to stand on the corner, just the way I used to when I was drunk, and

tell the people it's all *wrong*! You're a good man, Pecos—Cumrad—will you go with me?"

Pecos stood and looked at him, wondering. "Comrade" sounded good to him; it was the word they used in the *Voice of Reason*—"Comrade Jones has just sent us in four more subscriptions. That's what throws a crook into the tail of monopoly. Bully for you, Comrade!" But with all his fervor he did not fail to notice the droop to Angy's eyes, the flush on his cheeks, and the slack tremulousness of his lips—in spite of his solemn resolutions Angy had undoubtedly given way to the Demon Drink.

"Nope," he said, "I like you, Angy, but they'd throw us both in. You'd better stay up here and watch me put it on Crit. 'Don't rope a bigger bull than you can throw,' is my motto, and Old Crit is jest my size. I'm goin' to comb his hair with a six-shooter or I'll have my money—and then if that dog-robber of a deputy sheriff shows up I'll—well, he'd better not crowd me, that's all. Here's to the revolution—will you drink it, old Red-eye?"

Angy drank it, and another to keep it company.

"Pecos," he said, his voice tremulous with emotion, "when I think how my life has been ruined by these hirelings of the law, when I think of the precious days I have wasted in the confinement of the Geronimo jail, I could rise up and *destroy* them, these fiends in human form and their accursed jails; I could wreck every prison in the land and proclaim liberty from the street-corners—whoop!" He waved one hand above his head, laughed, and leapt to a seat upon the bar. "But don't you imagine f'r a moment, my friend," he continued, with the impressive gravity of an orator, "that they have escaped unscathed. It was not until I had read that wonderful champion of the common people, the *Voice of Reason*, that I realized the enormity of this conspiracy which has reduced me to my present condition, but from my first incarceration in the Geronimo jail I have been a Thorne in their side, as the Geronimo *Blade* well said. I remember as if it were yesterday the time when they erected their first prison, over twenty years ago, on account of losing some hoss-thieves. It was a new structure, strongly built of adobe bricks, and in a spirit of jest the town marshal arrested me and locked me up to see if it was tight. That night when all was still I wrenched one of the iron bars loose and dug my way to

freedom! But what is freedom to revenge? After I had escaped I packed wood in through the same hole, piled it up against the door, and set the dam' hell-hole afire!"

He paused and gazed upon Pecos with drunken triumph. "That's the kind of an *hombre* I am," he said. "But what is one determined man against a thousand? When the citizens of Geronimo beheld their new calaboose ruined and in flames they went over the country with a fine-tooth comb and never let up until they had brought me back and shackled me to the old Cottonwood log down by the canal—the one they had always used before they lost the hoss-thieves. That was the only jail they had left, now that the calaboose was burned. In vain I pleaded with them for just one drink—they were inexorable, the cowardly curs, and there they left me, chained like a beast, while they went up town and swilled whiskey until far into the night. As the first faint light of morning shot across the desert I awoke with a terrible thirst. My suffering was awful. I filled my mouth with the vile ditch-water and spat it out again, unsatisfied—I shook my chains and howled for mercy. But what mercy could one expect from such a pack of curs? I tested every link in my chain, and the bolt that passed through the log—then, with the strength of desperation I laid hold upon that enormous tree-trunk and rolled it into the water! Yes, sir, I rolled the old jail-log into the canal and jumped straddle of it like a conqueror, and whatever happened after that I knew I had the laugh on old Hickey, the Town Marshal, unless some one saw me sailing by. But luck was with me, boy; I floated that big log clean through town and down to Old Manuel's road-house—a Mexican deadfall out on the edge of the desert—and swapped it for two drinks of mescal that would simply make you scream! By Joe, that liquor tasted good—have one with me now!"

They drank once more, still pledging the revolution, and then Angy went ahead on his talking jag. "Maybe you've heard of this Baron Mun-chawson, the German character that was such a dam' liar and jail-breaker the king made a prison to order and walled him in? Well, sir, Mun-chawson worked seven years with a single nail on that prison and dug out in spite of hell. But human nature's the same, wherever you go—always stern and pitiless. When those Geronimo citizens found out that old Angy had stole their cottonwood log and traded it to a wood-chopper for the drinks, they went ahead and built a double-decked, steel-celled county jail and sentenced me

to it for life! Conspicuous drunkenness was the charge—and grand larceny of a jail—but answer me, my friend, is this a free country or is the spirit that animated our forefathers dead? Is the spirit of Patrick Henry when he cried, 'Give me liberty or give me death,' buried in the oblivion of the past? Tell me that, now!"

"Don't know," responded Pecos, lightly, "too deep a question for me—but say, gimme one more drink and then I'm goin' down the road to collect my pay from Crit. I'm a man of action—that's where I shine—I refer all such matters to Judge Colt." He slapped his gun affectionately and clanked resolutely out of the door. Half a mile down the river he sighted his quarry and rode in on him warily. Old Crit was alone, driving a discouraged team of Mexican horses, and as the bouquet of Pecos's breath drifted in to him over the front wheel the Boss of Verde Crossing regretted for once the fiery quality of his whiskey.

"I come down to collect my pay," observed Pecos, plucking nervously at his gun.

"Well, you don't collect a cent off of me," replied Crit, defiantly, "a man that will steal the way you did! Whenever you git ready to leave this country I might give you a hundred or so for your brand, but you better hurry up. There was a deputy sheriff up here the other day, lookin' for you!"

"Yes, I heard about it," sneered Pecos. "I reckon he was lookin' for evidence about this here Wine-glass iron."

A smothered curse escaped the lips of Isaac Crittenden, but, being old at the game, he understood. There was nothing for it but to pay up—and wait.

"Well, what guarantee do I git that you don't give the whole snap away anyhow?" he demanded, fiercely. "What's the use of me payin' you anything—I might as well keep it to hire a lawyer."

"As long as you pay me what you owe me," said Pecos, slowly, "and treat me square," he added, "I keep my mouth shut. But the minute you git foxy or try some ranikaboo play like sayin' the deputy was after me—look out! Now they was a matter of a hundred and twenty dollars between us—do I git it or don't I?"

"You git it," grumbled Crittenden, reluctantly. "But say, I want you to keep away from Verde Crossing. Some of them Wine-glass cows have drifted back onto the upper range and John Upton has made a roar. More than that, Boone Morgan has undertook to collect our taxes up here and if that deputy of his ever gits hold of you he's goin' to ask some mighty p'inted questions. So you better stay away, see?"

He counted out the money and held it in his hand, waiting for consent, but Pecos only laughed.

"Life's too short to be hidin' out from a deputy," he answered, shortly. "So gimme that money and I'll be on my way." He leaned over and plucked the bills from Crit's hand; then, spurring back toward the Crossing he left Old Crit, speechless with rage, to follow in his dust.

A loud war-whoop from the store and the high-voiced ranting of Babe made it plain to Crit that there was no use going there—Angy was launched on one of his periodicals and Pecos was keeping him company—which being the case there was nothing for it but to let them take the town. The grizzled Boss of Verde stood by the corral for a minute, listening to the riot and studying on where to put in his time; then a slow smile crept over his hardened visage and he fixed his sinister eye on the adobe of Joe Garcia. All was fair, with him, in love or war, and Marcelina was growing up to be a woman.

"Joe," he said, turning upon his corral boss, "you tell your wife I'll be over there in a minute for supper—and say, I want you to stay in the store to-night; them crazy fools will set the house afire."

"*Stawano*," mumbled José, but as he turned away there was an angry glint in his downcast eye and he cursed with every breath. It is not always pleasant, even to a Mexican, to be in debt to the Boss.

CHAPTER VII

THE REVOLUTION

THE coyotes who from their seven hills along the Verde were accustomed to make Rome howl found themselves outclassed and left to a thinking part on the night that Pecos Dalhart and Angevine Thorne celebrated the dawn of Reason. The French Revolution being on a larger scale, and, above all, successful, has come down in history as a great social movement; all that can be said of the revolution at Verde Crossing is packed away in those sad words: it failed. It started, like most revolutions, with a careless word, hot from the vitriolic pen of some space-writer gone mad, and ended in that amiable disorder which, for lack of a better word, we call anarchy. Whiskey was at the bottom of it, of course, and it meant no more than a tale told by an idiot, "full of sound and fury, signifying nothing." At the same time, it managed by degrees to engross the entire attention of Verde Crossing and after the fall of the Bastille, as symbolized by the cracking of a bottle, it left Pecos and Babe more convinced than ever that the world was arrayed against them.

In the early part of the evening, according to orders, José Garcia watched them furtively through the open door, returning at intervals, however, to peer through the window of his own home. At each visit it seemed to him that Angy was getting drunker and the Boss more shameless in his attentions to Marcelina. At last, when he could stand the strain no longer, he threw in with the merry roisterers, leaving it to the Señora to protect the dignity of their home. A drink or two mellowed him to their propaganda—at the mention of Crit he burst into a torrent of curses and as the night wore on he declared for the revolution, looking for his immediate revenge in drinking up all the Boss's whiskey. In the end their revelry rose to such a height that Crittenden was drawn away from his rough wooing and finally, under the pretence of delivering the United States mail, he walked boldly in upon them, determined to protect his property at any risk. The penalty for interfering with the United States mail, as everybody who has ever read the card on a drop-box knows, is a fine of \$1,000, or imprisonment, or both. In

defence of that precious packet Crittenden could have killed all three of them and stood justified before the law, but although he had a reputation as a bad man to crowd into a corner, Old Crit was not of a sanguinary disposition. No man could hold down a bunch of gun-men of the kind that he employed in his predatory round-ups and not have a little iron in his blood, but the Boss of Verde Crossing had seen all too well in his variegated career the evils which cluster like flies about an act of violence, and he was always for peace—peace and his price.

"Here; here, here," he expostulated, as he found Angy in the act of drinking half a pint of whiskey by measure, "you boys are hittin' it pretty high, ain't ye?"

"The roof's the limit," replied Babe, facetiously. "As the Champeen Booze-fighter of Arizona I am engaged in demonstratin' to all beholders my claim to that illustrious title. Half a pint of whiskey—enough to kill an Injun or pickle a Gila-monster—and all tossed off at a single bout, like the nectar of the gods. Here's to the revolution, and to hell with the oppressors of the poor!"

"That's right," chimed in Pecos, elevating his glass and peering savagely over its rim at the Boss, "we done declared a feud against the capitulistic classes and the monneypullistic tendencies of the times. Your game's played out, Old Man; the common people have riz in their might and took the town! Now you go away back in the corner, d'ye understand, and sit down—and don't let me hear a word out of you or I'll beat the fear o' God into you with *this*!" He hauled out his heavy six-shooter and made the sinister motions of striking a man over the head with it, but Crit chose to ignore the threat.

"All right," he said, feigning an indulgent smile, "you boys seem to be enjoyin' yourselves, so I'll jest deliver this United States mail as the law requires and leave you to yourselves." He stepped in behind the bar, chucked a couple of demijohns of whiskey into the corner where they might be overlooked, and threw the mail pouch on the counter.

"Better come up and git your mail, boys," he observed, dumping the contents out for a lure. "Hey, here's a package for you, Mr. Dalhart—something pretty choice, I 'spect. Nothin' for you, Joe," he scowled, as his

faithless retainer lurched up to claim his share. "Here's your paper, Babe. Letter for you, Mr. Dalhart," he continued, flipping a large, official envelope across the bar, "you're developin' quite a correspondence!" He ducked down behind the counter, grinning at his stratagem, and while Pecos and Babe were examining their mail he managed to jerk the money drawer open and slip the loose change into his pockets.

"Well, we'll be goin' home now, Joe," he said, taking the corral boss briskly by the arm. "Come on, *hombre*, you ain't got no mail!" Under ordinary circumstances José would have followed peaceably, thus reducing the revolutionary forces to a minimum, but the covert insult to his daughter, magnified by drink, had fired his Latin blood.

"No, Señor," he replied, fixing his glittering eyes upon the hateful boss. "*Yo no go! Carramba, que malo hombre!* You dam' coward, Creet—you scare my wife—you scare—"

"Shut up!" hissed Crit, hastily cuffing him over the head. "Shut your mouth or I'll—"

"*Diablo!*" shrieked the Mexican, striking back blindly. "I keel you! You have to leave *mi niña* alone!"

"What's that?" yelled Angevine Thorne, leaping with drunken impetuosity into the fray, "hev you been—"

"Leave him to me!" shouted Pecos, wading recklessly into the scrimmage. "I'll fix the blankety-blank, whatever he's gone and done! Throw him loose, boys; I'll take the *one-eyed—hump-backed—dog-robbin'—dastard*"—he accompanied each epithet with a blow—"and tie 'im into a bow knot!" He grabbed Old Crit out of the *mêlée* and held him against the wall with a hand of iron. "What do you mean by slappin' my friend and cumrad?" he thundered, making as if to annihilate him with a blow. "I want you to understand, Old Cock Eye, that Mr. Garcia is my friend—he comes from a fine old Spanish family, away down in Sonory, and his rights must be respected! Ain't that so, Angy?"

"From the pure, Castilian blood," declaimed Angy, waving his hand largely, "a gentleman to whom I take off my hat—his estimable wife and family—"

"Now here, boys," broke in Crittenden, taking his cue instantly, "this joke has gone far enough. Mr. Garcia's wife asked me to bring him home—you see what his condition is—and I was tryin' to do my best. Now jest take your hand off of me, Mr. Dalhart—yes, thanks—and Angy, you see if you can't git 'im to go home. A man of family, you know," he went on, craftily enlisting their sympathies, "ought to—"

"Sure thing!" responded Angevine Thorne, lovingly twining his arm around his Spanish-American comrade. "Grab a root there, Pecos, and we'll take 'im home in style!"

"Wait till I git my package!" cried Pecos, suddenly breaking his hold, and he turned around just in time to see Crit skipping out the back door.

"Well, run then, you dastard!" he apostrophized, waving one hand as he tenderly gathered up his mail-order dry goods. "I can't stop to take after ye now. This here package is f'r my little Señorita, Marcelina, and I'm goin' to present it like a gentleman and ast her for a kiss. Hey, Angy," he called, as he re-engaged himself with José, "how do you say 'kiss' in Spanish? Aw, shut up, I don't believe ye! Stan' up here, Joe—well, it don't sound good, that's all—I'm goin' to ast her in U. S., and take a chance!"

The procession lurched drunkenly up the road and like most such was not received with the cordiality which had been anticipated. The Señora Garcia was already furious at Old Crit and when Pecos Dalhart, after delivering her recreant husband, undertook to present the dainty aprons and the blue handkerchiefs, marked M, which he had ordered specially for her daughter, she burst into a torrent of Spanish and hurled them at his head. "*Muy malo*," "*borracho*," and "*vaya se*," were a few of the evil words which followed them and by the gestures alone Pecos knew that he had been called a bad man and a drunkard and told in two words to go. He went, and with him Angy, ever ready to initiate new orgies and help drown his sorrows in the flowing cup. The noise of their bacchanalia rose higher and higher; pistol-shots rang out as Pecos shot off the necks of bottles which personified for the moment his hated rival; and to Crit, lingering outside the back door, it seemed as if their howling and ranting would never cease. It was no new experience for him to break in on one of Angy's jags, but things were

coming too high and fast with Pecos Dalhart present, and he decided to wait for his revenge until they were both thoroughly paralyzed.

"But what is this 'cumrad' talk and them yells for the revolution?" he soliloquized, as Angy and Pecos returned to their religion. "Is it a G. A. R. reunion or has Joe worked in a Mexican revolution on us? Yes, holler, you crazy fools; it'll be Old Crit's turn, when you come to pay the bills."

The first gray light of dawn was striking through the door when Crittenden tip-toed cautiously into the store and gazed about at the wreckage and the sprawling hulks of the revellers. Pecos lay on his face with his huge silver mounted spurs tangled in the potato sack that had thrown him; and Babe, his round moon-face and bald crown still red from his unrestrained potations, was draped along the bar like a shop kitten. Old Crit shook him roughly and, receiving no response, turned his attention to Pecos Dalhart. His first care was to snap the cartridges out of his six-shooter and jamb the action with a generous handful of dirt; then he felt his pockets over carefully, looking for his roll, for Pecos had undoubtedly consumed a great deal of liquor and ought not to be deprived of the cowboy's privilege of waking up broke. But as luck would have it he was lying upon his treasure and could not pay his reckoning. The only article of interest which the search produced was a grimy section of a newspaper, stored away in his vest pocket, and Crit seized upon it eagerly. It was a not uncommon failing of Texas bad men, as he knew them, to carry newspaper accounts of their past misdeeds upon their persons and he unfolded the sheet with the full expectation of finding a sheriff's offer of reward.

"*It's a crime to be Poor!!!*" was the heading, "And the penalty is hard labor for life!" it added, briefly. There is something in that, too; but philosophy did not appeal to Crittenden at the moment—he was looking for Pecos Dalhart's name and the record of his crime. "The grinding tyranny of the capitalistic classes—" he read, and then his eye ran down the page until he encountered the words: "Yours for the Revolution!" and "Subscribe for the *Voice of Reason!*" Then a great light came over him and he gnashed his teeth in a fury.

"Well, the dam', yaller, two-bit-a-year sheet!" he raved, snatching a fresh copy of the *Voice of Reason* from the sacred United States mail and hastily

scanning its headlines, "and if these crazy fools hain't gone and took it serious!" He tore it in two and jumped on it. "Two-bits a year!" he raged, "and for four-bits I could've got the *Fireside Companion*!" He rummaged around in the box and gathered up every copy, determined to hurl them into the fireplace, but on the way the yellow wrapper with the United States stamp arrested his eye, and he paused. After all, they were United States mail—penalty for destroying \$1,000—and would have to go back into the box.

"Well," he grumbled, dumping them sullenly back, "mebby it was that new bar'l of whiskey—I s'pose they've got to holler about something when they're drunk, the dam' eejits!" He strode up and down the floor, scowling at the unconscious forms of the roisterers who had beaten him the night before—then he turned back and laid violent hands upon Angy.

"Git off'n there, you low-down, lazy hound!" he yelled, dragging him roughly to the floor. "You *will* start a revolution and try to kill your boss, will you? *You're fired!*" he shouted when, after a liberal drenching, he had brought Babe back to the world.

"Well, gimme my pay, then," returned Angy, holding out his hand and blinking.

"You don't git no pay!" declared Crit, with decision. "Who's goin' to pay for all that liquor that was drunk last night? Look at them empty bottles, will you? You go and bring in all your friends and open up the town and the next mornin' I look in the till and they ain't a dam' cent!"

"Well, I want my pay," reiterated Babe, drunkenly. "I been workin' a long time, now—I'm goin' to draw my money an' go home! '*My mother's heart is breakin', breakin' f'r me, an' that's all—*'" he crooned, and, rocking to and fro on the floor, he sang himself back to sleep.

Old Crit watched him a moment, sneering; then with vindictive exultation he turned his attention to Pecos. "Git up," he snarled, kicking the upturned soles of his feet, "this ain't no bunk-house! Git out'r here, now; you been pesterin' around these parts too long!" He seized the prostrate cowboy by his broad shoulders and snaked him summarily out the door, where he lay sprawling in the dirt, like a turtle on its back, a mock of his strong, young

manhood. To the case-hardened Babe the venom of Old Crit's whiskey was no worse than a death-potion of morphine to an opium fiend, but Pecos was completely paralyzed by the poison. He responded neither to kicks and man-handling nor to frequent dashes of water and at last Crittenden dragged him out behind the corral and left him there, a sight for gods and men. The Garcia dogs crept up furtively and sniffed at him and the Señora pointed him out to her children as an awful example of *Texano* depravity, and also as the bad man who had corrupted their *papa*. Even Marcelina wavered in her secret devotion, but after he had finally clambered up on his horse and ridden blindly off toward Lost Dog Cañon the thought of those blue silk handkerchiefs, branded M, rose up in her mind and comforted her.

CHAPTER VIII

THE DAY AFTER

IN a land where the desert is king the prolonged absence of even so undesirable a citizen as Pecos Dalhart is sure, after a while, to occasion comment. For Pecos had ridden out on the Carrizo trail without water, and the barren mesa had already claimed its dead from thirst. He was also hardly in his right mind, and though his horse knew the way home he might easily have arrived there without his master. José Garcia was the first to mention the matter to Old Crit, and received a hearty cursing for his pains. Another week passed by, making three, and still the cowboy did not come in for his mail. The bunch of dissipated punchers who lingered around the bunk-house under pretence of riding the range finally worked up quite a hectic interest in the affair, but none of them volunteered to make a search. The chances were that Mr. Dalhart, if still alive, was in an ugly mood—perhaps locoed by Crit's well-known brand of whiskey—and it would be dangerous for an IC man to ride in on him. As for Crit, his asperity wore down a little as the days of absence lengthened away; he retracted several statements which he had made to the effect that he hoped the blankety-blank was dead, and when one of Boone Morgan's deputies finally rode in to investigate the rumor he told him he was afraid the poor fellow had wandered out across the desert and perished of hunger and thirst.

Bill Todhunter was Boone Morgan's regular mountain deputy—sent out to look into all such affairs as this, and incidentally to get evidence which would come handy in the big tax-collecting that was being planned for the fall. He asked a few questions, whistled through his teeth and pondered the matter for a while, meanwhile scrutinizing the hard countenance of his informant with the speculative cynicism of his profession. This was not the first sad case that he had looked into where a man who was not really needed in the community had mysteriously disappeared, and in one desert tragedy which he had in mind the corpse had assayed more than a trace of lead.

"Did this man Dalhart ever fill out that assessor's blank I left for 'im?" he inquired, after a long pause, meanwhile squatting down and drawing cattle brands in the dirt.

"Don't know," replied Crit, shortly.

"Let's see, his brand was a Wine-glass, wasn't it?"

"Nope—Monkey-wrench."

"Oh, yes! Sure! I knew they was two new irons in there, but I got 'em mixed. The Wine-glass is yourn, ain't it?"

Crittenden nodded sullenly. It was the particular phase of his relations with Pecos Dalhart which he would rather not discuss with an officer. As for the deputy, he spun the wheel in his spur, whistled "Paloma," and looked out toward the east.

"Has he got any mail here waitin' for 'im?" he asked, rising slowly from his heels. "Well, you better give it to me, then—and a little grub. I've always wanted to take a look at that Lost Dog country, anyway."

It was a long trail and the tracks were a month old, but Pecos's had been the last shod horse to travel it and what few cattle there were in the country had not been able to obscure the shoe-marks. Following those ancient signs Bill Todhunter worked his way gradually into what had been up to that time, No Man's Land, not forgetting to count the Wine-glass cattle as he passed the water holes. Not so many years before the Apaches had held full sway over all the Tonto and Verde country and when the first settlers came in they had naturally located along the rivers, leaving the barren mountains to the last. It was a long way from nowhere, that mysterious little Lost Dog Cañon, and when the deputy rode into it looking for a man whose trail was a month old he felt the sobering influence of its funereal cliffs. Black and forbidding, they bent bodingly over the tiny valley with its grove of cottonwoods and wild walnuts, and upon the western rim a squalid group of buzzards dozed as if they had made a feast. At the edge of the stream Todhunter reined in his horse, but though his flanks were gaunted the animal would not drink. Instead he raised his head and snuffed the air, curiously. It looked ominous, for they were at the end of the trail and the tracks still pointed in. The deputy spurred nervously across the stream, still with his eye out for signs,

and fetched up with a jerk. There, fresh and clean in the moist sand, were the imprints of a man's boots, coming down to the water—and not once or twice, but a dozen times.

"Ahem," coughed Todhunter, turning into the path, "stan' up hyar, bronc—what's the matter with you!" He jerked his unoffending horse out of the trail and clattered him over the rocks, for your true officer does not crowd in with drawn pistol on a man he cannot see. The deputy was strictly a man of peace—and he tried to look the part. His badge was pinned carefully to the inside flap of his vest and if he had a gun anywhere it did not show. He swung his quirt in one hand, idly slapping it against his chaps, and then, having offered every sign that he came openly and as a friend, he rode cautiously up to the camp.

There was a fire smouldering upon a stone-walled mound at the entrance to the cave and beside it, reclining in a rustic chair, sat Pecos Dalhart—watchful, silent, alert. In one hand he held a cigarette and the other supported a grimy newspaper which he had been reading. Behind him on tall poles were boxes filled with food, protected by tin cans, mushroomed out around the posts to keep the rats from climbing. His saddle was hung up carefully on a rack and his carbine leaned against the chair where he was sitting, but though he had seen no one for a month Pecos barely glanced up from his paper as the stranger drew near.

"How'd do," observed the deputy, sitting at ease in his saddle.

"Howdy," Pecos grunted, and languidly touching his dead cigarette to a coal he proceeded with his reading. Todhunter looked his camp over critically, took note of the amount of food stored in the rat-proof boxes and of the ingenious workmanship on the rustic chair; then his eyes wandered back and fixed themselves on Pecos. Instead of the roistering boy he had expected he beheld a full-grown man with a month's growth of curly beard and his jaw set like a steel-trap, as if, after all, he was not unprepared for trouble. His hat, however, was shoved back carelessly on his bushy head, his legs crossed, and his pose was that of elegant and luxurious ease. To the left arm of his chair he had attached a horse's hoof, bottom up, in the frog of which he laid his cigarettes; to the right was fastened a little box filled with tobacco and brown papers, and the fire, smouldering upon its altar, was just

close enough to provide a light. Evidently the lone inhabitant of the cañon had made every endeavor to be comfortable and was not above doing a little play-acting to convey the idea of unconcern, but the deputy sheriff did not fail to notice the carbine, close at hand, and the pistol by his side. It seemed to him also that while his man was apparently deeply immersed in his month-old paper, his eyes, staring and intent, looked past it and watched his every move. The conversation having ceased, then, and his curiosity having been satisfied, Bill Todhunter leaned slowly back to his saddle bags and began to untie a package.

"Are you Mr. Dalhart?" he inquired, as the cowboy met his eye.

"That's my name," replied Pecos, stiffly.

"Well, I've got s'm' papers for you," observed the deputy, enigmatically, and if he had been in two minds as to the way Pecos would take this statement his doubts were instantly set at rest. At the word "papers"—the same being used for "warrants" by most officers of the law—the cowboy rose up in his chair and laid one hand on the butt of his revolver.

"Not for me!" he said, a cold, steely-blue look comin' into his eyes. "It'll take a better man than you to serve 'em!"

"These are newspapers," corrected the deputy, quietly. "Yore friends down on the Verde, not havin' seen you for some time, asked me to take out yore mail and see if you was all right."

"Oh!" grunted Pecos, suspiciously.

"And, bein' as you seem to be all O. K.," continued Todhunter, pacifically, "I'll jest turn 'em over to you and be on my way." He threw the bundle at his feet, wheeled his horse and without another word rode soberly down the trail.

"Hey!" shouted Pecos, as the stranger plunged through the creek, but if Todhunter heard him he made no sign. There are some people who never know when to go, but Bill Todhunter was not that kind.

"No, you bet that feller ain't dead," he observed, when Crittenden and the chance residents of Verde Crossing gathered about him to hear the news.

"He's sure up an' comin', and on the prod bigger 'n a wolf. I wouldn't like to say whether he's quite right in the head or not but I reckon it'll pay to humor 'im a little. He'll be down here for grub in about another week, too."

The week passed, but not without its happenings to Verde Crossing. The first event was the return of Angevine Thorne from Geronimo, after a prolonged stay in the city Bastile. Crit sent the bail money down by Todhunter immediately upon hearing the news that Pecos Dalhart was alive and on the prod. The only man on the Verde who had any influence with Pecos was his old "cumrad," Babe, and Crittenden was anxious to get that genial soul back before Pecos came in for supplies. But the same buckboard that brought the Champion of Arizona back to his old haunts took his little friend Marcelina away, and the only reason the Señora would give was that her daughter was going to school. In vain Babe palavered her in Spanish and cross-questioned the stolid José. The fear of her lawless wooer was upon them—for were they not in debt to Crit—and not even by indirection would the fiery Señora give vent to the rage which burned in her heart.

"This is not a good place for my daughter," she said, her eyes carefully fixed upon the ground. "It is better that she should go to the Sisters' school and learn her catechism." So Marcelina was sent away from the evil men of Verde, for she was already a woman; but in the haste of packing she managed to snatch just one of the forbidden blue handkerchiefs, branded M.

It was a sombre welcome which awaited the lone rustler of Lost Dog Cañon when, driven perforce to town, he led his pack-horse up to the store. For a minute he sat in his saddle, silent and watchful; then, throwing his bridle-reins on the ground, he stalked defiantly through the door. A couple of IC cowboys were sitting at the card-table in the corner, playing a three-handed game of poker with Angy, and at sight of him they measured the distance to the door with their eyes.

"W'y, hello there, Pecos!" cried Angy, kicking over the table in his haste to grasp him by the hand. "Where you been all the time—we thought for a time here you was dead!"

"Might as well 'a been," said Pecos, gruffly, "for all anybody *give* a dam'!"

"Why? What was the matter? Did you git lost?"

"I lay out on the mesa for two days," answered the cowboy, briefly, "and about a month afterwards a feller come out to my camp to see if I was dead. This is a hell of an outfit," he observed, glancing malevolently at the IC cowboys, "and by the way," he added, "where was *you* all the time, Angy?"

Angevine Thorne's lips trembled at this veiled accusation and he stretched out his hands pleadingly. "I swear, Pardner," he protested, "I never heard a word about it until last Saturday! I was in the Geronimo jail."

"Oh!" said Pecos, and without more words he gave him his own right hand. The cowboys, who had been uneasy witnesses of the scene, seized upon this as a favorable opportunity to make their escape, leaving the two of them to talk it out together.

"What in the world happened to us, Angy?" demanded Pecos in a hushed voice, when the effusion of reconciliation had passed, "did Crit put gun-powder in our whiskey or was it a case of stuffed club? I was plumb paralyzed, locoed, and cross-eyed for a week—and my head ain't been right since!" He brushed his hand past his face and made a motion as of catching little devils out of the air, but Angy stayed his arm.

"Nothin' like that, Pecos," he pleaded, hoarsely, "I'm on the ragged edge of the jim-jams myself, and if I get to thinkin' of crawly things I'll sure get 'em! No, it was jest that accursed liquor! I don't know what happened—I remember Crit takin' me down to Geronimo and givin' me five dollars and then it was all a dream until I found myself in the jag-cell. But it's the liquor that does it, Pecos—that and the capitalistic classes and the officers of the law. They's no hope for the common people as long as they keep on drinkin'—there's always some feller like Crit to skin 'em, and the constables to run 'em in. It's a conspiracy, I tell you; they're banded together to drug and rob us—but, Pardner, there is one man who is going to balk the cowardly curs. Never, never, never, will I let another drop of liquor pass my lips!" He raised his hand to heaven as he swore the familiar oath, hoping and yet not hoping that some power would come down to him to help him fight his fate. "Will you join me, Cumrad?" he asked, laying hold of Pecos's shoulder. "You will? Well, let's shake on it—here's to the revolution!"

They shook, and turned instinctively toward the bar, but such a pledge cannot be cemented in the usual manner, so Angy led the way outside and

sought a seat in the shade.

"Where's my little friend Marcelina?" inquired Pecos, after a long look at the white adobe with the brush *ramada* which housed the Garcia family, "hidin' behind a straw somewhere?"

"Gone!" said Angy, solemnly. "Gone, I know not where."

"What—you don't mean to say—" cried Pecos, starting up.

"Her mother sent her down to Geronimo the day that I came up," continued Babe, winking fast. "It looks as if she fears my influence, but she will not say. Poor little Marcelina—how I miss her!" He wiped his eyes with the back of his hand and shook his head sadly. "Verde ain't been the same to me since then," he said, "an' life ain't worth livin'. W'y, Pecos, if I thought we done something we oughten to when we was drunk that time I'd go out and cut my throat—but the Señora is powerful mad. Kin you recollect what went on?"

A vision of himself trying to barter his mail-order package for a kiss flashed up before Pecos in lines of fire, but he shut his lips and sat silent. The exaltation and shame of that moment came back to him in a mighty pang of sorrow and he bowed his head on his arms. What if, in the fury of drink and passion, he had offered some insult to his Señorita—the girl who had crept unbeknown into his rough life and filled it with her smile! No further memory of that black night was seared into his clouded brain—the vision ended with the presentation of the package. What followed was confined only to the limitations of man's brutal whims. For a minute Pecos contemplated this wreck of all his hopes—then, from the abyss of his despair there rose a voice that cried for revenge. Revenge for his muddled brain, for the passion which came with drink: revenge for his girl, whom he had lost by some foolish drunken freak! He leapt to his feet in a fury.

"It's that dastard, Crit!" he cried, shaking his fists in the air. "He sold us his cussed whiskey—he sent us on our way! And now I'm goin' to git him!"

Angy gazed up at him questioningly and then raised a restraining hand.

"It's more than him, Cumrad," he said solemnly. "More than him! If Crit should die to-morrow the system would raise up another robber to take his

place. It's the System, Pecos, the System—this here awful conspiracy of the capitalistic classes and the servile officers of the law—that keeps the poor man down. Worse, aye, worse than the Demon Rum, is the machinations which puts the power of government into the monopolistic hands of capital and bids the workingman earn his bread by the sweat of his brow. There is only one answer to the crime of government—the revolution!"

"Well, let 'er go then," cried Pecos, impulsively. "The revolution she is until the last card falls—but all the same I got my eye on Crit!"



CHAPTER IX

DEATH AND TAXES

THE iron hand of the law after hovering long above the Verde at last descended suddenly and with crushing force upon the unsuspecting cowmen. For a year Boone Morgan had been dallying around, even as other sheriffs had done before him, and the first fears of the wary mountain men had speedily been lulled into a feeling of false security. Then the fall round-ups came on and in the general scramble of that predatory period Morgan managed to scatter a posse of newly appointed deputies, disguised as cowboys, throughout the upper range. They returned and reported the tally at every branding and the next week every cowman on the Verde received notice that his taxes on so many head of cattle, corral count, were due and more than due. They were due for several years back but Mr. Boone Morgan, as deputy assessor, deputy tax-collector, and so forth, would give them a receipt in full upon the payment of the fiscal demand. This would have sounded technical in the mouth of an ordinary tax-collector but coming from a large, iron-gray gentleman with a six-shooter that had been through the war, it went. Upton paid; Crittenden paid; they all paid—all except Pecos Dalhart.

It was at the store, shortly after he had put the thumb-screws on Ike Crittenden and extracted the last ultimate cent, that Boone Morgan tackled Pecos for his taxes. He had received a vivid word-picture of the lone resident of Lost Dog from his deputy, Bill Todhunter, and Pecos had been equally fortified against surprise by Angevine Thorne. They came face to face as Pecos was running over the scare-heads of the *Voice of Reason*, and the hardy citizens of Verde Crossing held their breaths and listened for thunder, for Pecos had stated publicly that he did not mean to pay.

"Ah, Mr. Dalhart, I believe," began the sheriff in that suave and genial manner which most elected officials have at their command. "Glad to meet you, Mr. Dalhart. There's a little matter of business I'd like to discuss, if you'll jest step outside a moment. Yes, thank you. Nice weather we're

having now—how's the feed up on your range? That's good—that's fine. Now, Mr. Dalhart, I don't suppose you get your mail very regular, and mebbly you ain't much of a correspondent anyway, but my name's Morgan—I'm a deputy tax-collector right now—and I'd like to have you fill out this blank, giving the number of assessable cattle you have. Sent you one or two by mail, but this is jest as good. Sorry, you understand, but the county needs the money."

"Yes, I'm sorry, too," observed Pecos, sardonically, "because it'll never git none from me."

"Oh, I dunno," replied the sheriff, sizing his man up carefully, "Geronimo County has been able to take care of itself, so far; and when I put the matter in its proper light to men who have been a little lax in the past—men like Upton and Mr. Crittenden, for instance—they seem perfectly willing to pay. These taxes are to support the county government, you understand—to build roads and keep up the schools and all that sort of thing—and every property-owner ought to be glad to do his share. Now about how many head of cows have you got up at Lost Dog Cañon?"

"I've got jest about enough to keep me in meat," answered Pecos, evasively.

"Um, that'd be about two hundred head, wouldn't it?"

Two hundred was a close guess, and this unexpected familiarity with his affairs startled the cowboy, but his face, nevertheless, did not lose its defiant stare. Two hundred was really the difference between what U cows Upton had lost last spring and the total of Crittenden's Wine-glass bunch, and Boone Morgan was deeply interested in the whereabouts of that particular two hundred head. To Old Crit, this tax-collecting was only a mean raid on his pocket-book—to Morgan it was the first step in his campaign against cattle rustling. When he had determined the number of head in every brand he might be able to prove a theft—but not till then.

"Call it two hundred," he suggested, holding out the paper encouragingly, but Pecos drew back his hand scornfully.

"Not if it was a cow and calf," he said, "I wouldn't pay a cent. D'ye think I want to pay a government of robbers? What does yore dam' government do for me, or any other pore man, but make us trouble?"

"Well, sometimes that's all a government can do for a certain class of people," observed the sheriff, eyeing him coldly, "and I'd like to say right now, Mr. Dalhart, that in such a case it can make a hell of a lot of trouble."

Pecos grunted.

"Now, jest for instance," continued Morgan, warming up a little, "in case you don't pay your taxes on them two hundred head of cattle I can get judgment against you, seize any or all of 'em, and sell the whole shooting-match for taxes. I'll do it, too," he added.

"Well, turn yoreself loose, then," flared back Pecos, "the bars are down. But I'll tell you right now, the first deputy tax-collector that puts a rope on one of my cows, I'll bounce a rock off'n him—or something worse!"

"I ain't accustomed to take no threats, Mr. Dalhart," bellowed Boone Morgan, his temper getting away with him, "and especially from a man in your line of business! Now you go your way, and go as far as you please, but if I don't put the fear of God into your black, cattle-rustling heart my name is 'Sic 'em' and I'm a dog. I'll collect them taxes, sir, *next week!*"

"Like hell you will," snarled Pecos, throwing out his chin. He scowled back at the irate officer, cast a baleful glance at the IC punchers, and mounted from the far side of his horse, but when he rode away Ike Crittenden went out behind the corral and laughed until he choked. After all the trouble this man Dalhart had made him, just to think of him locking horns with Boone Morgan! And all from his crazy reading of the *Voice of Reason*! The memory of his own enforced tax-paying fell away from him like a dream at the thought of Pecos Dalhart putting up a fight against the sheriff of Geronimo County, and on the strength of it he took a couple of drinks and was good-natured for a week.

If Pecos had had some self-appointed critic to point out just how foolish he was he might have seen a new light, gathered up about twenty head of Monkey-wrench steers and sold them to pay his taxes; but his only recourse in this extremity was to the *Voice of Reason*, and whatever its other good qualities are, that journal has never been accused of preaching moderation and reason. It was war to the knife with Pecos, from the jump, and the day after his return he took his carbine, his cigarette makings, and the last *Voice*

of Reason and went up the trail to lie in wait for Boone Morgan. The country around Lost Dog Cañon is mostly set on edge and the entrance to the valley is through a narrow and crooked ravine, filled with bowlders and faced with sun-blackened sandstone rocks, many of which, from some fracture of their weathered surface, are pock-marked with giant "wind-holes." Into one of these natural pockets, from the shelter of which a single man could stand off a regiment, Pecos hoisted himself with the dawn, and he did not leave it again till dark. As the wind came up and, sucking in through the opening, hollowed out each day its little more, the loose sand from the soft walls blew into Pecos's eyes and he gave up his fervid reading; but except for that and for the times when from the blackness of his cavern he searched the narrow trail for his enemies, he pored over the *Voice of Reason* as a Christian martyr might brood over his Bible. It was his religion, linked with that far more ancient religion of revenge, and if Boone Morgan or any other deputy tax collector had broken in upon his reveries they certainly would have stopped something worse than a bouncing stone.

But no one played into his hand to that extent. They say the Apaches educated the whole United States army in the art of modern warfare and Boone Morgan as a frontier Indian fighter had been there to learn his part. In the days when Cochise and Geronimo were loose he had travelled behind Indian scouts over all kinds of country, and one of the first things he had mastered was the value of high ground. He had learned also that one man in the rocks is worth a troop on the trail and while he was gathering up a posse to discipline Pecos Dalhart he sent Bill Todhunter ahead to prospect. For two long days that wary deputy haunted the rim-rock that shut in Lost Dog Cañon, crawling on his belly like a snake, and at last, just at sundown, his patience was rewarded by the sight of the lost Pecos, carbine in hand, rising up from nowhere and returning to his camp. As the smoke rose from his newly lighted fire Todhunter slipped quietly down the ravine and, stepping from rock to rock, followed the well-trampled trail till he came to the mouth of the wind-cave. Peering cautiously in he caught the odor of stale tobacco smoke and saw the litter of old papers on the sandy floor, signs enough that Pecos lived there—then, as the strategy and purpose of the cattle-rustler became plain, he picked his way back to his lonely camp and waited for another day. With the dawn he was up again and watching, and when he saw Pecos come back and hide himself in his wind-cave he straightened up

and set about his second quest—the search for the Monkey-wrench cattle. At the time of his first visit to Lost Dog he had seen a few along the creek but there must be more of them down the cañon, and the farther away they could be found the better it would suit his chief. It was not Boone Morgan's purpose to start a war—all he wanted was enough Monkey-wrench cattle to pay the taxes, and a way to get them out. The indications so far were that Pecos had them in a bottle and was waiting at the neck, but if the water ran down the cañon there must be a hole somewhere, reasoned the deputy, or better than that, a trail. Working his way along the rim Bill Todhunter finally spied the drift-fence across the box of the cañon, and soon from his high perch he was gazing down into that stupendous hole in the ground that Pecos had turned into a pasture. From the height of the towering cliffs the cattle seemed like rabbits feeding in tiny spots of green, but there they were, more than a hundred of them, and when the deputy beheld the sparkling waters of the Salagua below them and the familiar pinnacles of the Superstitions beyond he laughed and fell to whistling "Paloma" through his teeth. Boone Morgan had hunted Apaches in the Superstitions, and he knew them like a book. With one man on the rim-rocks to keep tab on Pecos, Boone and his posse could take their time to it, if there was any way to get in from that farther side. Anyhow, he had located the cattle—the next thing was to get word to the Old Man.

As a government scout Boone Morgan had proved that he was fearless, but they did not keep him for that—they kept him because he brought his men back to camp, every time. The effrontery of Pecos Dalhart's daring to challenge his authority had stirred his choler, but when Bill Todhunter met him at the river and told him how the ground lay he passed up the temptation to pot Pecos as he crawled out of his hole in the rock, and rode for the lower crossing of the Salagua. The trail which the hardy revolutionist of Lost Dog Cañon was guarding was, indeed, the only one on the north side of the river. From the pasture where his cows were hidden the Salagua passed down a box cañon so deep and precipitous that the mountain sheep could not climb it, and even with his cowboy-deputies Boone Morgan could hardly hope to run the Monkey-wrench cows out over the peaks without drawing the fire of their owner. But there was a trail—and it was a bad one—that led across the desert from the Salagua until it cut the old Pinal trail, far to the south, and that historic highway had led many a

war party of Apaches through the very heart of the Superstitions. East it ran, under the frowning bastions of the great mountain, and then northeast until it came out just across the river from Pecos Dalhart's pasture. It was a long ride—sixty miles, and half of it over the desert—but the river was at its lowest water, just previous to the winter rains, and once there Boone Morgan felt certain they could make out to cross the cattle.

"And mind you, boys," he said to his posse, as they toiled up the wearisome grade, "don't you leave a single cow in that pasture or I'm going to be sore as a goat. The county pays mileage for this, and the taxes will be a few cents, too—but I'm going to put one rustler out of business at the start by a hell-roaring big sheriff's sale. I'm going to show some of these Texas hold-ups that Arizona ain't no cow-thief's paradise—not while old Boone's on the job."

The second night saw them camped on the edge of the river just across from the pasture, and in the morning they crossed on a riffle, every man with his orders for the raid. By noon the cattle began to come down the valley, tail up and running before the drive; not a word was spoken, for each man knew his business, but when the thirsty herd of Monkey-wrench cows finally waded out into the river to drink, a sudden rush of horsemen from behind crowded the point animals into swimming water, and before the leaders knew what had happened they were half way across the river and looking for a landing.

"*Ho—ho—ho—ho—ho!*" shouted the sheriff, riding in to turn them upstream, and behind him a chorus of cowboy yells urged the last bewildered stragglers into the current. They crossed, cows and calves alike, and while the jubilant posse came splashing after them or rode howling up to the ford Boone Morgan poured the water out of his boots and smiled pleasantly.

"Jest hold 'em in the willows a while, boys," he said, "until they git quieted down and drink, and then we'll hit the trail. There's over a hundred head of cattle there, but I'm going to sell every dam' one of 'em—sheriff's sale. Then when that crazy Texican gets back on the reservation I'll give him back his money—what's left—along with some good advice."

He motioned to the boys to string the cattle out and soon in a long line the much-stolen Monkey-wrench cows were shambling over the rough trail, lowing and bellowing for the peaceful valley that lay empty of its herd. From the high cliffs above Lost Dog Cañon, Bill Todhunter saw the slow procession wending its way toward town and he made haste to follow its example. The old silence settled down upon the valley of Perro Perdido, a silence unbroken even by the lowing of cattle, and as Pecos lay by his fire that night he felt the subtle change. His mind, so long set against his enemies, opened up, and he began to wonder. Boone Morgan had certainly said he would collect those taxes within a week, and the week was up. Moreover, hiding in a wind-hole from daylight till dark was getting decidedly monotonous. From the beginning Pecos had realized that he was one man against many but he had hoped, by remaining hid, to catch them at a disadvantage. If they sneaked up and looked over into the lonely cañon they might easily think he had fled and come in boldly—but somehow nothing came out as he had expected. He slept on the matter, and woke again to that peculiar hushed silence. What was it that he missed? His horses were safe in their pole corral; Old Funny-face and her speckled calf were still hanging around the camp; the cattle were along the creek as usual—ah, yes! It was the lowing of cows against the drift-fence bars! With a vigorous kick he hurled his blanket aside, stamped on his boots and ran, only stopping to buckle on his six-shooter. At the bars he paused long enough to see that there were no fresh tracks and then dashed down the pent-in gorge that led to the pasture rim. The shadow of the high cliffs lay across the sunken valley like a pall, but there were no humped-up cattle sleeping beneath the trees. It was time for them to be out and feeding in the sun, but the meadows and hillsides were bare. He was astounded and could not believe his eyes—the pasture was empty as the desert. Cursing and panting Pecos plunged madly down the steep trail until he came to the first water, and there he threw down his gun and swore. Fresh and clean on the margin of the water-hole was the track of a shod horse, pointing toward the river! It was enough—Pecos knew that he was cleaned! Indians and mountain renegades do not ride shod horses, and if Boone Morgan had his cows across the river already he could never get them back. Another thought came to Pecos, and he scrambled wildly up the trail to defend his remaining herd, but there was no one there to fight him—his upper cattle were safe. Yet how long would it take to get them, in order to finish him up?

All Boone Morgan and Upton had to do was to wait until he went down to the store for provisions and then they could rake his upper range the same way. And would they do it? Well, say! Pecos pondered on the matter for a day or two, keeping mostly behind the shelter of some rock, and the sinister import of Morgan's remarks on what a government can do for a certain class of people bore in upon him heavily. Undoubtedly he was included in that class of undesirables and if he was any reader of character Boone Morgan was just the kind of a man to make him a lot of trouble. Upton was against him because he had stolen his U cows, and Crit was against him worse because he had given him the cross—every cowman on the range would be against him because he was a rustler. Pecos watched the rim-rock vindictively after that, hoping to get a chance to pot some meddlesome cowman, but no inquisitive head was poked over. At last he stole up the ravine one morning and took to the high ground at dawn. There, sure enough, were the boot-marks among the rocks and he noticed with a vague uneasiness that some one had been watching him for days—watching his wind-hole, too,—probably could have shot him a hundred times, but now the tracks were old. A hot and unreasonable resentment rose up in Pecos at the implication. Nobody cared for him now, even to the extent of watching him! He could crawl into his hole and die now, and everybody would just laugh. Well, he would show Mr. Everybody what kind of a sport he was. After which circumlocuted reasoning Pecos Dalhart, the bad man from Perro Perdido Cañon, being really lonely as a dog, threw the saddle on his horse and hit the trail for the Verde.

CHAPTER X

STAMPEDED

FOR two weeks after Pecos Dalhart disappeared into the wilderness Angevine Thorne spent the greater part of his time sitting in the doorway of the store with his eyes fixed upon the tiny notch where the Carrizo trail cut down through the mesa's rim. Never, until that day when he had defied Boone Morgan, had Angy realized the heroic devotion of his comrade to the cause of the revolution, and his heart was strong to help him, even at the risk of his job. If Crit would only have let him have a horse he would have gone to Lost Dog Cañon long ago, to carry the news of Morgan's raid and his subsequent visit to Verde Crossing in search of Pecos, but lacking any means of travel he had to be content to wait and watch the trail. The two weeks passed drearily and still, as each afternoon wore on, Babe seated himself in the shade of the brush *ramada* and speculated upon the fate of Pecos. But in this he was not alone. Early in the game Isaac Crittenden had noted the set gaze of his faithless roustabout, and though he still rode out with his cowboys, he also managed to keep his one eye cocked on the eastern horizon, for he had interests in those parts. There were a hundred head of Monkey-wrench cattle still running loose in Lost Dog Cañon, and that would make good pickings if Pecos went over the road. As to what particular road the cattle-rustler took, whether to the pen or parts unknown, or to his home on high, was immaterial to Isaac Crittenden, providing always that he heard about it first. A bunch of mavericks without an owner was likely to get snapped up quick in those parts—John Upton might turn out to be the lucky man, but not if I. C. knew himself, and he thought he did.

It is a long day's ride from Lost Dog Cañon—dragging a pack-animal a man would get in about sundown—and as the days wore on Crittenden made it a point to ride so that he could cut the Carrizo trail between four and five. This was a desperate game that he was playing, for Pecos Dalhart was undoubtedly in an ugly mood; but a little nerve will carry a man a long way sometimes, and at a pinch Crit could shoot a gun himself. So it happened

that on the day that Pecos rode to the edge of the bench and sat looking down doubtfully upon the distant Verde Crossing, he heard a horse pounding in on his right and finally made out Isaac Crittenden, in wild and unnecessary pursuit of a cow. At a suitable distance the cowman looked up, let his cow go, and ambled cautiously over toward his former agent. Holding his hands in sight to show that his intentions were pacific, he came in closer and at last motioned to Pecos to come away from the mesa rim.

"What's the matter with you?" he called, frantically repeating his signal. "D' you want to let Boone Morgan see you?"

"Boone Morgan?" repeated Pecos, reining in his horse. "Why—what—"

"Haven't you heard the news?" demanded Crittenden, hectoringly. "Boone Morgan took a hundred head of your Monkey-wrench critters down the Pinal trail, and every dam' one of 'em had been burnt over from a U. He was up here inquirin' for you a day or two ago."

Their eyes met and Pecos tried to pass it off in bravado, but Crit had him at a disadvantage. "The best thing you can do is drift," he observed, meaningly.

"Oh, I don't know," said Pecos, "I got a hundred head an' more of cows over in Lost Dog Cañon yet. What'll you—"

"They ain't worth a dam'," cut in Crittenden, harshly.

"No, I know they ain't," assented the cowboy, patiently, "not to me—but to a man with a big outfit they'd be worth about fifteen hundred dollars."

"Well, *I* don't want 'em," snapped Crit. "I got troubles enough, already, without hidin' out from Boone Morgan."

"I'll sell you that brand cheap," supplicated Pecos, but the cowman only showed his teeth in derision.

"Wouldn't take 'em as a gift," he said, shortly.

"Well, go to hell, then!" snarled the rustler, and jerking his horse around he started toward Verde Crossing.

"Hey, where you goin'?" called Crittenden, but Pecos did not reply. "You'll git into trouble," he persisted, following anxiously after him. "Say, do you want to break into jail?"

Pecos halted on the rim of the mesa, turned deliberately about and faced him.

"No," he said, "do you?"

"Why, what d' you mean?" demanded the cowman, leaving off his blustering and coming nearer.

"Well, if they throw me in I'll tell all I know," replied Pecos. "That's all. They may soak me for the Monkey-wrenches, but I'll sure git you on them Wine-glasses, so you better not try any funny business. What I'm lookin' for now is travellin' expenses—I'm not so stuck on this country that I couldn't be induced to leave it!"

"No-o," sneered the cowman, "I don't reckon you are. They ain't a man between Tonto and the Gila that don't know you for a rustler now. More 'n that, you've defied the officers of the law. No, Mr. Dalhart," he said, a cold glint coming into his eye, "I won't give you a dam' cent for your burnt-over cattle and if you take my advice you'll hit the high places for New Mexico."

"Well, I won't take it, then," replied Pecos, sullenly. "I'm goin' down to the Crossing to see Angy and—hey! there's the old boy now, flaggin' me from the store. Well, good-bye, old Cock Eye, don't worry about me none, I know my way around!" He favored his former employer with a flaunting gesture of farewell, leaned over to catch the forward jump of his horse, and went scampering down the slope and across the level, yipping playfully at every bound.

"Well, the blank-blanked fool!" exclaimed Crittenden, slapping his leg viciously with his quirt at this sudden wrecking of his hopes. "Well, *dam'* 'im, for a proper eejit!" He ground his teeth in vexation. "W'y, the crazy dum-head!" he groaned, as the cloud of dust receded. "Boone Morgan is shore to come back to the Crossing to-night and catch 'im in the store! Him and that booze-fightin' Angy—I got to git rid of him—but what in the world am *I* goin' to do?"

From his station on the edge of the mesa he could see the dust to the east where his cowboys were bringing the day's beef-cut down to the river and then, far up toward the northern pass, a couple of horsemen jogging down the Tonto trail. Boone Morgan rode a bay horse, and one of these was solid color, but the other rode an animal that showed a patch of white—looked kind of familiar, too. He watched them until they showed up clear against a clay-bank and then, making sure that the man on the bay was Morgan, he spurred across the flat to the store. Whatever happened, he must be sure to get Pecos out of town, for Upton had been talking Wine-glass to Morgan, and they might summon him for a witness.

There was a sound of clanking glasses inside the door as Crittenden rode up, and the voice of Angevine Thorne, flamboyantly proclaiming a toast.

"Then here's to the revolution," he ended up, "and a pleasant journey to you, Cumrad, wherever you go!"

They drank, and Crit, sitting outside on his horse, slapped his thigh and laughed silently. "A pleasant journey," eh? Well, let it go at that and he would put up the whiskey.

"You'll be sure and write me often," continued Angy, caressingly, "and I'll send your *Voice of Reason* to you, so you can keep up with the times."

"All right, Pardner," answered Pecos, "but say, give Marcelina my best and tell her I'll be back in the spring. Tell 'er something real nice for me, Angy, will you? Aw, to hell with the cows; it'll be her I come back for! Gittin' a little too warm for me right now, but I'll be here when she comes home in the spring. Well, let's take another drink to the sweetest little girl that ever lived and then I'll be on my way!" The glasses clicked again and as Angy began another peroration Old Crit pulled his horse around with an oath and started up the road. So that was why he had been turned down by Marcelina—Pecos was making love to her while he was gone! And he'd be back in the springtime, eh? Well, not if there was room in the county jail and Boone Morgan would take him down! Hot with his new-made scheme for revenge he spurred his horse to a gallop and was just swinging around the first turn in the trail when he fetched up face to face with Morgan and John Upton!

The world is full of hatred in a thousand forms but there is none more bitter than that between two men who have seen a former friendship turn to gall and wormwood. So bitter was the enmity between Upton and Old Crit that it needed but the time and occasion to break out into a war. Short, freckle-faced, and red-headed, with a week's growth of stubby beard and a clear green eye, John Upton was not a man that one would pick for an enemy, and the single swift move that he made toward his pistol expressed his general sentiments plainer than any words. As for Crittenden, his emotions were too badly mixed to lead to action, but the one-eyed glare which he conferred upon his cow-stealing rival convinced Boone Morgan at a glance that Old Crit was dangerous.

"I'd like to have a word with you, Mr. Crittenden," he said, taking command on the instant, "and since Mr. Upton is interested in this matter I have asked him to come along down. We won't discuss the business I have in hand until we get to town, but now that I've got you two gentlemen together I'd like to ask you to be a little more careful about your branding. My deputies reported to me that on the last round-up calves were found bearing a different iron from their mothers and that mavericks were branded on sight, anywhere on the open range. The law provides, as you know, that no cow-brute can be branded anywhere except in a corral or at a round-up and no man has the right to brand any maverick, *orejano*, leppy, or sleeper except in the presence and with the consent of witnesses. There have been certain irregularities up here in the past, as is to be expected in a new country, but I want to tell you right now that in the future I'm going to hold you cowmen to the law. I was elected and sworn in to uphold the peace and dignity of Geronimo County, so if you have any little feuds or differences to work off, I'll thank you to do it outside my jurisdiction."

He paused, and as they rode down the broad trail that merged into Verde's main street the rival cattle kings exchanged malignant glances behind his broad and soldierly back. But the sheriff's eyes were to the fore and at sight of Pecos Dalhart's horse tied to the ground in front of the store he chuckled to himself.

"Well, well," he said, reaching down into his inside vest pocket, "I'm just in time to deliver these papers—or am I mistaken in thinking that that hoss yonder belongs to Mr. Dalhart?" He glanced across at Crittenden, who

shrugged his shoulders and scowled. "Quite correct, eh? Well, then, if you gentlemen will excuse me for a moment I'll go in and see Mr. Dalhart."

He swung down from his horse with military precision and strode toward the door, carrying a bulky official envelope in his left hand and a cigar stump in his right, but just as he crossed the threshold Pecos Dalhart, startled by his voice, dodged out the back way and ran around the store. It was a break for liberty with him and he took no thought of the cost. Three seconds after the sheriff entered the doorway he came tearing around the corner, heading for his horse. At sight of Upton and Old Crit he paused and reached for his gun—for one tense moment they glared at each other—then, flinging himself into the saddle and hugging his horse's neck, Pecos went spurring away down the trail, reckless of everything but the one main chance of escape.

"Hey! Wait a minute!" roared Boone Morgan, dashing out the doorway and waving his envelope. "Come back heah, you pore dam' fool! Well, don't that beat the devil?" he inquired, turning to Crit and Upton. "*I* didn't have no warrant for him! No! I jest wanted—" he paused and, noticing the wolfish eagerness with which the cowmen awaited his final words, he suddenly changed his mind. "Well, what's the difference," he grumbled, tucking the big envelope back into his pocket, "he'll keep." He followed the cloud of dust that stood for Pecos Dalhart until it tore up over the rim of the mesa and disappeared, and a deep and subterranean rumbling in his chest paid tribute to the joke. There was something like a thousand dollars in that big official envelope—the balance of the Monkey-wrench tax sale—and all he wanted of Pecos was his written receipt for the money.

CHAPTER XI

THE CATTLE WAR

WHEN Pecos Dalhart, flying from his own evil conscience, went stampeding out into the wilderness, Isaac Crittenden and John Upton gazed after him with but a single thought—who would get his cattle? With Pecos out of the way, Crittenden saw a clear field ahead of him in the Lost Dog country and he joined Morgan in a throaty laugh, but Upton viewed his mad flight with disappointment and chagrin.

"Well, laugh then, you robber," he snarled, turning angrily on Crit, "I s'pose it tickles you to death to see that dam' cow-thief hit the pike—he might talk and git you into trouble. Say, Mr. Morgan," he protested, "ain't you takin' quite a responsibility onto yourself to let that man git away?—you know what we came down here for," he added, jerking his head toward Crit.

"Well, what did you come down here for, you little sawed-off runt?" demanded Crittenden, belligerently. "Hollerin' around, as usual, I s'pose!"

"I come down here to find out about them U cows of mine that you branded into a Wine-glass," retorted Upton, "but you and the sheriff here seem to have some kind of an understandin', lettin' the principal witness git away, and all that, so I reckon I better pull."

"Not before you eat them words, Mr. Upton," cut in the sheriff, fiercely. "I don't let no man make insinuations like that about me without callin' on him to retract—and I ain't never been disappointed yet!"

"Well, you jest let that Dalhart feller git away, didn't you?" demanded Upton, defiantly.

"I certainly did, sir," replied Boone Morgan, with ponderous dignity, "and when you git ready to start I shall accord you the same courtesy! There are no papers out for Mr. Dalhart and unless I detect him in some breach of law or receive a warrant for his arrest I've got no right to lay a finger on him.

Now you know very well I've got no understanding with Crittenden, and I'm goin' to ask you to apologize for that statement you jest made."

"Well, I didn't mean no offence," protested the cowman, meekly, "and I apologize, all right—but at the same time it don't seem right to let that dam' cattle-rustler git away like that."

"No," responded the sheriff, with heavy sarcasm, "it don't. But bein' as he's gone you *cowmen* will have a chance to show what good citizens *you* are. I don't know jest what Mr. Dalhart's plans are, but when it comes around to the spring round-up I want to find every one of them Monkey-wrench cattle *thar*! He's paid his taxes in full and he's entitled to the full protection of the law, so long as he keeps the peace. You hear me talking, now; this brand-burnin' has gone far enough."

"But how about them U cows I lost?" put in Upton, pertinently. "Do Crit and this Pecos Dalhart git to keep all the critters they stole?"

"Stole, nothin'!" retorted Crittenden hotly. "How about them J I C cows of yourn?"

"You make a business of burnin' my brand!" rejoined Upton, shaking his finger threateningly. "You hire men to rob me and rake my whole upper range! I'm losin' more now than I did when the Apaches was in the hills; but I'll git even with you yet, you dam', humped-back old cow-thief!"

"Well, I see you gentlemen are goin' to keep on quarrellin'," observed Boone Morgan, picking up his bridle-rein, "and I might as well go on about my business. You got no more respect for the law, either one of you, than a common cattle-rustler, and I'm goin' to quit wrastlin' with you, right now. But you can cut this out and paste it in your hats—the first man that steals a cow in Geronimo County, and I catch 'im, is goin' to git the limit. Angy, gimme a bag of crackers and some of that jerked beef—I'm tired of hearin' this yawp."

So genuine was his disgust that Boone Morgan plunged through the cold river at nightfall and took the long trail for Geronimo, but the memory of his last words lingered in the minds of the warring cowmen for many a day, and though Pecos Dalhart was known to be over in New Mexico somewhere his Monkey-wrench herd remained safe in Lost Dog Cañon. As

for the sheriff, having abandoned all idea of peace, he transacted his business in the mountains by deputy and sat quiet in Geronimo, waiting only for the first break to come back and make his word good. It had a wonderful restraining influence upon Crit and Upton, this prolonged and ominous absence, but as spring came on and the new crop of calves began to gambol on the mesas, the old spirit of grab rose up and overleapt the dull fear of last winter. Once more both Crit and Upton began to take on nervy cowboys—men who by their boasts or by their silence let it be known that they were game—and the cow-camp at Verde Crossing sheltered gun-men from all over the Far West. From the Tonto country there came rumors that Upton was bringing in bad men from Pleasant Valley, fresh from the bloody combats where the Grahams and Tewkesburys met. Bill Todhunter rode in when the round-up was well begun and looked the outfits over with grave unconcern, dropping out of sight on the trail and turning up at Geronimo two days later to report that all was well in Lost Dog Cañon. There were no deputy sheriffs in disguise on this round-up—both Crittenden and Upton satisfied themselves of that early in the day—and as the work went on and the lust for spoils grew with each branded maverick, the war spirit crept in and grew apace.

Ike Crittenden was the first to renew the feud—he came across an old ICU cow and branded her to ICU2. One of Upton's range riders picked her up after the branding and Upton promptly altered the brand on an IC cow, to break even. Then came the grand *coup* for which Crittenden had long been preparing. On the morning after Upton took his revenge, the whole IC outfit—forty cowboys and every man armed—went galloping over the Carrizo trail to Lost Dog Cañon. By noon they had gathered every animal in the valley; at night they camped with the herd at Carrizo Springs; and the next day every Monkey-wrench cow was safe in the Verde corrals with her Monkey-wrench burnt to a Spectacle (§) and her ears chopped down to her head. The ear-marks having been altered once already there was nothing for it but to make the new marks deeper and more inclusive—swallow-fork the left and crop the right. The swallow-fork was deep in the left, to take in an underbit that Pecos had cut, and Old Funny-face, who had returned home with the herd, lost the fancy Mexican window and *anzuelo* in her right ear altogether, along with all other signs of a former ownership. But even then the artistic knife-work of José Garcia was not allowed to perish from the

earth. As Funny-face rose up from this last indignity and menaced the perspiring cowboys with her horns, the little Garcia children, hanging over the fence, dashed out through the dust and turmoil and rescued the close-cropped ears. Already, in spite of threats and admonitions, they had gathered quite a collection of variegated crops and swallow-forks to serve as play-cows in their toy corral; but when Marcelina came upon this last bloody evidence of the despite that was shown her lover she snatched the ears away and hid them in the thatched roof. Old Funny-face was Pecos's cow—she knew that as well as she knew the red-spotted, dun-colored ears that had adorned her speckled head. Pecos had bought Funny-face and her calf from her father for thirty dollars, to keep around his camp to milk, and now there was nothing to show for his ownership but the ears. But perhaps Pecos would be glad even for them, if ever he came back. In a letter to Babe he had said he was coming back, now that the sheriff was his friend. But Crit—ha-ah, Ol' Creet—he was stealing all of Pecos's cows, and the sheriff did not care! She stood by a post of the brush *ramada* and scowled at him as he raged about on his horse, cursing and shouting and waving his arms and hurrying his men along. He was a bad man—ahr, how she hated him—and now he was such a thief!

As the quick work of branding was brought to an end and the herd driven pell-mell down the river and into the heavy willows, the Boss of Verde Crossing sent half of his cowboys down to guard them and began to clean up the corral. First he put out the fires and quenched the hot running-irons and rings; then he removed the branding outfit, dug a deep hole in the river-bed and set his men to work in details, gathering up the clipped ears and swallow-forks from the trampled dirt of the corral. A single ear left lying would be a record of his theft, and when one of the Garcia *niños*, by an ill-timed dash for more ears, set Crit upon the trail of their play cows he rushed in and ravished all their toy corrals, even though Marcelina stood by the *ramada* and curled her lip at his haste.

"You will rob even the cheeldren, Meester Creet!" she remarked, as he dumped them all into his hat.

"Mind your own business!" he answered, sharply, and scuttled away like a crab, bearing his plunder with him.

"Ah, you ba-ad man!" observed Marcelina, making faces at his bent back. "I hope Paycos come back and *keel* you!"

But Isaac Crittenden was not worrying about any such small fry as Pecos Dalhart. Boone Morgan and John Upton were the men he had on his mind and it was about time for Upton to show up. A solitary horseman, high up on the shoulder of the peaks, had watched their departure from Carrizo Springs that morning, and if Upton had not known before he certainly knew very well now that the Monkey-wrench brand was no more. As for Boone Morgan—well, there was an IC cow in the corral, altered by John Upton to JIC, and it was just as big a crime to steal one cow as it was to steal a hundred. One thing was certain, no man from the IC outfit would call on the sheriff for aid; and if Upton was the red-headed terror that he claimed to be, the matter would be settled out of court.

In this particular incident Mr. Crittenden was more than right. The matter was already adjudicated by range law, and entirely to the satisfaction of Upton. For while Crit was hustling his Monkey-wrench herd over to Verde Crossing, the U outfit—also forty strong—had hopped over the shoulder of the Peaks, rounded up every Wine-glass cow that they could gather, and were at that moment busily engaged at Carrizo Springs in altering them to a Circle-cross (⌘). It made a very pretty brand too; but after studying on it for a while and recalling his past experience with Crit, Upton decided to play safe and make it a double cross (⌘). No more ICU2's for John Upton—he had been there once—and Circle Double-cross it went on every animal they marked. The next morning, with every cow and calf well in hand, the U boys began to drift the Circle Double-cross herd back over the mountain, and just as Crittenden was marshalling his fighting men to win back the ravished stock there was a clatter of hoofs down at the Crossing and Boone Morgan rode into camp, followed by a posse of deputies.

"Well, what's the trouble up here, Mr. Crittenden?" he inquired, glancing with stern displeasure at the armed men who gathered about their chief. "Is there an Injun uprisin' or have you gone on the warpath yourse'f?"

"You jest come down to my corral," spat back Crittenden, "and I'll show you what's the matter! That low-lived John Upton has been burnin' my brand!" He led the way at a gallop to where the IC cow that had been

altered to JIC was tied by the horns to a post. "You see that brand?" he inquired, "well, that was made three days ago by John Upton—you can see the J is still raw."

"Umph!" grunted the sheriff, after a careful scrutiny of the brand, "did anybody see him do it?"

"No, but he done it, all right!"

"Would you swear to it? Can you prove it? How do you know somebody else didn't do it?"

"No, I can't swear to it—and I can't prove it, neither—but one of my boys picked that cow up three days ago right in the track of Upton's outfit, and, knowin' the little whelp as I do, I don't need no lawyer's testimony to make a case!"

"Well, I do," replied Boone Morgan, resolutely, "and I don't want this to go any further until I get the facts! What you goin' to do with all those two-gun cowboys?"

"I'm goin' to take over the mesa after John Upton and his dam', cow-stealin' outfit," cried Crittenden, vehemently, "and if you're lookin' for legal evidence, he went out of Carrizo Springs this mornin' drivin' nigh onto two hundred head of Wine-glass cows, as one of my boys jest told me. Law, nothin'!" shouted the cowman, recklessly. "I ain't goin' to sit around here, twiddlin' my fingers, and waitin' for papers and evidence! What I want is action!"

"Well, you'll get it, all right," replied Morgan, "and dam' quick, too, if you think you can run it over me! I want you to understand, Mr. Crittenden, that I am the sheriff of this county, and the first break you make to go after John Upton I'll send you down to Geronimo with the nippers on, to answer for resisting an officer! Now as for these men of yours, I give every one of 'em notice, here and now, that I want this racket to stop, and the first man that goes up against me will wind up in the county jail. Bill," he continued, turning to his trusted deputy, "I leave you in charge of this layout while I go after John Upton. Keep the whole outfit in camp until I come back, if you have to kill 'em. I've got enough of this."

He rode down to the store with his posse, bought a feed of grain for his horses and provisions for his men, and half an hour afterward went galloping out the Carrizo trail, his keen eye scanning the distant ridges and reading the desert signs like a book. It did not take an Indian trailer to interpret the deep-trampled record of that path. Two days before a big herd of cows and calves had come into Verde Crossing from Carrizo, driven by many shod horses and hustled along in a hurry. As he approached Carrizo fresher tracks cut across the old signs, the tracks of cows and calves fleeing from scampering ponies, and at the Springs the fresh signs closed in and trampled out all evidence of the old drive. It was the last page of the story, written indelibly in the sandy earth. On the open *parada* ground the cropped ears had all been gathered, but the bruised bushes, the blood and signs of struggle told the plain story of Upton's branding, just as the vacancy of the landscape and the long trail leading to the north spelled the material facts of the drama. The Wine-glass cows that used to be about Carrizo Springs were gone—John Upton had driven them north. But why? The answer lay beyond Carrizo Springs, where the white trail leads down from Lost Dog Cañon. There the trampled tracks that led into Verde Crossing stood out plain again in the dust—three days old and pressed on by hurrying horses. If the law could accept the record of Nature's outspread book Crit and Upton were condemned already, the one for stealing Pecos Dalhart's herd, the other for branding over the Wine-glasses. But the law demands more than that. It demands evidence that a lawyer can read; the sworn testimony of honest and unprejudiced witnesses; the identification of men, brands, and cows, proved beyond a doubt; and all this in a country where all cows look alike, all witnesses are partisans, and an honest man is the noblest work of God. Boone Morgan took up the long trail to the north with fire in his eye, and he rode furiously, as was his duty, but deep down in his heart he knew he was after the wrong man, and would not even get him.

CHAPTER XII

MOUNTAIN LAW

AS the sheriff's posse spurred their tired horses up the long slope of the rocky mountain and down into the rough country beyond, the trail grew fresher with every hour, until the blood from mutilated ears showed wet in the trampled dirt. But as the herd made its way into the broken ground the heavy trail split up and divided; at each fork of the cañon a bunch was cut off from the drag of the herd and drifted by a hand or two down onto the lower range, and when at last the trail broke out into the open country again the posse was following the tracks of only three men and twenty or thirty cows. Then they picked up a stray, burned clean into a Circle-Double-cross and freshly ear-marked, and after that the remnant of the band, standing wearily by a water-hole. Every one of them had been freshly branded with a hot iron—no hair-brand or attempt at burning through a sack—and half of their ears were bloody from being torn in the brush; but there were no cowboys loitering near, waiting to be caught with the goods. The horse-tracks still led on until at last they scattered out and mounted the neighboring ridges. But if the trail was lost there were other signs to lead Morgan on his way. The sun was hanging low now, and their horses were jaded from hard riding, but at the familiar bellowing of a cow-herd they pricked up their ears and forged ahead. The valley opened out suddenly before them and there on their regular *parada* grounds was the entire U outfit, holding a big herd and cutting, roping, and branding by days' works. Innocence and industry were the twin watchwords in that aggregation—they were too busy even to look up—and when Boone Morgan saw the game he rode past them without speaking and tackled the cook for supper.

"Boys are workin' kinder late to-night, ain't they?" he observed, filling his plate from the Dutch ovens.

"Sure are," answered the cook, sententiously. He had caught a glimpse of a star on a deputy's vest, and his orders were not to talk.

"Can't even stop to eat, hey?" continued the sheriff, nodding at an ovenful of cold biscuits that had been wastefully thrown in the dirt. "Well, that's a pity, too, because you sure do make good bread. But a sour-dough biscuit ain't never no good unless it's eaten fresh."

"No," grumbled the cook, taken off his guard, "and ef they's anything I do despise it is to cook up a good oven of bread and then have it spile thataway."

"Well, we're certainly appreciatin' this batch," remarked Morgan, glancing genially around at his busy men. "The boys bein' away yesterday kind of threw you out, I reckon."

"Thet's right," agreed the cook, oblivious of his intent, "I hed a big kittle of beans spile on me, too."

"They'll sure be hungry when they do hit camp," said the sheriff, continuing his lead, "livin' on cold grub that way. Hello," he exclaimed, looking up as John Upton came hurrying in, "here comes Mr. Upton now—ganted down to a shadow."

"Oh, I don't know!" replied Upton, guardedly, "b'lieve I could eat a little, though."

"Well, I reckon you ought to," said Morgan, "after goin' two days on cold grub."

"Cold grub!" repeated the cowman, glancing at the cook.

"Why, sure. And that's a long, hard ride over to Carrizo, too." The sheriff took a big mouthful and waited.

"What in hell you talkin' about?" demanded the cowman, sullenly.

"Why, wasn't you over to Carrizo yesterday?"

"Nope."

"And never eat no cold grub?" inquired the sheriff, gazing quizzically toward Joe, the cook.

"Dam' yore heart, Joe!" burst out Upton, looking daggers at the startled pot-tender, "have you been blabbin' already?"

"That'll be all, Mr. Upton," said Boone Morgan, quietly, "I'm up here lookin' for the owner of this new Circle Double-cross brand. Is that your iron? It is? Well, I'll have to ask you to go back with me to-morrow and explain where them cows come from."

"Well, by the holy—jumpin'—" The cowman paused in his wrath and fixed his fiery eyes on Boone Morgan. "Did Ike Crittenden put you up to this?" he demanded, and taking silence for consent he went off into a frenzy of indignation. "Well, what you chasin' *me* for?" he yelled, choking with exasperation. "Old Crit goes over into Lost Dog and runs off every dam' one of them Monkey-wrench cows, and you come right through his camp and jump *me*! They wasn't a critter in Lost Dog that hadn't been burnt over my U, and you know it; but ump-um—Crit's a friend of mine—never make him any trouble—go over and tackle Upton—he's a *Tonto* County man!"

The sheriff listened to this tirade with a tolerant smile, feeding himself liberally the while. He had long ago learned that the world's supply of self-righteousness is not held in monopoly by the truly good—also that every horse must go to the length of his picket rope before he will stop and eat. But when the fireworks were over he remarked by way of conversation, "Crit's got one of your JIC cows down there in his corral—a red three, bald-faced and kind of spotted on the shoulders. Looks like it had been branded lately."

"Yes, an' I've got one of his ICU2's down in my corral," retorted Upton, "and it sure has been branded lately—you could smell the burnt hair when I picked it up five days ago. They ain't a man in my outfit that don't know that old cow for an ICU, too."

"Um," commented Morgan, "you think he stole it, hey?"

"I know it!" replied Upton, with decision. "You can see her yoreself, down in my headquarters corral, and I picked her up in the track of Crit's round-up."

"Well, you better swear out a warrant, then, and we'll take the cow down for evidence. You were hintin' that I'm standin' in with Crittenden, but jest

swear to a complaint and see how quick I'll serve the papers."

For a moment the cowman cocked his head and regarded him shrewdly—then he shook his head. "I've got too much loose stock runnin' on his range," he said.

"I'll protect your property," urged the sheriff. "Come on, now—quit your kickin' and make a complaint."

"Nope—too dangerous! I can take care of myself in the hills, but if them Geronimo lawyers ever git holt of me I'm done for. You can take me down to-morrer, if you want to, but I'd rather stick to my own game."

"All right," said the sheriff, "we'll see what Crit will do."

There was a big crowd around the store at Verde Crossing when Boone Morgan and his posse rode in, and at sight of John Upton by his side there was a general craning of necks on the part of Crittenden's cowboys. This was the first time that a sheriff had attempted to stop the lawless raids and counter-raids of these two cattle kings and the gun-men looked upon him with disfavor, for even a professional bad man is jealous of his job. An appeal to the courts would divert their extra wages into the pockets of the lawyers—it would dock their pay and double their work, and to a man they were against it. Yet here came Upton with the sheriff, and Bill Todhunter had already spotted some Spectacle cows that had drifted back to the corrals. As for Crit, his nerve was good, for he felt the fighting courage of his men behind him, and he went out to meet his ancient enemy with a taunting sneer.

"Well, I'm glad to see one man git what's comin' to him," he observed, taking note of Upton's guard.

"Yes," retorted Upton, caustically, "and if I'd jest tell a half of what I know, you'd be mixin' 'dobes down at the Pen."

"Uhr!" grunted Crittenden, turning away in scorn; but at the same time he took his cue from the words.

"Well, Mr. Crittenden," began Morgan, "here's the man you wanted so bad. Now if you'll jest step into the store and fill out this complaint—"

"Nothin' like that—nothin' like that!" protested the Verde Boss, holding up his hand. "I never said I wanted him arrested!"

"No, but you took me down and showed me that JIC cow and said he stole it, didn't you? And you complained to me that he was in the act of runnin' off your Wine-glass cows, didn't you? Well, that's the same thing, when you're talkin' to an officer."

"Well, it may be all the same, but I don't want 'im arrested. That ain't the way I do business."

"Oh, it ain't, hey? Well, what is your way of doin' business?"

"First principle is never to holler for help," replied Crittenden, grimly. "I know dam' well that little cuss over there burnt my IC cow and run off all my Wine-glasses—but I can't prove nothin' before the law, so you might as well turn 'im loose. Oh, you don't need to laugh, you little, sawed-off runt!" he yelled, addressing himself to Upton, "I'm jest keepin' you out of jail so's I can git at you myself! I'll—"

"Aw, shut up," growled the sheriff, brushing roughly past him. "Come on, boys, let's get out of this before they holler their heads off." He swung angrily up on his horse, jerked its head toward the river and took the crossing in silence, leaving the rival cattle kings to fight it out together. The time might come when one or the other of them would "holler for help," but just at that moment the Verde country was not educated up to the law.

CHAPTER XIII

WELCOME HOME

AFTER the war of words was over and the tumult and shouting had died away, the Angel of Peace, which had been flying high of late, fluttered down and hovered low over Verde Crossing. John Upton rode back up the Tonto trail still breathing forth hostile threats; Crittenden and his men buckled on their extra guns and rode blithely out to the adventure; and the store, from being a general hang-out for noisy and drunken cowboys, became once more a shrine to Venus and a temple of the Muse, with Babe the minstrel and Marcelina the devotee. "Billy Veniro" was the theme—that long, sad tale of the far frontier—sung in tragic tenor to a breathless audience of one. She was very pretty, the little Marcelina, now that she had become a woman. The Sisters had taught her her catechism and something more—the grace and sweetness that come from religious adoration, and the quiet of the cell. The great world, too, as personated by Geronimo, had done its share; her hair was done up in dark masses, her long skirt swept the floor, and with the added dignity of a train her womanhood was complete. She sat by the door where she could watch the Tonto trail—for it was by that road that Pecos was to come—and her melancholy eyes glowed as she listened to the song.

BILLY VENIRO

"Billy Veniro heard them say, in an Arizona town one day,
That a band of Apache Indians were on the trail of death.
He heard them tell of murder done, of the men killed at Rocky Run.
'There is danger at the cow-ranch!' Veniro cried beneath his breath.

"In a ranch forty miles, in a little place that lay
In a green and shady valley, in a mighty wilderness,
Half a dozen homes were there and in one a maiden fair
Helt the heart of Billy Veniro—Billy Veniro's little Bess.

"So no wonder he grew pale, when he heard the cowboy's tale—
Of the men that he'd seen murdered the day before at Rocky Run.
'As sure as there is a God above, I will save the girl I love.
By my love for little Bessie, I must see there is something done!'

"When his brave resolve was made, not a moment more he stayed.
'Why, my man,' his comrades told him when they heard his daring plan,
'You are riding straight to death!' But he answered, 'Hold your breath,
I may never reach the cow-ranch, but I'll do the best I can.'

"As he crossed the alkali bed all his thoughts flew on ahead
To the little band at the cow-ranch, thinking not of danger near,
With his quirt's unceasing whirl and the jingle of his spurs
Little brown Chapo bore the cowboy far away from a far frontier.

"Lower and lower sank the sun, he drew reins at Rocky Run.
'Here those men met death, my Chapo!' and he stroked his horse's mane.
'So shall those we go to warn, ere the breaking of the morn,
If I fail, God help my Bessie!' And he started out again.

"Sharp and keen the rifle shot woke the echoes of the spot.
'I am wounded!' cried Veniro, as he swayed from side to side.
'Where there is life there is always hope, onward slowly I will lope.
I may never reach the cow-ranch—Bessie dear shall know I tried.

"'I will save her yet,' he cried, 'Bessie Lee shall know I died
For her sake!' And then he halted in the shadow of a hill.
From a branch a twig he broke, and he dipped his pen of oak
In the warm blood that spurted from the wound above his heart.

"From his chaps he took, with weak hand, a little book,
Tore a blank leaf from it, saying, 'This shall be my will.'
He arose and wrote: 'Too late! Apache warriors lay in wait.
Good-bye, Bess, God bless you, darling!' And he felt the warm blood start.

"And he made his message fast—love's first letter and its last—
To his saddle horn he tied it, while his lips were white with pain.
'Take this message, if not me, safe to little Bess,' said he.

Then he tied himself to the saddle and gave his horse the rein.

"Just at dusk a horse of brown, wet with sweat, came panting down
Through the little lane at the cow-ranch and stopped at Bessie's door.
But the cowboy was asleep and his slumbers were so deep
That little Bess could not awake him, if she were to try forevermore.

• • • • •

"Now you have heard this story told, by the young and by the old,
Way down there at the cow-ranch the night the Apaches came.
Heard them speak of the bloody fight, how the chief fell in the flight
And of those panic-stricken warriors, when they speak Veniro's name."

• • • • •

"Ay, *los Ah-paches!*" sighed Marcelina, looking wistfully up the trail. "No *ai Ah-paches* in mountains now, Babe?"

"No, Marcelina," soothed Angy, "all gone now. Soldiers watch 'em—San Carlos."

"*Que malo, los Indios!*" shuddered Marcelina. "I am afraid—*quien sabe?*—who can tell?—I am afraid some bad men shall keel—ah, when say Paycos, he will come?"

"'I'll come a-runnin'—watch for my dust'—that's all he wrote when I told him you was home. Can't you see no dust nor nothin'?"

"There is leetle smoke, like camp-fire, up the valley—and Creet's vaqueros come home down Tonto trail. Pretty soon sundown—nobody come."

Angevine Thorne stepped through the doorway and, shading his bloodshot eyes with a grimy hand, gazed long at the column of thin smoke against the northern sky. "Like as not some one is brandin' an *orejano*" he said, half to himself. "Might even be Pecos, makin' a signal fire. Hey, look at them bloody cowboys, ridin' in on it! Look at 'em go down that *arroyo*; will you? Say—I hope—"

"Hope what?"

"Well, I hope Pecos don't come across none of them Spectacle cows on the way in—that's all."

"Ahh, Paycos weel be mad—he weel—*Mira!* Look, look!"

A furious mob of horsemen came whirling down the trail, crowding about a central object that swayed and fought in their midst; they rushed it triumphantly into the open, swinging their ropes and shouting, and as the rout went by Angy saw Pecos, tied to his horse, his arms bound tight to his sides and a myriad of tangled reatas jerking him about in his saddle.



As the rout went by Angy saw Pecos, tied to his horse, his arms bound tight to his sides

"Hang the cow-thief!" howled the cowboys, circling and racing back, and all the time Pecos strained and tugged to get one hand to his gun. Then his wild eyes fell on Marcelina and he paused; she held out her hands, and Angy rushed behind the bar for his gun.

"Here, what the hell you mean?" he yelled, breaking from the door. "Quit jerkin' him around like that, or I'll knock you off your horse!" He ran straight through the crowd, belting every horse he met with the barrel of his forty-five, until he brought up with his back to Pecos and his pistol on the mob. "Let go that rope, you—!" he cried, bringing his six-shooter to a point, and as the nearest cowboy threw loose and backed away he shifted his gun to another. "Throw off your dally," he commanded, "and you too, you low-flung Missouri hound! Yes, I mean you!" he shouted, as Crit still held his turns. "What right have you got to drag this man about? I'll shoot the flat out of your eye, you old dastard, if you don't let go that rope!"

Old Crit let go, but he stood his ground with a jealous eye on his prize.

"Don't you tech them ropes," he snarled back, "or I'll do as much for you. I caught him in the act of stealin' one of my cows and—"

"You *did* not!" broke in Pecos, leaning back like a wing-broke hawk to face his exultant foe, "that calf was mine—and its mother to boot—and you go and burn it to a pair of Spectacles! Can't a man vent his own calf when it's been stole on 'im durin' his absence? Turn me loose, you one-eyed cow-thief, or I'll have yore blood for this!"

"You don't git loose from me—not till the sheriff comes and takes you to the jug. Close in here, boys, and we'll tie him to a tree."

"Not while I'm here!" replied Angy, stepping valiantly to the front. "They don't a man lay a finger on 'im, except over my dead body. You'll have to kill me—or I'll pot Old Crit on you, in spite of hell!" He threw down on his boss with the big forty-five and at a sign from Crit the cowboys fell back and waited.

"Now, lookee here, Angy," began Crittenden, peering uneasily past the gun, "I want you to keep yore hand outter this. Accordin' to law, any citizen has a right to arrest a man caught in the act of stealin' and I claim that feller for my prisoner."

"Well, you don't git 'im," said Angy, shortly. "What's the row, Pecos?"

Pecos Dalhart, still leaning back like a crippled hawk that offers beak and claws to the foe, shifted his hateful eyes from Crittenden and fixed them on his friend.

"I was ridin' down the *arroyo*," he said, "a while ago, when I came across my old milk cow that I bought of Joe Garcia." He paused and gulped with rage. "One ear was cropped to a grub," he cried, "and the other swallow-forked to 'er head—and her brand was fresh burnt to a pair of hobbles! The calf carried the same brand and while I was barring them Spectacles or Hobbles, or whatever you call 'em, and putting a proper Monkey-wrench in their place, this pack of varmints jumped in and roped me before I could draw a gun, otherwise they would be some dead."

"Nothin' of the kind!" shouted back Crittenden. "You never bought a cow in your life, and you know it! I caught you in the act of stealin' my Spectacle calf and I've got witnesses to prove it—ain't that so, boys?"

"Sure!" chimed the IC cowboys, edging in behind their boss.

"And I demand that man for my prisoner!" he concluded, though pacifically, for Angy still kept his bead.

The negotiations for the custody of Pecos were becoming heated when there was a familiar clatter at the ford and Bill Todhunter rode into camp. His appearance was not such an accident as on the surface appeared, since he had been scouting around the purlieus of Verde Crossing for some days in the hope of catching Old Crit in some overt act, but he put a good face on it and took charge of the prisoner at once. Prisoners were the fruits of his profession, like game to a hunter or mavericks to a cowman, and he pulled the gun out of Pecos's holster and threw loose the tangled ropes with the calm joy of a man who has made a killing.

"Caught 'im in the act, did ye?" he said, turning to Crittenden. "Uh-huh—got any witnesses? All right—where's the calf? Well, send a man up for it, and bring the cow down, too. We'll have a preliminary examination before the J. P. to-morrow and I want that cow and calf for evidence. Now come on, Mr. Dalhart, and remember that anything you say is liable to be used against ye."

Denying and protesting, Pecos did as he was bid; and, still denying his guilt, he went before the magistrate in Geronimo. Crittenden was there with his cowboys; the calf was there with his barred brand and bloody ears—and as the examination progressed Pecos saw the meshes of a mighty net closing relentlessly in upon him. In vain he protested that the calf was his—Isaac Crittenden, the cowman, swore that the animal belonged to him and his cowboys swore to it after him. In vain he called upon José Garcia to give witness to the sale—Joe was in debt to the Boss several hundred dollars and Old Funny-face, the cow, was being hazed across the range by a puncher who had his orders. His written bill of sale was lost, the mother with her brands and vents was gone, and a score of witnesses against him swore to the damning fact that he had been taken red-handed. After hearing all the evidence the Justice of the Peace consulted his notes, frowned, and held the defendant for the action of the grand jury. The witnesses filed out, the court adjourned, and a representative assemblage of cowmen congratulated themselves, as law-abiding citizens of Geronimo County, that there was one less rustler in the hills. At last, after holding up her empty scales for years, the star-eyed Goddess of Justice was vindicated; the mills of the law had a proper prisoner to work upon now and though they were likely to grind a little slow—the grand jury had just adjourned and would not be convened again until fall—they were none the less likely to be sure. Fortunately for the cause of good government the iron hand of the law had closed down upon a man who had neither money, friends, nor influence, and everybody agreed that he should be made an awful example.

CHAPTER XIV

THE KANGAROO COURT

THERE are some natures so stern and rugged that they lean against a storm like sturdy, wind-nourished pines, throwing back their arms, shaking their rough heads, and making strength from the elemental strife. Of such an enduring breed was Pecos Dalhart and as he stood before the judge, square-jawed, eagle-eyed, with his powerful shoulders thrown back, he cursed the law that held him more than the men who had sworn him into jail. But behind that law stood every man of the commonwealth, and who could fight them all, lone-handed? Lowering his head he submitted, as in ancient days the conquered barbarians bowed to the Roman yoke, but there was rebellion in his heart and he resolved when the occasion offered to make his dream of the revolution a waking reality. The deputy who led him over to jail seemed to sense his prisoner's mood and left him strictly alone, showing the way in silence until they entered the sheriff's office.

The reception room to the suite of burglar-proof apartments familiarly known as the Hotel de Morgan was a spacious place, luxuriously furnished with lounging chairs and cuspidors and occupied at the moment by Boone Morgan, a visiting deputy, three old-timers, and a newspaper reporter. The walls were decorated with a galaxy of hard-looking pictures labelled "Escaped" and "Reward," many of which had written across their face "Caught," and some "Killed"; there was a large desk in the corner, a clutter of daily papers on the floor, and the odor of good cigars. Upon the arrival of Pecos Dalhart the sheriff was engaged in telling a story, which he finished. Then he turned in his swivel-chair, sorted out a pen and opened a big book on the desk.

"Mr. Dalhart, I believe," he said, smiling a little grimly.

Pecos grunted, and the deputy taking the cue, began a systematic search of his pockets.

"Grand larceny—held for the grand jury," he supplemented, and the sheriff wrote it down in the book thoughtfully.

"Sorry I can't give you the bridal chamber, Mr. Dalhart," he continued, "but it's occupied by a check-raiser; and I wouldn't think of puttin' a cowman in the jag-cell with all them sheep-herders—so I'll have to give you Number Six, on the first floor front. Pretty close quarters there now, but you'll have all the more company on that account, and I'll guarantee the boys will make you welcome." He paused and winked at the reporter, who sharpened a pencil and laughed. Boone Morgan's Kangaroo Court was a local institution which gave him a great deal of josh copy in the course of a year and he lit a cigar and waited to observe Pecos Dalhart's reception. The kangaroo *alcalde* or judge was a horse-thief, the sheriff was a noted strong-arm man from the East, the district attorney was an ex-lawyer taking a graduate course in penology, and altogether they made a very taking *dramatis personæ* for little knockdown skits on court-house life.

"Mr. Pecos Dalhart, cowman and brand-expert extraordinary, is down from the Verde for a few days and is stopping at the Hotel de Morgan pending the action of the grand jury in regard to one spotted calf alleged to have been feloniously and unlawfully taken from Isaac Crittenden, the cattle king. In the absence of the regular reception committee, Michael Slattery, the kangaroo sheriff, conducted Mr. Dalhart before his honor the *alcalde* who welcomed him in a neat speech and conferred upon him the freedom of the city. After a delightful half-hour of rough-house the entire company sat down to a choice collation of fruit provided by the generosity of the guest of honor."

Something like that would go very well and be good for the drinks in half the saloons in town. Only, of course, he must not forget to put in a little puff about the sheriff—"Sheriff Morgan is very proud of the excellent order maintained in the county jail," or something equally acceptable.

The deputy continued his search of Pecos Dalhart's person, piling money, letters, jack-knife, and trinkets upon the desk and feeling carefully along his coat lining and the bulging legs of his boots—but Pecos said never a word. It was a big roll of bills that he had brought back from New Mexico—five months' pay and not a dollar spent. Some fellows would have the nerve to

get married on that much money. There was a genuine eighteen-carat, solitaire-diamond engagement-ring among his plunder, too, but it was no good to him now. The sheriff examined it curiously while he was counting the money and sealing the whole treasure in a strong envelope.

"I'm *dam*' sorry I can't give you that bridal chamber," he observed, flashing the diamond and glancing quizzically at the reporter, and Pecos felt the hot blood leap throbbing to his brain.

"You go to hell, will you?" he growled, and a dangerous light came into his eyes as he rolled them on the laughing crowd.

"Here, here!" chided the deputy, grabbing him roughly by the arm, and with the gang following closely upon his heels he led the way to the cells. A rank smell, like the cagey reek of a menagerie, smote their nostrils as they passed through the first barred door and at sight of another prisoner the men inside the tanks let out a roar of joy and crowded up to the bars. It was the flush time of year, when the district court was in session, and the authors of six months' crime and disorder were confined within that narrow space awaiting the pleasure of the judge. Some there were with the healthy tan of the sun still upon their cheeks, and the swarthy sons of Mexico showed no tendency to prison pallor, but most of the faces were white and tense, with obscenely staring eyes and twitching lips, and all of them were weary unto death. Like wild beasts that see a victim led to their gate they stormed and chattered against the bars, shouting strange words that Pecos could not understand until, at an order from the deputy, they scuttled back to their cells.

The Geronimo County jail was a massive structure of brick, pierced by high windows set with iron gratings. A narrow corridor led around the sides, separating the great double-decked steel tanks from the outer wall, and within this triumph of the iron-master's craft the victims of the law's delay swarmed about like chipmunks in a cage. Down the middle of the steel enclosure there extended a long corridor with washrooms at the end and on either side were rows of cells, with narrow, inter-connected gates which could be opened and closed from without. At the word of command each prisoner slipped deftly through his door; the deputy unlocked an iron box, heaved away upon a lever, and with a resounding clang all the gratings on

one side came to and were fastened by the interlocking rods. He opened a box on the opposite side of the entrance and clanged those doors in place, thus locking up the last of his dangerous charges and leaving the corridor empty. Then, producing another key, he unlocked the great sliding gate, pulled its heavy panels ajar, and shoved Pecos roughly through the aperture. Once more the gates clashed behind him, the interlocking cell doors flew open, and with a whoop the uncaged prisoners stepped forth and viewed their victim.

There is no pretence about a kangaroo court. By luck and good conduct a citizen of the outer world may entirely escape the punitive hand of the law, but every man who entered the Geronimo County jail was *ipso facto* a delinquent. More than that, he was foredoomed to conviction, for there is no law so merciless as that of the law's offenders. The rulings of the kangaroo alcalde are influenced by neither pleadings nor precedents, and his tyranny is mitigated only by the murmurings of his constituents and the physical limitations of his strong right hand. Unless by the heinousness of his former acts he has placed himself in the aristocracy of crime, he must be prepared to defend his high position against all comers; and as the insignia of his office he carries a strap, with the heavy end of which he administers summary punishment and puts down mutinies and revolts. Pete Monat was the doughty alcalde in the Geronimo Bastile, and he ruled with an iron hand. For sheriff he had Michael Slattery, a mere yegg, to do the dirty work and hale prisoners before the court. The district attorney was John Doe, a fierce argufier, who if his nerve had been equal to his ambition would long since have usurped the alcalde's place. There were likewise jail-lawyers galore, petty grafters who pitted their wits against the prosecuting attorney in a brave attempt to earn a fee, or at least to establish a factitious claim against the defendant. Out they surged, sheriff, lawyers, and alcalde, and bore down on Pecos in a body, the sheriff to arrest him, the lawyers to get his case, and the alcalde to tip his chair against the grating, where the reporter could see all the fun,—and try the case in style.

"Fuzzy!" thundered the yegg sheriff, laying a heavy hand upon Pecos's shoulder, "I arrest youse in the name of the law!"

"The hell you say!" exclaimed Pecos, backing off; and in an instant the hardened jail-birds knew that they had a "gay-cat." Only Rubes and gay-

cats resisted arrest in jail—the old-timers stepped up promptly, before the sheriff could "give them the roust" from behind.

"Yes, an' fer breakin' into jail!" hollered Slattery. "Come on now and don't make me any trouble or I'll cop youse in the mush!"

"Arraign the prisoner," shouted the alcalde pompously, "bring 'im up hyar, an' ef he's half as bad as he looks he'll git the holy limit. Wake up thar, you, an' he'p the sheriff, or I'll set you to scrubbin' floors."

They came in a struggling mass, dominated by the tall form of the sheriff, and before Pecos was aware of his destiny he was hustled before the judge.

"What is the charge against this mug?" inquired Pete Monat, slapping his strap across his knee for silence.

"Breakin' inter jail, Yer Honor!" responded the sheriff, bowing and touching his forelock.

"Prisoner at the bar," declaimed the alcalde, "you are charged with wilfully, feloniously, an' unlawfully breakin' inter this hyar jail—do you plead 'Guilty' or 'Not guilty'?"

"I don't plead," said Pecos, with suspicious quiet.

"'Don't plead' is the same as 'Not guilty,'" announced the judge, "and bein' as the district attorney is such a long-winded yap I'll jest pull off this examination myse'f. How come you're hyar, then, you low-browed reprobate, ef you didn't break inter jail? Answer me thet, now, an' be dam' careful to say 'Yer Honor' or I'll soak you for contempt of court!"

"Say," said Pecos, speaking through the gratings to Boone Morgan, "do I have to stand for this? I do? Well, to hell with such a layout! Here, keep your hands off o' me now, or somebody'll git badly hurt!" He placed his back against the grating and menaced the strong-armed sheriff with a tense fist, turning a scornful eye upon the clamoring judge.

"Oyez! Oyez! Silence in the court!" bellowed Pete Monat, leaping up on his chair. "The prisoner is found guilty and sentenced to pay a fine of one dollar, or pack out the slops for a week! Mr. Sheriff, bring 'im up, an' ef he resists we'll give 'im thirty slaps with this hyar!" He held up his black strap

threateningly, but Pecos only skinned his teeth like a wolf that is caught in a trap, and stood at bay.

"I'd like to see the bunch of hobos that can man-handle *me*!" he snarled, making a pass at the sheriff. "Hey, bring me a dollar!" he commanded, speaking over his shoulder, and as the deputy went back to the office to get one from his envelope the Roman mob fell back and ceased its clamoring. The dollar was what they wanted. There was always a Mex to clean up, but the dollar went for a feed—fruit, candy, good things to eat—and not every man who entered could pay his fine. At the same time they stood off a little from the prisoner at the bar, for he had a bad look in his eye. The kangaroo sheriff, standing discreetly aloof, noticed it; the alcalde also; and in the premonitory hush that ensued even Boone Morgan began to read the signs of trouble. Next to his dream of breaking up the cattle-stealing business in the mountains, the Geronimo sheriff cherished the fond hope of building up a kangaroo court that would take the entire problem of jail discipline off his hands. It was an old idea, the kangaroo court, dimly reminiscent of frontier cow-camps but smelling more of hoboism, yet good for law and order if the right men were in power. Pete Monat was a terror to the evil-doer, especially if he was a Mex or darker, and Boone Morgan stood generously behind him, even when his decisions were a little rank. Right now the situation looked ominous and as Pecos continued to spit forth his venom, hissing and swelling like a snake at every approach of the pack, he made bold to interfere in the puppet play.

"Here," he said, passing a dollar through the bars, "I'll advance you the money—these fellows won't hurt you none."

"Keep your dirty dollar!" snapped Pecos, striking it away, "I got money of my own!"

"Well, you don't need to git mad about it—I jest wanted to help you."

"Yes, you help me! You throw me into jail for somethin' I never done and then bring this bunch of town boys in to see me kangarooed. That big stiff hain't got no right to fine me a dollar, an' you know it, but I'll give him the money all right—you jest wait!" He grinned sardonically at Michael Slaterry, straightened his back and waited. He had all the time there was—the grand jury did not meet till Fall, and that was six months yet. This was

the law they talked about—this was justice—to hold a man six months before he came to trial! Shut him up in that dark, stinking hole and keep him until he was broken! Sure—and let a bunch of yeggs spread-eagle him over a chair and beat him with a strap! For a year Pecos had been at war with society and never struck a blow for the revolution. But it was not too late. In turning him over to a kangaroo court Boone Morgan had added the last indignity—it was war now, and war to the knife.

The deputy returned leisurely, and shoved a dollar bill through the bars.

"Much obliged," said Pecos, and he spoke so quietly that even the kangaroo sheriff was deceived. "Here's your dollar," he said, turning to hold out the money, "come and git it." There was a sinister note in that last phrase, but Slattery did not catch it. He was a tall, hulking man, heavy-handed and used to his own way; the cattle-rustler was short and broad, like a stocky, hard-rock miner, and he stood with his back to the bars as if he were afraid. "Come and git it," he said, very quietly, but as Mike Slattery reached out his hand for the money the cowboy grinned and jerked it back. Slattery grabbed, and like a flash Pecos put over a blow that was freighted with sudden death. It landed behind the yegg sheriff's massive jaw, threw him sideways and whirled him over; then the thud of the blow was followed by a thump and like a boneless carcass he piled up on the floor. To a man a few removes farther from the ape the thump on the concrete floor would have resulted in a cracked skull, but fortunately for Slattery hard heads and evil dispositions generally go together, and he was safe from anything short of an axe. It was the blow under the ear that had jarred his brains—the bump against the concrete only finished the job up and saved him from something worse. Without looking to see where his victim fell Pecos Dalhart leapt vengefully into the swarming crowd of prisoners, knocking them right and left like ten-pins and shouting in a hoarse voice:

"Come an'—*huh*—git it! Come—*huh*—and *git* it!" And at every grunt he sent home a blow that laid his man on the floor.

"Back to your cells!" roared Boone Morgan, rattling the grating like a lion caged away from a deadly battle. "Git back there and let me have a chance!" But his voice was drowned in the deep-voiced challenge of Pecos, the shrieks of trampled Mexicans, the curses and sound of blows.

Pandemonium broke loose and in the general uproar all semblance of order was lost. On the outside of the bars a pair of shouting deputies menaced the flying demon of discord with their pistols, calling on him to stop; Boone Morgan tried to clear the corridor so that he could open the door; but they might as well have thundered against the wind, for Pecos Dalhart had gone hog wild and panic lay in his wake.

"Yeee-pah!" he screamed, as the way cleared up before him. "Hunt your holes, you prairie dogs, or I'll shore deal you misery! Out of my road, you dastards—I'm lookin' for that alcalde!" He fought his way down the corridor, leaving his mark on every man who opposed him, and Pete Monat came half way to meet him. Pete had been a fighter himself when he first broke into the Geronimo jail and the confinement had not thinned his sporting blood. He held the alcalde's strap behind him, doubled to give it weight, and at the very moment that Pecos came lunging in he laid it across his cheek with a resounding whack. The angry blood stood out along the scar and before Pecos could dodge back he received another welt that all but laid him low.

"Hit 'im again! Smash 'im! Fly at 'im, Pete!" yelled the crowd without, and at the appearance of a leader the beaten gang of hobos came out of their holes like bloodhounds. Pecos heard the scuffle of feet behind him and turned to meet them. The fury in his eye was terrible, but he was panting, and he staggered as he dodged a blow. For a single moment he appraised the fighting odds against him—then with an irresistible rush he battered his way past the alcalde and grabbed the back of his chair. In the sudden turmoil and confusion that humble throne of justice had been overlooked. It stood against the grating beyond which Boone Morgan and his deputies cheered on the kangaroos, and as Pecos whirled it in the air their shouting ceased.

There was a crash, a dull thump, and Pete Monat pitched forward with his throne hung round his neck. The strap which had left its cruel mark on Pecos fell to the floor before him, and Pecos, dropping the broken back of the chair, stooped and picked it up. The alcalde lay silent now beside the inert body of his sheriff and a great hush fell upon the prison as he stood over them, glaring like a lion at bay. He held up a bruised and gory fist and opened it tauntingly.

"Here's your dollar," he said, waving the bloody bill above his head, "come and git it, you sons of goats! You don't want it, hey? Well, git back into your cells, then—in with you, or I'll lash you to a frazzle!" They went, and as the interlocking doors clanged behind them Pecos turned to Boone Morgan and laughed. "That's what I think of your Kangaroo Court," he said, "and your own dam' rotten laws. Here's to the revolution!"

He flung his blood-red arms above his head and laughed again, bitterly; and after they had carried out the injured he paced up and down the corridor all night, cursing and raving against the law, while the battered inmates gazed out through their bars or nodded in troubled sleep. It was the revolution—no laws, no order, no government, no nothing! The base hirelings of the law had thrown him into jail—all right, he would put their jail on the bum.

CHAPTER XV

THE REVOLUTION IN FACT

OUTSIDE of the kangarooing of Rubes, the coming and going of prisoners, and such exceptional entertainment as that put up by Pecos Dalhart upon his initiation into the brotherhood, there were only two events a day in the Geronimo jail—breakfast and dinner. Breakfast, as with the French, was served late, and dinner at the hour of four. On account of the caterer being otherwise engaged in the early morning the *café-au-lait* in bed was dispensed with and *déjeuner* served promptly at nine. It was a hard-looking aggregation of citizens that crept out of their cells at the clanging of the interlocking gates and there was not a man among them who dared look Pecos in the eye as they slunk down the corridor to wash. Battered in body and cowed in spirit they glanced up at him deprecatingly as he stood with the strap in his hand, and there was no mercy written in the cattle-rustler's scowling visage. These were the men who would have put their heels in his face if he had gone down before their rush—they were cowards and ran in packs, like wolves. They were grafters, too; the slinking, servile slaves of jail alcaldes, yegg sheriffs, and Boone Morgan's swaggering deputies. More than that, they would mob him if he gave them half a chance. So he stood silent, watching them, man after man, and there was not one who could look him in the face.

It was Bill Todhunter who opened the gates that morning—the same keen-eyed, silent deputy who had fetched Pecos down from the mountains—and as his former prisoner, now transformed into the stern master of Geronimo jail, came near, he looked him over gravely.

"Feelin' any better?" he inquired.

"Nope," scowled Pecos, and there the matter dropped. After the affair of the night before he had expected to be put in irons, at least, or thrown into the dungeon, but nobody seemed to be worrying about him, and the prison routine went on as usual. The drunks in the jag-cell woke up and began to wrangle; the long-termers in the deck above scuffled sullenly around over

the resounding boiler plate; and from the outer office they could hear the cheerful voices of old-timers and politicians discussing affairs of state. A long-term trusty came clattering down the iron stairs and passed out through the two barred doors to work up an appetite for breakfast by mowing the court-house lawn. As for Pecos, he was used to having his breakfast early and his Trojan exertions of the night before had left him gaunted, though he carried off his stoic part bravely. Nevertheless he showed a more than human interest in the steel front gate, and when at last, just as the clock tolled nine, it swung open, admitting the Chinese *restaurateur* who contracted for their meals, there was a general chorus of approval. Hung Wo was the name of this caterer to the incarcerated, and he looked it; but though his face was not designed for a laughing picture his shoulders were freighted with two enormous cans which more than made up for that. Without a word to any one he lowered the cans to the floor, jerked off the covers, and began to dish up on the prison plates. To every man he gave exactly the same—a big spoonful of beans, a potato, a hunk of meat, half a loaf of bread, and a piece of pie—served with the rapidity of an automaton.

Without waiting for orders the prisoners retreated noisily into their cells and waited, the more fastidious shoving sheets of newspaper through the small openings at the bottom of their doors to keep their plates off the floor. But here again there was trouble. The incessant hammering of pint coffee cups emphasized the starved impatience of the inmates; the food grew cold on the plates; only one thing lay in the way of the belated breakfast—Pecos refused to go into a cell. Before the fall of the kangaroo court it had been the privilege and prerogative of Mike Slattery to remain in the corridor and assist in the distribution of the food, but Mike was in the bridal chamber now with his jowls swathed in cotton, sucking a little nourishment through a tube. Pete Monat was there also, his head bandaged to the limit of the physician's art, and mourning the fate which had left him such a hard-looking mug on the eve of a jury trial. The verdict would be guilty, that was a cinch. But at least Pete was able to eat his breakfast, whereas there were about forty avid kangaroos in the tanks who were raising their combined voices in one agonizing appeal for food. It was a desperate situation, but Pecos, as usual, was obdurate.

"Let the Chink come in—I won't hurt 'im!" he said; but Bill Todhunter shook his head.

"The Chink won't come," he said.

"Whassa malla *Mike*?" inquired Hung Wo nervously. "He go Yuma?"

"No, Charley," returned Todhunter, "last night he have one hell of a big fight—this man break his jaw."

"Whassa malla *Pete*?"

"This man break his head with chair."

"Ooo!" breathed Hung Wo, peering through the bars, "me no go in."

"Well, now, you see what you git for your cussedness," observed the deputy coldly. "The Chink won't come in and the chances are you'll starve to death; that is, providin' them other fellers don't beat you to death first, for makin' 'em lose their breakfast. Feelin' pretty cagey, ain't they?"

They were, and Pecos realized that if he didn't square himself with Hung Wo right away and get him to feed the animals, he would have a bread riot on his hands later—and besides, he was hungry himself. So he spoke quickly and to the point.

"What's the matter, Charley?" he expostulated, "you 'fraid of me?"

"Me no likee!" said the Chinaman impersonally.

"No, of course not; but here—lemme tell you! You savvy Pete Monat—all same alcalde, eh? You savvy Mike—all same boss, hey? Well, last night me lick Pete and Mike. You see this strap? All right; *me* boss now—you give me big pie every day, you come in!"

"Me no got big pie to-day," protested Hung Wo anxiously.

"Oh, that's all right—me takum other feller's pie, this time—you come in!"

"Allite!" agreed the simple-minded Oriental, and when the iron doors rolled apart he entered without a quiver. Back where he came from a bargain is a bargain and it is a poor boss indeed who does not demand his rake-off. The day was won and, throwing back his head imperiously, Pecos stalked down the line of cells until he came to the one where the inmates were making the most noise.

"Here!" he said, and when they looked up he remarked: "You fellers are too gay to suit me—I'll jest dock you your pieces of pie!" And when the Chinaman arrived Pecos carefully lifted the pie from each plate and piled all up on his own. "This'll teach you to keep your mouths shut!" he observed, and retiring to the iron gates he squatted down on his heels and ate greedily.

"Well, the son-of-a-gun," murmured Bill Todhunter, as he took notice of this final triumph, and the men in the cells became as quiet as a cage of whip-broke beasts when the lion tamer stands in their midst. As Pecos Dalhart drank his second cup of coffee and finished up the last slab of pie a realizing sense of his mastery came over him and he smiled grimly at the watchful faces that peered out through the cell gratings, blinking and mowing like monkeys in a zoo. They were beaten, that was plain, but somehow as he looked them over he was conscious of a primordial cunning written on every savage visage—they bowed before him; but like the leopards before their tamer, they crouched, too. That was it—they crouched and bided their time, and when the time came they would hurl themselves at his throat. But what was it for which they were waiting? All the morning he pondered on it as he paced to and fro or sat with his back to the bars, watching. Then, as the day warmed up and his head sank momentarily against his breast he woke with a start to behold a prison-bleached hand reaching, reaching for his strap. Instantly he rose up from his place and dealt out a just retribution, laying on his strap with the accuracy of a horse-wrangler, but even with the howling of his victim in his ears he was afraid, for he read the hidden meaning of that act. With the nerveless patience of the beast they were waiting for him to go to sleep!

Once before, on the open range, Pecos Dalhart had arrayed himself against society, and lost, even as he was losing now. Sooner or later, by day or by night, these skulking hyenas of the jail-pack would catch him asleep, and he shuddered to think how they might mangle him. He saw it clearly now, the fate of the man who stands alone, without a friend to watch over him or a government to protect his life. Not in two hurly-burly days and nights had he closed his bloodshot eyes, and as the heaviness of sleep crept upon him he paced up and down the corridor, wrestling with the spectre that was stealing away his wits and hoping against hope that Boone Morgan would come to his aid, for Boone had seen his finish from the first. In sodden

abandonment to his destiny he looked one of the cells over to see if it could be barricaded, but when one door was open they were all open and there was no protection against stealth or assault. He had not even the protection of the cave-dweller who, when sleep overcame him, could retire and roll a great stone against his door. Yet as the possession of sleep took hold upon him he routed out the inmates of the cell nearest to the gate, climbed into the upper bunk and lay there, rigid, fighting to keep awake.

It was quiet now and the shuffling of the long-termers above him came fainter and fainter; some drunk out in the jag-cell woke up from his long slumber and began to sing mournfully; and Pecos, struggling against the deadly anæsthetic of his weariness, listened intently to every word.

"My friends and relations has caused a separation,"

chanted the dirge-like voice of the singer,

"Concerning the part of some favorite one.
Besides their vexation and great trubbelation
They will some time be sorry for what they have done."

The voice sounded familiar to Pecos—or was it the music?—well, never mind, he would hear it to the end.

"My fortune is small, I will truly confess it,
But what I have got it is all of my own,
I might have lived long in this world and enjoyed it
If my cruel friends could have left me alone.

"Farewell to this country, I now must leave it,
And seek my way to some far distant land.
My horse and my saddle is a source of all pleasure
And when I meet friend I'll join heart and hand.

"Farewell to the girl that I no more shall see,
This world is wide and I'll spend it in pleasures,
And I don't care for no girl that don't care for me,
I'll drink and be jolly and not care for no downfall.

"I'll drown my troubles in a bottle of wine;
I'll drown them away in a full-flowing bumper
And ride through the wild to pass away time.
And when Death calls for me I'll follow him home.

"No wife, no children will be left to suffer,
Not even a sweetheart will be left to mourn.
I'll be honest and fair in all my transactions,
Whatever I do, I intend to be true.

"Here is health and good wishes to all you fair ladies—
It is hard, boys, to find one that will always be true."

A hush fell upon the jail as the singer wailed forth his sad lament, and when the song was ended a murmur ran along the hall. Pecos listened, half in a doze, to the muttered comments; then with a jerk he sat up and stared. The man in the next cell had said,

"That's old Babe, singin' his jag-song. He'll be in here pretty soon."

Babe! And he would be in there pretty soon! At that magic word a new life swept through Pecos Dalhart's veins; his drowsiness left him, and rousing up from his bunk he struggled forth and washed his face at the tap. Time and again he slapped the cool water upon his neck and hair; he drank a last draught of its freshness and paced the length of the corridor, his head bowed as if in thought—but listening above all other noises for the sound of Angy's voice. Bill Todhunter came and glanced at him impersonally, as he might gaze at a bronc that was about to be broke, but Pecos made no appeal.

He had started out to wreck Boone Morgan's jail for him, break up his Kangaroo Court, and establish the revolution, and with Angy's help he would do it, yet. The jail gang edged in on him a little closer, dogging his steps as the wolf-pack follows its kill, but at every turn of his shaggy head they slunk away. Then at last, just as the clock tolled four, the keys clanked in the outer door; Hung Wo slipped in with his coffee-pot and can, and after him came Angevine Thorne, escorted by the deputy.

"Hello, Babe!" chimed a chorus from behind the bars. "Hey, Babe—sing 'Kansas'! Oh, Babe!" But Angevine Thorne had no thought for his quondam prison mates, he was placing himself on record in a protest against the law.

"The Constitution of the United States guarantees to every man a fair and speedy trial," he declaimed with drunken vehemence, "but look here and see what a mockery you have made the law! Look at these poor men, caged up here yet, waiting for their trial! Is that a fair and speedy hearing? Look at me; arrested for no offence; confined without cause; condemned without a hearing; imprisoned for no crime! Is that justice? Justice forsooth! It is conspiracy—treachery—crime! Yes, I say *crime*! You are the criminals and we the helpless victims of your hands! I appeal to God, if there is a God, to bear witness of my innocence! What? I must go in? Then throw open your prison doors—I die a martyr to the Cause!"

The clanging of the cell doors gave no pause to his impassioned eloquence, nor yet his sudden injection into jail; but when, as he swayed upon his heels, his eyes fell upon the haggard features of Pecos Dalhart, the apostle of civic equality stopped short and struck his brow with a despairing hand.

"What!" he cried. "Are you here, Cumrad? Then let me die forthwith, for tyranny has done its worst! Pecos Dalhart, immured within prison walls, torn from the fond embrace of his—but hush, I go too far. Pecos, old boy, in the years to come your name shall go down to posterity as a martyr to the Cause. You have been arrested, sir, for no crime in law or fact, but simply for your outspoken opposition to the foul conspiracy of capitalism. Oh, that I might stand before the people and plead your cause—But enough; how are you, Old Hoss?"

He gathered Pecos into his arms and embraced him, and to the astonishment of Hung Wo and the prisoners Pecos hugged him to his breast.

"I'm dam' glad to see you, Angy," he murmured, "and no mistake. Here—take this strap and keep them fellers off—I'm dyin' for a sleep." He reached back for the floor, slipped gently down and stretched out upon the hard concrete. When Angevine Thorne lifted up his head he was asleep.

"Poor old Pecos," said Angy, holding out his hands as Mark Antony did over Cæsar, "there he lies, a victim to his country's laws. But sleep, old friend, and the first man that disturbs your dreams will feel the weight of this!" He held up the alcalde's strap for emphasis, and a low rumble of disapproval went up from the rows of cells.

"He broke every head in jail last night," volunteered the deputy, "an' it's about time he was kangarooed!"

"Not while I live!" declared Angy tragically. "Right or wrong, the first man that lays hands on this poor corse will fight it out with me!"

A chorus of defiance and derision was his only answer, but Angevine Thorne, being a natural-born orator, knew better than to reiterate his remarks for emphasis. He balanced the big strap in his hand as a warrior might test his sword, and squatted down to eat. While the dinner hour lasted he was safe—after that he would feel his way. So he put his back to the bars and began to take a little nourishment, gnashing belligerently at his hunk of meat and fortifying himself with coffee—but that was not to be the limit of his fare. As he scuttled back and forth with the prison plates, Hung Wo had kept an attentive eye upon the prostrate form of his boss and, seeing no signs of returning animation, had looked worried. At last, as Angy's protectorate became evident, he returned to his copper can and produced a fine big pie.

"This for boss," he said, and placed it by Pecos's head.

"All right, Wo," responded Angy, "my friend, he sleep. Bimeby wakum up, I give him pie." He finished up his plate, glanced at the surly faces behind the bars, and cast a longing look at the fresh-baked pie. There was going to be a ruction, that was sure, and ructions are bad for pies. He took Pecos by the shoulder and shook him tentatively; then with a sigh of Christian resignation he reached over and picked up the pie. "Dam' shame to go and waste it," he muttered, "an' it's all right, too."

The prisoners watched him eat his way through the crust and down through the middle until finally he licked his finger-tips and smiled.

"Him good pie, Wo," he observed, rising to his feet, "make me hip stlong." He shoved Pecos back into the corner, took his place before him, and balanced the strap for battle. "All right, deputy," he said, "turn them tarriers loose, and if I don't tan their hides with this strap they ain't no hell no mo'!"

The cell doors clanged and flew open, the balked cohorts of the enemy stepped forth and gathered about him, and as Angy paced back and forth before his friend he opened wide the flood-gates of his wrath.

"See the skulkin' curs and cowards," he cried, lashing out at them with his strap, "see them cringe before the whip like the servile slaves they are. What has this man done that you should fall upon him? Broke up your court, hey? Well, what was the court to you? Didn't it punish you whether you were right or wrong? Didn't it tyrannize over you and force you to do its will? Ah, despicable dogs, that would lick the hand that strikes you—come out here, any one of you, and I swear I'll beat you to death. Hah! You are afraid! You are afraid to face an honest man and fight him hand to hand! Or is it something else?" The defiant tone left his voice of a sudden and he looked eagerly into their tense faces. "Or is it something else?" he cried. "Friends, you have been shut up here for months by that great crime they call the law. You know that law—how it protects the rich and crushes down the poor! What then—do you still worship its outworn forms so that you must suffer them even in jail? Must you still have a sheriff to harass you, a judge to condemn you, a district attorney to talk you blind? Must you still be tyrannized over by a false and illegal court, even in the shadow of the jail? God forbid! But what then? Ah, yes; what then! Friends, I bring you the Gospel of Equality; I stand before you to proclaim as our forebears proclaimed before us, that all men are born free and equal; I call upon you, even in this prison, to cast aside the superstition of government and proclaim the revolution! To hell with the Kangaroo Court! My friend here has beaten up its officers—let us abolish it forever! What? Is it a go? Then here's to the revolution!"

He waved his hand above his head, smiling upward at that fair Goddess of Liberty whom he discerned among the rods; and the gaping prisoners,

carried away by his eloquence, let out a mighty yell of joy. Worn and jaded by the dull monotony of their life they seized upon the new religion with indiscriminating zest, passing up the big words and the moonshine and rejoicing in their noble freedom from restraint. As the first symptoms of a jail-riot began to develop Boone Morgan and his deputies rushed out to quell the disturbance, but the revolution gave no promise of a rough-house. As was to be expected, the prostrate form of Pecos Dalhart was draped across the foreground—and served him right, for trying to get too gay—but the other figures were not in good support. Angevine Thorne stood above the body of his friend, waving the alcalde's strap, but the Roman mob was sadly out of part. It was dancing around the room singing "Kansas."

"I'll tell you what they do—in *Kansas*,"

they howled.

"I'll tell you what they do—in *Kansas*,"

and at the end of each refrain Angy lifted up his vibrant tenor and added yet another chapter to the shameless tale. It was a bacchanalia of song, perhaps; or a saturnalia of inter-State revilings; but none of the onlookers recognized in the progressive dirtiness of the words a spirit of protest against the law. The revolution had come, but like many another promising child it was too young to be clearly differentiated from its twin brothers, License and Liberty.

CHAPTER XVI

BACK TO NATURE

AS to what the revolution is or is to be there are no two authorities who agree. It is not a thing, to be measured and defined; nay, it is a dream which, like our ideas of heaven, varies with individuals. To the philosopher it is an earthly realization of all our heavenly aspirations; to the low-browed man-of-hands something less, since his aspirations are less, but still good to cure all social ills. When Pecos Dalhart entered the Geronimo County jail he turned it into his own idea of the revolution—a fighting man's paradise, like the Valhalla of the ancients, where the heroes fought all day and were made good as new over night; but when he woke up from his long sleep, behold, Angy had established a philosophical revolution in its stead! At first he was so glad to wake up at all that he did not inspect the new social structure too closely—it had saved him from a terrible beating, that was sure—but as the day wore on and a gang of yeggs began to ramp about he shook his head and frowned.

"Say, Angy," he said, "what did you tell them fellers last night to make 'em take on like this?"

"Told 'em the same old story, Cumrad—how the monopolistic classes has combined with the hell hounds of the law to grind us pore men down. Ain't it glorious how the glad news has touched their hearts? Even within the walls of our prison they are happy!"

"Umph!" grunted Pecos, and scowled up at a tall Mexican who had ventured to call him *compadre*. "What's all this *compañero* talk that's goin' on amongst the Mexicans—are they in on the deal, too?"

"Surest thing!" responded Angy warmly.

"Huh!" said Pecos, "I hope they don't try no *buen' amigo* racket on me—I was raised to regard Mexicans like horny toads."

"All men is brothers—that's my motto. And they's good Mexicans, too, remember that. Just think of Joe Garcia!"

"Yes!" rejoined Pecos, with heat, "*think* of 'im! If it wasn't for that saddle-colored dastard I'd be free, 'stead of rottin' in this hole. I says to the judge: 'I bought that cow and calf off of Joe Garcia—there he is, standin' over there—I summon him for a witness.' 'Is that your calf?' says the judge. 'Kin savvy,' he says, humpin' up his back. 'Did you sell him to this man?' 'Yo *no se*!' says Joe, and he kept it up with his 'No savvys' and his 'I don't knows' until the dam' judge throwed me into jail. Sure! I'm stuck on Mexicans! I'll brother 'em, all right, if they come around me—I'll brother 'em over the head with a club!"

"Jest the same, it was Mexicans that saved your bacon last night," retorted Angy, with spirit. "Some of these white men that you had beat up were for pushin' your face in while you was asleep, but when I made a little talk in Spanish, touchin' on your friendly relations with the Garcia family, the Mexicans came over in a body and took your part. That was pretty good, hey?"

"Um," responded Pecos, but he assented without enthusiasm. Barring the one exception which went to prove the rule, he had never had much use for Mexicans—and Marcelina was a happy accident, not to be looked for elsewhere in the Spanish-American world. Still, a man had to have *some* friends; and a Mex was better than a yegg, anyhow. He looked around until he found the tall man who had called him *compadre* and beckoned him with an imperious jerk of the head. The Mexican came over doubtfully.

"You speak English?" inquired Pecos. "That's good—I want to tell you something. My friend here says you and your *compadres* stood up for me last night when I was down and out—hey? Well, that's all right—I'm a Texano and I ain't got much use for Mexicanos in general, but any time you boys git into trouble with them yeggs, jest call on me! Savvy?"

The tall man savvied and though Pecos still regarded them with disfavor the Mexican contingency persisted in doing him homage—only now they referred to him as *El Patrón*. *Patrón* he was, and Boss, though he never raised a hand. Interpreting aright his censorious glances the sons of Mexico confined their celebration of the Dawn of Freedom to a carnival of neglect,

lying in their bunks and smoking *cigarritos* while the filth accumulated in the slop cans. Under the iron rule of Pete Monat they had been required to do all the cleaning up—for in Arizona a Mexican gets the dirty end of everything—but no sooner had Babe sung his clarion call for freedom than they joined him, heart and hand. If the Society of the Revolution was at all related to the Sons of Rest they wanted to go down as charter members—and they did.

The time may come when cleanliness will be an inherited instinct but at present most of the cleaning up in the world is done under compulsion. Parents compel their children to wash and change their clothes; employers compel their wage-slaves to scrub and clean and empty; cities compel their householders to dispose of sewage and garbage; but not even among members of the capitalistic classes is there shown any clean-cut desire to do the work themselves. The Arizona Indians escape their obligations by moving camp at intervals, and God's sunshine helps out the settlers; but in the Geronimo jail there was no sunshine, nor could any Indian break camp. They were shut in, and there they had to lie, three deep, until the judge should decide their fate. For two days they had luxuriated in anarchy, philosophical and real, but neither kind emptied any garbage. The jail was the dwelling place of Freedom, but it smelled bad. That was a fact. Even the Mexicans noticed it, but they did not take it to heart. It was only when Boone Morgan came down for a batch of prisoners that the community got its orders to clean up.

These were busy days with Boone—opening court, arraigning prisoners, summoning witnesses, roping in jurymen, speaking a good word for some poor devil in the tanks—and it kept him on the run from sun-up to dark. He knew that Pecos Dalhart had broken up his Kangaroo Court and that Angevine Thorne had pulled off some kind of a tin-horn revolution on him, but he didn't mind a little thing like that. Jail life had its ups and downs, but so long as the cage was tight the birds could do as they pleased—short of raising a riot. At least, that was Boone Morgan's theory, based on the general proposition that he could stand it as long as they could—but when at the end of the second day he caught a whiff of the sublimated jail-smell that rose from the abiding place of liberty he let out a "whoosh" like a bear.

"Holy Moses, Bill," he cried, "make these rascals clean up! M-mmm! That would drive a dog out of a tan-yard! What's the matter—is somebody dead?"

"Not yet," responded Bill Todhunter, "but they will be, if we don't git some trusty in there. Them fellers won't do *nuthin'*—an' I can't go in there and make 'em! You better appoint another alcalde."

"What's the matter with Pete?"

"His head is too sore—he won't be able to put up a fight for a month."

"Umm, and Mike is fixed worse yet—where's that crazy cowman, Pecos Dalhart?"

They found Pecos comfortably bestowed in the bunk of the end cell, philosophically smoking jail tobacco as a deodorizer.

"Say," said the sheriff, brusquely addressing him through the bars, "things are gittin' pretty rotten around here—somebody ought to make them Mexicans clean up. You put my Kangaroo Court out of business—how'd you like the job yourself?"

Pecos grunted contemptuously.

"Don't want it, hey? Well, you don't have to have it—I can get that big sheep-man down from the upper tanks."

A cold glint came into Pecos Dalhart's eyes, but he made no remarks—a big sheep-man would just about fall in with his mood.

"I got to have some kind of a trusty," observed Morgan, but as Pecos did not rise to the bait, he passed down the run-around grumbling.

"He's a sulky brute," said Bill Todhunter, as they retreated from the stench, "better leave him alone a while and see if we can't stink him out."

"Well, you order them Mexicans to clean up," rumbled the sheriff, "and if this here Pecos Dalhart makes any more trouble I'll see that he gits roped and hog-tied. And say, throw old Babe out of there as soon as he gits his supper. Them two fellers are side-kickers in this business and we got to bust

'em up. It's a good thing the grand jury ain't in session now—I'd git hell for the condition of that jail."

There never was a jail so clean it didn't smell bad, but that night the Geronimo jail broke into the same class with the Black Hole of Calcutta, yet the inmates seemed to enjoy it. The yegg gang in particular—a choice assortment of Chi Kids, Denver Slims, and Philly Blacks who had fled from the Eastern winter—were having the time of their lives, rampaging up and down the corridor, upsetting cuspidors, throwing water from the wash-room, and making themselves strictly at home. When the sturdy form of Pecos Dalhart appeared in the door of Cell One they slackened their pace a little, but now that the moral restraint of Babe was gone they felt free as the prairie wind. Only in their avoidance of Mexicans did they show a certain consciousness of authority, for the word had passed that Pecos was *buen' amigo* with the *umbres* and no one was looking for a rough-house. As for Pecos, he put in his time thinking, standing aloof from friends and enemies alike—and his thoughts were of the revolution. When he had been off by himself reading the *Voice of Reason* he had been astounded at the blank stupidity of the common people, which alone was holding mankind back from its obvious destiny. "Think, Slave, think!" it used to say; and thinking was so easy for him. But the blind and brutish wage slaves who were dragged at the chariot wheels of capitalism—well, perhaps they had not yet learned how. Anyway, he had seen how inevitable was the revolution, and whichever way he turned he saw new evidences of that base conspiracy between wealth and government which keeps the poor man down. Nay, he had not only seen it—he had suffered at its hand. Yet there was one thing which he had never realized before, though the *Voice of Reason* was full of it—the low and churlish spirit of the masses which incapacitated them for freedom. Take those yeggs, now. They had been freed from the hard and oppressive hand of tyranny and yet as soon as the Kangaroo Court was abolished they began to raise particular hell. It was discouraging. There was only one way to beat sense into some people, and that was with a club. A cuspidor came the length of the corridor and Pecos rose slowly from his couch. What was the use of trying the revolution on a gang of narrow-headed yeggs!

"Hey," he challenged, "you yaps want to key down a little or I'll rattle your heads together. Go on into your cells now, and shut up." He fixed the yegg-

men sternly with his eye, but the blood had gone to their heads from gambolling about and they still had their dreams of heaven.

"Aw, gwan," said Philly Black, "we ain't doin' nawthin'—give a feller a show, can't ye?"

"W'y, sure, I'll give you a show!" thundered Pecos wrathfully. "You yeggs think because I licked Pete Monat I give you license to prize up hell. You got this jail like a hog-waller already in two days. Now, clean up, you dastards, and the first man that opens his face to me will go to the doctor!"

There was no easy answer to an argument like that and the gang slouched sullenly to their task, making all the motions of a superficial cleaning up but leaving the jail dirtier than ever. With his strap poised Pecos stood over them, reading well the insubordination in their black hearts and waiting only for some one to start the fray. At every move the yeggs became viler and more slipshod in their methods, spilling half the contents of every can upon the floor, and still Pecos Dalhart eyed them grimly, while the awe-stricken Mexicans huddled together in their cells waiting for the catastrophe. At last Philly Black, emboldened by his immunity, was moved to take a chance. Seizing recklessly upon the nearest can he made a rush for the wash-room, slopping filth and corruption as he went. As he passed Pecos his hold slipped, accidentally, of course, and the can fell to the floor with a final overflowing of uncleanness.

"Clean that up," Pecos said, as Philly Black came to a crouch, but Philly only looked over his shoulder. "Clean that up!" commanded Pecos, drawing nearer. "*Clean*—" but Philly was cleaning up. His gang had not rallied to his aid. Slowly and slovenly, and making ugly faces, he bent to his unwilling task, scowling beneath his black mop of hair at Denver and Chi and the gang.

"I said *clean up*!" rumbled Pecos, as Philly grabbed his can to go. "*Clean up*! You don't call that clean, do you?"

"Aw, go t'hell!" bellowed Philly Black, hurling his slop-can once more upon the floor. "Let the dam' Mexicans clean up!"

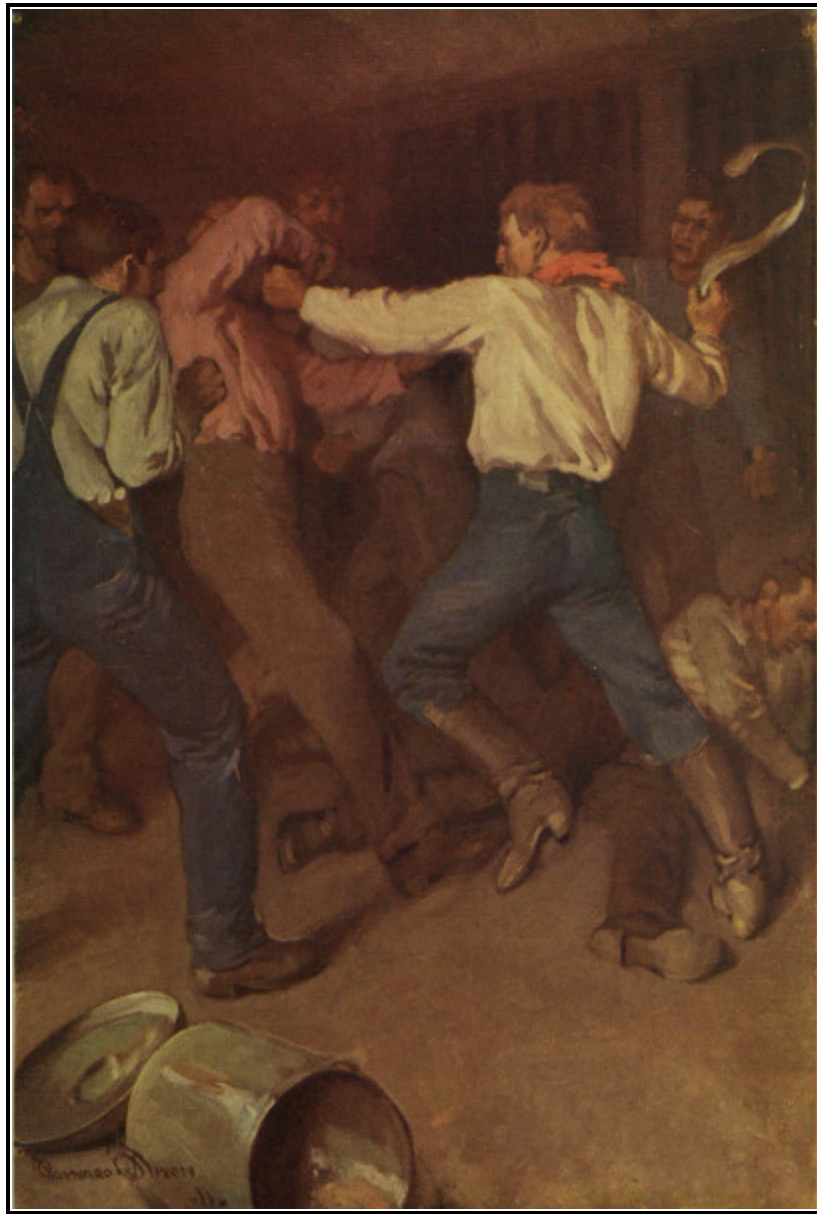
He dodged the swift swing of the strap and leapt in, calling on his fellows for aid. For a moment they wrestled furiously, and as the yeggs rushed in to

help, the Mexicans swarmed out to meet them; but before either side could lend a hand Philly Black slipped on his own dirty floor and went down with a deadly thud. Pecos rode him to the floor, clutching fiercely at his throat; for an instant he waited for him to fight back, then he sprang up and waded into the yeggs. Philly was where he would make no trouble for quite a while.

Once more at the clamor of battle the jail deputies came rushing to the rescue, bending their futile pistols upon the yelling prisoners.

"It's that blankety-blank, Pecos Dalhart!" shouted Bill Todhunter as he goggled through the bars. "Well, the son of a goat, ain't he a fightin' fool!" There was a note almost of admiration in his voice, for Pecos was punching heads and belting yeggs with the calculating rage of a conqueror.

"Git out of my way, *umbres!*" he yelled to his Mexican retainers. "*Vaya se—vamos—I can fix 'em!*" And he surely did. In his strong hands the alcalde's strap was a deadly weapon; he swung it with a puncher's skill and laid it on like a horse-wrangler. Shrieks for mercy were mingled with howls of pain and every time a man stood up to him he slugged him with all his strength. The floor was strewn with yeggs and when he had beaten down all opposition he flogged them into their cells.



"You *will* turn this jail into a hog-waller, will you?" he demanded

"You *will* turn this jail into a hog-waller, will you?" he demanded, when the corridor was cleared of men. "You *will* throw slops on the floor and not half clean 'em up! Well, come outer there, you low-browed hobos—I'll show you how it's done! Now take them swabs and fill your cans with water and wash this floor up right. No, you stay where you are, *umbres*; I want to show these brake-beam tourists who's the boss. *Jump* now, you panhandlers, or I'll burn you up with this!" He swung his wet strap and popped it behind the Chi Kid, and Chi went on his way. Bill Todhunter and the jail deputy

looked curiously on through the bars; the reporter for the morning *Blade* showed up suddenly from nowhere and began to ask leading questions, but Pecos did not unbend. In vain the reporter tried to beckon him up to the bars—Pecos remembered him too well as the fresh young man who had made a jest of his breaking into jail; also he hoped he could do a little job of house-cleaning without going on record as the friend of old Boone Morgan. He might be a little weak on the revolution but he knew his natural enemies. These were the men who had thrown him into jail for branding his own cow's calf; they were the hirelings of the System, friends to the rich and enemies to the poor; to them the agony of his soul was no more than a passing jest. He turned on the reporter and scowled.

"Go take a run and jump at yourself!" he said.

CHAPTER XVII

THE POWER OF THE PRESS

THE power of a venal and subsidized press in moulding public opinion is a thing that can hardly be overstated, even by the *Voice of Reason*.

When Pecos Dalhart told the willowy young man from the *Blade* to take a running jump at himself he expressed as in no other way his absolute contempt for society. Young Mr. Baker of the *Geronimo Blade* had the cigarette habit, he drank whiskey, and his private life would not bear too close inspection—he was hardly the man that one would choose as a censor of public character—and yet he held the job. When Pecos had broken up Boone Morgan's Kangaroo Court and spoiled the clever little court-house skit that Mr. Baker had framed up in his mind, that unprincipled young man had alluded to him, briefly and contemptuously, as a bad *hombre* from the Verde country, a desperate fellow, etc., and had ended by saying that Sheriff Morgan, who was convinced that he had a dangerous criminal on his hands, was looking up his record in Texas. That was a lovely introduction for a man who was held for the grand jury—it reached the eye of nearly every qualified juror in the county and was equivalent to about seven years in Yuma. If Mr. Baker had been human this last admonition about the running jump would have raised it to fourteen years, but they were short of copy that day and Baker was only a reporter, so he sharpened up his pencil and wrote a little jail, just to keep Boone Morgan in good humor.

JAIL STRIKE A FAILURE

"Mr. Pecos Q. Dalhart, who signalized his incarceration in the county jail by breaking up the prisoners' court, sending the Hon. Pete Monat and Michael Slattery to the hospital, and beating up the defenceless inmates with a chair, pulled off another little *soirée* last night, though for a different cause. It appears that when Mr. Dalhart registered at the Hotel de Morgan he had been reading a certain incendiary sheet which panders to the unreasoning prejudice of the ignorant by a general rave against the established order of things. With his mind inflamed by this organ of anarchy Mr. Dalhart conceived the original and ambitious idea of destroying the last vestige of law, order, and government within the walls of his prison, and Sheriff Morgan, being of a tolerant disposition, decided to let him try it on and see how he enjoyed the results. Not every public officer would have had the courage to permit such a firebrand to carry on his propaganda unhindered, but Boone Morgan has merited the confidence of every citizen of Geronimo County by his fearless handling of the desperate men entrusted to his care, and the outcome of this

episode is a case in point. Only three days were needed to convince the bad man from Verde Crossing of the error of his way. His first outbreak was to destroy all law and order—his second was to enforce the sanitary regulations of the prison. By his sudden and decided stand for cleanliness Mr. Dalhart has shown that he possesses the capacity for better things, even if he did make a slight mistake in regard to Isaac Crittenden's spotted calf. The scrap was a jim-dandy, while it lasted, but the issue was never in doubt, for the Verde terror is a whirlwind when he gets started. There have been house-cleanings galore in the past, but never within the memory of man has the Geronimo jail received such a washing and scrubbing as was administered when Dalhart rose up in his wrath and put down the very strike which he had organized; and while the sheriff cannot but deprecate his tendency to resort to violence there is no gainsaying the fact that in this case his motives were of the best. Stay with it, Pecos, you may be alcalde yet!"

Pecos Dalhart was sitting in lonely state, eating the fresh-baked pie which Hung Wo conferred upon him as the Boss, when Bill Todhunter shoved a copy of the Geronimo *Blade* through the bars.

"See you got yore name in the paper," he observed, but Pecos only grunted. Curiosity is an attribute of the child—and besides, he was more interested in his pie. It had always been an ambition of his to have pie three times a day, and the steady round of beef, bread, and coffee incidental to life on the range had made that hope seem a dream dear enough almost to justify matrimony. At least, he had never expected to attain to it any other way; but Hung Wo was a good cook, when he wanted to be. To serve two prison meals a day for fourteen cents and a profit meant pretty close figuring, and the patrons of Hung Wo's downtown restaurant needed to have no compunctions about leaving a part of their bounteous dinner untouched—the guests of the Hotel de Morgan were not supposed to be superstitious about eating "come-backs." It would be a poor Chinaman who could not feed you on ten cents a day, if you didn't care what you ate. But Pecos cared, and he cast a glance that was almost benevolent upon his faithful pie-maker as he tucked the *Blade* into his shirt.

"That's good pie, Charley," he said approvingly. "Some day when you ketchum big hurry I make him boy wash dishes."

"Allite," responded Hung Wo, "you likee kek?"

"Sure thing! You savvey makum cake?"

"Me makum kek, pie, cha'lotte lusse, custad, plenty mo'!" declaimed Charley, with pride.

"Sure! I know you! You keep big restaurant—down by Turf Saloon, hey? I eat there, one time—heap good!"

"You tink so?" beamed the child-like Oriental. "Allite, next time me bingum kek!" He gathered up the tin pannikins and departed, radiant, while Pecos crouched peacefully on his heels against the corridor bars.

"Say, they's a piece about you in that paper," volunteered Todhunter, as he jerked open the cell doors, "that young feller that was here last night wrote it up."

"Aw, to hell with 'im," growled Pecos scornfully; but at the same time he was interested. Life within prison walls is not very exciting—there is lots of company, but not of the best, and any man who does not want to hear dirty stories or learn how "mooching" and "scoffing" is done, or the details of the jungle life, is likely in time to become lonely. Already he was hungry for the outdoor life—the beating of the hot sun, the tug of the wind, the feel of the saddle between his knees—but alas, he was doomed to spend his unprofitable days in jail, a burden to himself and society! Six months in jail, before he could come before the grand jury and have his trial—six months, and it had not yet been six days. He drew the morning *Blade* from his bosom and examined it carefully, searching vainly through editorial columns and patent insides until at last he caught the heading: "Jail Strike a Failure. Bad Man from Verde Crossing Makes Prisoners Clean Up." Then he read the article through carefully, mumbling over the big words in the hope of sensing their meaning and lingering long over his name in print. At the allusion to the *Voice of Reason* he flushed hot with indignation; muttered curses greeted the name of Sheriff Morgan; but every time he came to "Mr. Dalhart" he smiled weakly and nursed his young mustache. But after he had finished he went back and gazed long and intently at his full name as given at the beginning:—"Mr. Pecos Q. Dalhart"—Pecos Q.! He read the entire paper over carefully and came back to it again; and that evening, when Mr. Baker of the *Blade* strolled in, he beckoned him sternly to the bars.

"Say," he said, "what the hell you mean by puttin' that 'Q.' in my name—Pecos Q. Dalhart? My name is Pecos straight—named after that river in Texas!"

"Oh, is it?" cried the young reporter, making a hurried note. "Well, I beg your pardon, Mr. Dalhart, I'm sure. How's house-cleaning to-day? Organized your court yet? No? Well, when you do, let me know. Always like to be present, you understand, when you have a trial." He hurried away, as if upon important business, and slowed down as suddenly before the sheriff's office.

"That 'Q.' did the business," he observed, glancing triumphantly at the assembled company. "I told you I'd make that rustler talk. A man may not give a dam' what you say about him but he goes crazy if you get his name wrong—I found that out long ago. Mr. Dalhart informs me that his name is Pecos straight—no 'Q.' in it. Pecos Straight Dalhart! All right, I'll try to get it right next time. What'll you bet we don't have another Kangaroo Court before the end of the week?"

"The cigars," replied Boone Morgan casually. As a politician, cigars were a matter of small import to him—when he was not giving them away his friends were giving cigars to him.

"I'll go you!" cried Baker enthusiastically, "and the drinks, too. You better turn Mr. Dalhart over to me for a while and watch me make a man out of him. All I ask is that you give him the morning *Blade*."

"All right," assented Bill Todhunter, from the corner; and the next morning Pecos received it with his breakfast. Charley Hung Wo had provided him with an unusually tempting apple roll that morning but it was neglected for the moment while he ran over the Court House Briefs. He searched the whole page carefully, but there was no mention of Pecos Dalhart, either with or without the "Q." He pondered upon the fact during the day—having nothing else to do—and when the Friday paper came out with nothing about the Hotel de Morgan in it he considered the matter seriously. Then it came over him gradually—there was nothing mysterious about it—the reporter was waiting for something to happen—a kangaroo trial, or something like that. Well, anything for a little excitement—why not? There were lots of things to be remedied. The yeggs had a dirty way of tapping on the boiler-iron doors and singing lewd songs after they were locked into their cells for the night, a combination which broke in on his sleep; and knowing that they were safe from his strap they persisted in this amusement until they could

sing no more, stoutly denying all knowledge of the disturbance in the morning. It was the only revenge they could take on him and they worked it to the limit. Not to be outdone in the matter of revenge he drove them like a pack of peons in the morning, forcing them to do all the cleaning while his Mexican friends rolled *cigarritos*—but that was getting wearisome. Yet how easy it would be to change! The verdict of a kangaroo jury is always "Guilty"—why not accuse half the yeggs of disturbing the peace, appoint the jury from the other half, and let yegg nature do the rest? Then sentence the prisoners at the bar to clean up for a week. Why not, indeed!

At supper time Pecos spoke a few invitational words through the bars to Bill Todhunter and about the time the boy reporter from the *Blade* was due he placed his chair against the doors and called his court to order.

"Oyez! Oyez! The Kangaroo Court of Geronimo is now in session!" he announced, in stentorian tones, and instantly the prisoners began to assemble. "Oyez" was good Spanish for "Hear!" and brought out all the Mexicans; and the Americans came on the run, eager for any excitement to pass the time away.

"Blacky," said Pecos, addressing the one-time king of the yeggs, "bring the Chi Kid before the bar of justice. He is accused of disturbing the peace by singin' songs all night."

Without a moment's hesitation Philly Black laid violent hands upon his friend and cellmate and dragged him before the court. The mandates of the law are inexorable; and besides, Philly wanted the job of sheriff.

"Come up here, Chi," he swaggered, fetching Chi Kid around with a jerk, "now stand there, or I'll punch youse in the jaw!" Chi stood, reading his fate in every eye.

"Now, summon me a couple of witnesses!" commanded Pecos, and as Blacky sifted through the crowd looking for a pair of men who could stand the Kid off later, Boone Morgan and the boy reporter arrived from the outer office and stood by to see the fun.

"Chi Kid," declaimed the judge, "you are accused of singin' dirty songs all night and disturbin' of the peace. Do you plead guilty or not guilty?"

"Not guilty!" responded Chi, rolling his evil eyes on the witnesses.

"Bring up them witnesses!" said Pecos briefly. "Slim, did you hear the accused singing' them dirty songs of his last night?"

"Yes, Yer Honor!" answered Denver Slim dutifully, "and I couldn't hardly sleep—Yer Honor!"

"Urr—it's too bad about you," commented the alcalde. "Bring up that other witness!" The other witness had suffered a similar insomnia. "That's all!" announced Pecos, with finality, "got to hurry this case through now. Got anything to say for yourse'f, prisoner?"

"I demand a jury trial!" growled the Kid.

"Too late for that now—the defendant is found guilty and sentenced to clean up for a week or git forty blows with the strap. Sheriff, bring me Denver Slim!"

There was a genuine commotion at this, but Philly Black produced the accused—he had to, or lose his job.

"Denver Slim, you are accused of hammerin' on your door all night and disturbin' of the peace. Do you plead guilty or not guilty?"

Denver turned and made three successive jabs at the jail sheriff, who had ruffled his feelings from behind; then he drew himself up and remarked:

"I don't plead!"

"'Don't plead' is the same as 'Not guilty,'" said Pecos, remembering his experience with Pete Monat, "and more than that," he thundered, "it's the same as contempt of court! Mr. Sheriff, spread-eagle the prisoner over a chair while I give him ten good ones for contempt—the trial will then proceed!" He rose from his chair and approached the defendant warily, hefting his strap as he came, and Denver became so deeply engrossed in his movements that Philly Black closed with him from the rear. There was a struggle, gazed upon judicially by the alcalde, and at last with a man on every arm and leg Denver was laid sprawling over the back of the chair while the prisoners gibbered with delight. The blows were laid on soundly and yet with a merciful indulgence and when the humiliating ceremony was

over Pecos had won every heart but one. Denver Slim was sore, of course; but how are you to have a Roman holiday unless somebody else gets hurt? They had a long and protracted jury trial after this, with a fiery denunciation of law-breakers by John Doe, the district attorney; and the verdict, of course, was "Guilty." Then they kangarooed a few Mexicans to clean up their side of the house and ended with a jubilee chorus of "Kansas."

"I'll tell you what they do—in *Kansas*!"

It was great. There was a piece about it in the paper the next morning and prospective grand jurymen slapped their legs and remarked, one to the other: "That Pecos Dalhart is a proper fighting fool, ain't he? I reckon Old Crit just jumped him into that racket up the river in order to git him out of the country. It's a dam' shame, too, when you think how many Crit has stole!"

But alas, neither public praise nor blame could open up the bars and let Pecos out of jail. He was held by a power higher than any man—the power of the Law, which, because it has endured so long and is, in fact, all we have, is deemed for that reason sacred. And the law was busy—it is always busy—and behind. Well, Pecos didn't know much about it, except what he had read in the *Voice of Reason*, but as he heard the ponderous wheels of the law grinding about him, saw yeggs escape by cleverly devised tales and Mexicans soaked because they were slow and dumb, he wondered if that was the only way they could make a stagger at justice. A drunken cowboy had seized a gay man-about-town and taken his pen-knife from his pocket—grand larceny of the person, he was sentenced to seven years. Another drunken reprobate had beaten up the roustabout in a saloon—and got thirty days for assault and battery. Both drunk and both bad, but one had played to hard luck. He had taken property, the other had hurt a man. Pecos saw when it was too late where he had marred his game—he should have beaten Old Crit instead of branding his calf.

In sombre silence he listened day by day as the jail-lawyers—wise criminals who had been in the toils before—cooked up stories to explain away misdeeds; he watched day by day as the prisoners came down from their trial, some with bowed heads or cursing blindly, others laughing hysterically as they scuttled out the door; and many a man who had sworn

to a lie went free where simple-minded sinners plead guilty and took their fate. Some there were who had boggled their stories because their dull minds could not compass the deceit; the district attorney had torn them to flinders, raging and threatening them with his finger for the perjured fools they were, and the judge had given them the limit for swearing to a lie. Even in jail it was the poor and lowly who were punished, while the jail-lawyers and those who could afford the petty dollar that hired them took shelter behind the law. Yes, it was all a game, and the best man won—if he held the cards.

Slowly and with painstaking care Pecos went over his own case, comparing it with these others, and his heart sank as he saw where the odds lay. The spotted calf was his—he could swear to it—but it bore the brand of Crittenden and he had lost his bill of sale. There were forty two-gun cowboys working for Crit and any one of them would swear him into jail for a drink—they had done it, so he knew. José Garcia was afraid to tell the truth and Crittenden would scare him worse than ever before the trial took place. Ah, that trial—it was more than five months off yet and he could not stir a foot! Once outside the bars and free-footed he could shake up the dust; he could rustle up his witnesses and his evidence and fight on an equality with Crit. But no, the munneypullistic classes had a bigger pull on him than ever, now—he was jailed in default of bail and no one would put up the price. God, what an injustice! A rich man—a man with a single friend who could put up a thousand dollars' bail—he could go free, to hire his lawyers, look up his witnesses, and fight his case in the open; but a poor man—he must lay his condemned carcass in jail and keep it there while the law went on its way. Day by day now the prisoners went to Yuma to serve their time, or passed out into the world. But were those who passed out innocent? The law said so, for it set them free. And yet they were white with the deadly pallor of the prison, their hands were weak from inactivity, and their minds poisoned by the vile company of yeggs; they had lain there in the heat all summer while judges went to the coast and grand jurymen harvested their hay, and after all their suffering, as a last and crowning flaunt, the law had declared them innocent! It had been many days since Pecos had seen the *Voice of Reason* and he had lost his first enthusiasm for the revolution, but nothing could make him think that this was right. The Law was like his kangaroo court, that travesty which he made more

villainous in order to show his scorn; it laid hold upon the innocent and guilty and punished them alike. Only the sturdy fighters, like him, escaped—or the prisoners who had their dollar. That was it—money! And Pecos Dalhart had always been poor.

As the mills of the gods ground on, Pete Monat, with his bandaged head, and Mike Slattery, still nursing his battered jaw, were removed from the bridal chamber, tried, and lodged in the tanks for safety. Pete had hired a shyster lawyer and got ten years in Yuma; Mike had plead his own case and escaped with only three. It was this last lesson that Pecos conned in his heart. When Slattery the yegg was arrested he had feigned an overpowering drunkenness, and though the case was all against him—he had been caught in the act of burglarizing a lodging-house and was loaded down with loot—he had nevertheless framed up a good defence. With the artless innocence of the skilled "moocher" he explained to the court that while under the influence of no less than seven drinks of straight alcohol he had mistaken another gentleman's room for his own and had gathered up his wardrobe under the misapprehension that it was his own. At every attempt to prove his culpability he had represented that, beyond the main facts, his mind was a complete blank, at the same time giving such a witty description of the paralyzing effects of "Alki" that even the district attorney had laughed. According to Mike that was the way to get off easy, be polite and respectful-like to the judge and jury and jolly up the prosecuting attorney—and in this contention the unfortunate experience of Pete Monat clearly bore him out. Pete had made the fatal mistake of hiring, with two months' back pay, a "sucking lawyer" who had so antagonized the district attorney that that gentleman had become enraged, making such a red-hot speech against the damnable practice of horse-stealing—"a crime, gentlemen of the jury, which, because it may leave the innocent owner of that horse to die of thirst on the desert, ought by rights to be made a capital offence"—that poor Pete was found guilty and sentenced before he could build up a new defence.

"Oh, I don't hold nothin' agin you, Pardner," he replied, in answer to Pecos's solicitude for the influence of his battered head, "the jury didn't cinch me for my looks—it's that dam' narrer-headed jack-lawyer that I got to thank f'r this. He wouldn't let me tell my story, jest the way it was. You know, an' I know, that when a man gits his time on the range the boss is obligated to give him a mount to town. How's a cowboy goin' to git his riggin' to town—

walk and pack his saddle? Well, now, jest because I give old Sage some back talk and quit him when he was short-handed he told me to walk; an' me, like the dam' fool I was, I went out and roped a hoss instead. Then, jest to git even, he had me arrested for a hoss-thief. But would this pin-head of a lawyer hear to a straight talk like that? No—he has me plead 'Not guilty' and swear I never took the hoss—an' you know the rest. That district attorney is a mean devil—he won't let nobody stand against him—you might as well plead 'Guilty' and take the mercy of the court as to try to buck against him. But whatever you do, Pardner, don't hire no tin-horn lawyer—I give ten years of my life to find that out." Pete sighed and rubbed his rough hands together wearily—it would be long before they felt the rope and the branding iron and the hard usage of honest toil. A great pity came over Pecos at the thought of his unhappy lot, and he treated him kindly before the other prisoners; but all the time a greater fear was clutching at his heart. Pete had taken a horse, but he had burned a calf—and Arizona hates a rustler worse than it hates a horse-thief. For all his strength and spirit, he was caught—caught like a rat in a trap—and as the imminence of his fate came over him he lost his leonine bearing and became furtive, like the rest of them. Outwardly he was the same, and he ruled the jail with a rod of iron, but at heart he was a true prisoner—cunning, cringing, watchful, dangerous—all his faculties centred upon that one thought, to escape!

CHAPTER XVIII

THE LAW'S DELAY

AS the first hot days of summer came on, the district court of Geronimo County closed; the judge, having decided each case according to the law and the evidence, hurried upon his way, well satisfied; the deputies took a last disconsolate batch of prisoners to Yuma, and Pecos Dalhart sat down to ponder on his case. The tanks were nearly empty now, except for the drunks and vags that the constables brought in and the grist for the next grand jury. It was a dreary grist, each man swearing his innocence with unnatural warmth until the general cynicism of the place shamed him to silence. Pecos loathed them, the whining, browbeaten slaves. After he had sounded the depths of human depravity until there was no more wickedness to learn he drew more and more aloof from his companions, thinking his own thoughts in silence. When Boone Morgan came in, or the *Blade* reporter, he conversed with them, quietly and respectfully—Boone Morgan could speak a word to the judge, and Baker held the ear of the great public. They were very kind to Pecos now, and often, after some ingenious write-up of his exploits, crowds of visitors would come to stare at the grim rustler who ruled the Kangaroo Court. There were no signs of the social theorist about him now, and the revolution was a broken dream—he could not afford such dreams. Let the rich and the free hold fast to their convictions and their faith—he was trying to get out of jail.

The heat of midsummer came on apace, and the sun, beating against the outer walls, turned the close prison into an oven by day and a black hole of misery at night. The palpitating air seemed to press upon them, killing the thought of sleep, and the prisoners moaned and tossed in their bunks, or fell into fitful slumbers, broken by the high insistent whine of mosquitoes or the curses of the vags. Of curses there were a plenty before the cool weather came, and protests and complaints, but none from Pecos Dalhart. In the long watches of the night he possessed his soul of a mighty patience, to endure all things, if he could only go free. Even with a jail missionary, who distributed tracts and spoke bodingly of a great punishment to come, he was

patient; and the missionary, poor simple man that he was, proffered him in return the consolation of religion. Being of a stiffnecked and perverse generation Pecos declined to confess his sins—the missionary might be subpoenaed by the prosecution—but he listened with long-suffering calm to the Prodigal Son, the Good Samaritan, and the parable of the seeds that were sown on stony ground. In themselves the stories were good—nor were they strange to Pecos, for his mother had been a good Methodist—but the preacher spoiled them by a too pointed application of the moral to his own unfortunate case. Still, he let it go—anything was better than listening to the yeggs—and waited for the sermon to end. There was a favor that he wanted to ask. Many years ago—it was at camp-meeting and the shouters were dancing like mad—he had promised his sainted mother to read the Bible through if she would quit agonizing over his soul, but the promise he never kept. Small print was hard on his young eyes that were so quick to see a cow, and he put the matter off until such a time as he should break a leg or get sick or otherwise find time to spare. Well, he had all the time there was, now, and it would give him something to do.

"Say, Pardner," he observed, as the missionary pressed a sheaf of tracts upon him at parting, "is this the best you can do? I was powerful interested in them stories—how about a Bible?"

Bibles were a scarce article in those parts, but Pecos got one, and after laying bets with various flippant prisoners, he read it from cover to cover, religiously. Then, just to show his bringing up, he went back and read over all the big wars and fights and the troubles of Moses in the wilderness. Still there was time to spare and he read of Daniel and Nehemiah and the prophets who had cried unto Israel. It was a poor beginning, but somehow when he was reading the Bible he forgot the heat and the vileness of the jail and won back his self-respect. In that long catalogue of priests and prophets and leaders of the people what one was there, from Joseph to Jesus, who had not been cast into prison? The universality of their fate seemed to cheer him and give him something in common—perhaps they were of some kin with the apostles of the revolution. And in the long, suffocating nights he would think back to the mud-streaked adobe house that he had called home and hear his mother patting softly on her knees and singing: "Oh, come to Jesus, come to Jesus—" with a little Texas *yupe* at the end of every line. So

he wore the summer's heat away, and with the return of cool weather his mind went back to his case.

There was no use trying to do anything before the grand jury, so everybody said; that great bulwark of the people generally indicted every one that the district attorney shook his finger at and let the judge find out later whether he was innocent—that was his business, anyway. Besides—whatever else he did—Pecos was going to be careful not to offend the district attorney. The sad case of Pete Monat, who must have put in an awful summer at Yuma, was ever in his mind, and while he would not go so far as to plead guilty in order to accommodate the choleric Mr. Kilkenny, he was firmly resolved not to antagonize him in the trial. He had money, too—five months' wages, deposited with the sheriff—but a hundred and fifty dollars would not hire a man who could stand up against District Attorney Kilkenny, the terror of evil-doers. As a man, Shepherd Kilkenny was all right—a devoted husband, a loving father, all the other good things you read on a gravestone—but as a prosecuting attorney he was a devil. At every biennial election he got all the votes there were on his court record. He convicted everybody—except a few whose friends had worked a rabbit's foot for them—and convicted them beyond appeal. That saved money to the county. His reputation for convictions was so great that most of the petty criminals pled guilty and came down like Davey Crockett's coon, before he had a chance to shoot. That expedited the court calendar and saved thousands of dollars in fees and witness expenses—another good thing for the honest tax-payer. In fact, everything that Shepherd Kilkenny did was for the benefit of the Geronimo tax-payers, and Yuma was crowded with convicts to prove that he knew his business. That was what he was hired for—to convict law-breakers—and if he let a single guilty man escape he was recreant to his trust. Kilkenny had a stern sense of civic responsibility—he got them, if it took a leg.

There had been a time when Shepherd Kilkenny believed that every man who had the price was innocent. That was when, as a rising young lawyer, he was defending criminals in the courts; and he threw so many miscreants loose and made such a show of old Trusdale, the former district attorney, that the community in a burst of popular indignation put the old man out and gave Kilkenny his job. At this Kilkenny brought out an entirely new set of adjectives, changed all his fixed opinions in a day, and, being now in a

position to square himself with the real Law, which holds that a man is guilty until he can prove himself innocent, he became a flaming sword against the transgressor. His conversion also enabled him to slough off the old pathetic-fallacy line of talk that he had been called upon to use in pleading before a jury and to adopt a more dignified and denunciatory style, a cross between Demosthenes and the Daniel Webster school. The prosperous life of a politician jollied him up a bit, too; he developed a certain sardonic humor in the handling of unfavorable witnesses, and got off a good one every once in a while for the benefit of the reporters. But there was one thing that Shepherd Kilkenny could not tolerate, and that was another rising young criminal lawyer trying to defeat the ends of justice and beat him out of his job. Yuma was full of Pete Monats who had fallen victims to this feud, and Pecos resolved to plead his case himself before he would take chances on a sucking lawyer.

It was while he was in this vacillating mood and feeling mighty lonely and lost to the world that he heard late one night a familiar whoop from the jag-cell, followed by a fiery oration in the vernacular. It was Angy, down for his periodical drunk, and Pecos could hardly wait to clasp him by the hand. It was a peculiar thing about Angevine Thorne—the drunker he got the more his language improved, until in the ecstasy of his intoxication, he often quoted Greek and Latin, or words deemed by local wiseacres to be derived from those sources. Drink also seemed to clarify his vision and give him an exalted sense of truth, justice, and man's inhumanity to man. It had been his custom in the past at this climacteric stage of inebriation to mount upon some billiard table or other frangible piece of saloon furniture and deliver temperance lectures until removed by the police. But times had changed with Geronimo's champion booze-fighter and in his later prepossessions he grappled with the mighty problem of wealth and its relation to the common man. There are some hard sayings in the *Voice of Reason* against the privileged classes, but they are all nicely considered in relation to the libel law, whereas Angy had no such compunctions. Having spent all his money for drink and received a jail sentence for life, the law had no further terrors for him and he turned his eloquence loose. It was a wild rave when Pecos heard it, and grew progressively more incoherent; but as he lay in his bunk and listened to the familiar appeals a thought came to Pecos like an inspiration from the gods—why not turn that stream of eloquence into

profitable channels and make Angy his advocate? There was not a voter in Geronimo who did not know Babe Thorne and love him for his foolishness—the life sentence which he suffered for conspicuous drunkenness was but a token of their regard, placing him above the level of common ordinary drunks even as his eloquence placed him above the maudlin orators with whom the saloons were crowded. He was a character, a standing jest—and Arizona loves a joke better than life itself. Above all, Angy was a good fellow—he could jolly the district attorney and make him laugh! They would win their case and then he would be free—free! Pecos could not sleep from thinking of it and he begged Bill Todhunter, as a special favor, to bring Babe in from the jag-cell at once.

"What's the matter?" inquired Bill casually, "are you gettin' interested in yore girl? I hear Old Crit has cut you out."

"Crit be damned!" cried Pecos. "Have I ever asked you for anything before? Well then, throw him in here, can't you?"

The deputy did as he was bid and went away—he was not of a prying disposition and Pecos had saved him a lot of trouble. There had never been an alcalde like Pecos Dalhart. No, indeed—it would rustle them to get one half as good when he went his way to Yuma.

The conference with Angevine Thorne, attorney-at-law, was long, and private, but as Angy sobered up he beheld greater and greater possibilities in the matter; and when he went away he assured his client that within the calendar month he should step forth a free man—free as the prairie wind. He was confident of it, and upon his departure Pecos gave him fifty dollars to use with José Garcia. Also he was to find Old Funny-face, the mother of the calf, if it took the last cow in the barn. But all was to be conducted quietly, very quietly, for if Old Crit ever got wind of any defence he would frame up a case to disprove it. To be sure, José Garcia was in debt several hundred dollars to Isaac Crittenden—and afraid of his life, to boot—but for fifty dollars cash Joe would swear to anything, even the truth; and if by so doing he got Pecos out—why, there was a man who could protect him against Crit and all his cowboys. It looked good to Angevine Thorne and, as an especial inducement to Joe to stay put, he swore by all the saints to have his life if he dared to go back on his agreement. Then, very quietly, he

instituted a search for Old Funny-face and, having located her up the river with a tame bunch of cattle, he came away, knowing full well that he could produce her at the proper time. There would be a little surprise coming to Isaac Crittenden when he went to court next week and, being actuated by no feeling of false delicacy in dealing with such a reptile, Angy went back to work for him and watched the conspiracy breed.

It was a constant source of surprise to the transient public to observe how a man with so many disagreeable qualities kept the same men working for him year after year; but to those who knew Crittenden well it was as natural as hunger and thirst. In fact, it was intimately connected with hunger and thirst. Any time that Joe Garcia wanted to quit he could just tell his wife and six children to stop eating, tie his things in a handkerchief, and walk down the road. José was ruled by hunger and the slavish peon spirit of a Mexican—Babe and the cowboys were ruled by thirst. No matter how many times he had been fired or quit, a man could always get a chance to work for nothing with Crit; and so long as he spent all his money at the store Crittenden was even willing to pay him good wages in the busy season. Babe was the easiest mark he had as far as money was concerned, and, being so well educated withal, the illiterate cowman found him almost indispensable as a letter-writer and book-keeper. So far, so good—but why did Babe, with his classical education, insist upon donating his services to a man who treated him so despitefully? Ah, it was a hard question, but even a vagrant likes to have some place, no matter how unlovely, which can take the place of a home. Yet for the six long months that Pecos had lain in jail Angy had had reason enough for staying—Marcelina needed him, and she needed him bad.

Every month seemed to add some new grace and beauty to the daughter of José Garcia—the primitive beauty that seems to bud like a flower beneath the Arizona sun; the beauty of the young Apache maiden and the slender *Hija de Mejico*, that comes to its perfection so soon and is doomed so often to fade away prematurely before the lust of men. In another place Marcelina's face might have been her fortune, but at Verde Crossing it was her bane. The cowboys lingered about the store to gaze upon her boldly or stepped outside to intercept her on her way; and Joe, poor tortoise-brained Joe, did not live up to his full duty as a father. The *Texano* cowboys were a fierce breed and impatient of restraint—also they held a Mexican to be

something below a snake. He was afraid of them, though he rolled his fat eyes and frowned—but most of all he feared Old Crit. Ah, there was a man to fear—Ol' Creet—and he held him in his power, him and all his little flock. Day after day, as the summer passed, the Boss kept after him, and but for his woman he would have given way. How she did curse him, the *Señora*, his *mujer*, and how she did curse Crit—but most of all she cursed their poverty, which exposed her child to such a fate. Even the few *pesos* to send her to the school were lacking—Marcelina must stay at Verde Crossing and fight against her fate. There was only one man who would stand by them, and that was Babe. Only for the one time in six months had Babe been drunk, and that was when Crit was away. He had left them his pistols at parting and hurried back, after he had seen Pecos in the jail. Yet after all it was worth the risk, for Babe had brought back money—yes, money, fifty dollars in bills—and he offered it all to José if he would stand up and tell the truth. What a coward—that foolish José! For a week he weighed his manhood in the balance and was afraid—and then Babe had given him two drinks, quick, and made him promise, and given the money to his *mujer*. *Madre de Dios*, it was accomplished, and the day that Crittenden and his cowboys rode away to Geronimo to testify before the grand jury the Señora Garcia followed far behind in the broken-down buggy, and when the town was dark she drove in and left Marcelina at the Sisters' school.

CHAPTER XIX

THE LAST CHANCE

THERE was a hot time in old Geronimo on the night that Ike Crittenden and his cowboys rode in, and in spite of everything he could do three of them wound up in the jag-cell before morning. Nevertheless he had plenty of witnesses and to spare, for the grand jury merely went over the same evidence that had been taken before the magistrate and handed down an indictment against Pecos Dalhart, accusing him of feloniously and unlawfully marking, branding, or altering the brand on one neat animal, to wit, a spotted calf, belonging to Isaac Crittenden of Verde Crossing. It was almost the first case on the calendar and the arraignment was set for the following Monday. Then Pecos Dalhart, defendant, slouched gloomily back to his cell and sat down to await the issue. The howls of Angevine Thorne, blended with the hoarse protests of Crit's cowboys, floated in to him from the jag-cell and he knew his faithful attorney had not deserted him, but what a broken reed was that to lean on when his whole future hung in the balance! Even as he listened he had an uneasy fear that Angy was giving the whole snap away to the drunken cowboys and once more he begged Bill Todhunter to throw Babe into the tanks where he could look after him. It was at this time, when things were at their worst, that Shepherd Kilkenney, the district attorney, came down to look into his case and find out how he would plead.

He was a very cautious man, Mr. Kilkenney, and he never had a man indicted unless he held his written confession or knew beyond the peradventure of a doubt that he could convict him. In the case of Pecos Dalhart he had been unusually careful, for it was the first case of cattle stealing to come before him and most of his constituents were in the cow business; therefore, not to take any chances, he had followed it from the magistrate's court to the secret chambers of the grand jury, and now he was going after a confession. He came with gifts, a brace of cigars, but Pecos was well supplied with cigarette makings and waved them courteously aside. Then they got down to business.

"Mr. Dalhart," began Kilkenny, "I'm the district attorney and I've come to talk over your case with you—in a friendly way, you understand. Ah—have you engaged an attorney? No? Well, that is hardly necessary, you know, but if you do call in a counsellor I am sure he will advise you to plead 'Guilty.' Ahem—yes, indeed. There's many a man stole his calf and got away with it, but you were caught in the act and observed by twenty witnesses. Not the ghost of a chance, you see; but if you plead 'Guilty' and throw yourself upon the mercy of the court it will cut your sentence in half, probably more. I'm a friend of yours, Mr. Dalhart, and I've often heard the sheriff speak of your exemplary character as a prisoner. All these things are appreciated, you know, and I—well, I'll do all I can for you with the judge. Now all you have to do is to sign this little paper and—"

"I'm sorry," said Pecos, thrusting the paper back, "and I sure take it kindly of you, Mr. Kilkenny, but I can't plead 'Guilty'—not to please nobody—because I'm *not* guilty."

"Not guilty!" The district attorney laughed. "Why, you were taken in the act, Mr. Dalhart. I never saw a more conclusive line of evidence."

"Well," grumbled Pecos, "if I was guilty I'd sure plead 'Guilty,' you can bank on that. But this blankety-blank, Ike Crittenden, has jest framed up a lot of evidence to railroad me to the pen—and them cowboys of his would swear to anything for the drinks. You wouldn't soak a man on evidence like that, would you, Mr. District Attorney?"

"I'd soak him on any evidence I could get," responded the district attorney succinctly. "You know my reputation, Mr. Dalhart—I convict every man that pleads 'Not guilty!'"

"But s'pose he isn't guilty!" cried Pecos.

"I convict him anyway!" replied the district attorney. "Are you going to sign this, or are you going ahead like a damned fool and get the limit in Yuma?"

"I won't sign it," said Pecos firmly.

"Very well," responded Kilkenny, closing his little book with a snap. He rose to his full height and pursed his lips ominously. "Very well, Mr. Dalhart!" he said, nodding and blinking his eyes. "Very well, sir!" Then he

retired, leaving so much unsaid that it threw Pecos into a panic. In a very real picture he could see himself sitting in the shade of a big adobe wall and making State's-prison bridles for life. He could see the guards pacing back and forth on top of the bastions and Pete Monat holding one end of a horse-hair strand while he swung a little trotter and twisted the loose hairs into the other end, forever and forever. It was awful. The full sense of his impending doom rushed in upon him and he laid hold of the sodden Babe who was maundering about the revolution, and shook him frantically.

"My God, Angy," he cried, "wake up and do something! Fergit about the common people and do something for *me*! Fergit that you ever had any principles and he'p me fight that low-lived dastard or I'll go to Yuma for life!"

"The voice of the people shall rule in the land!" pronounced Angy oracularly.

"To hell with the people!" yelled Pecos. "It's the People that's tryin' to send me up! Do you want me to git twelve years for brandin' that spotted calf? Well, wake up, then, and git yore wits to work!"

Angy woke up, by degrees, but his wits would not work. The ecstasy of intoxication was past and his mind was a legal blank for the remainder of that day. The day was Friday, and Pecos had to plead on Monday—"Guilty" or "Not guilty." "Guilty" meant six or eight years in prison; "Not guilty" meant twelve years—or freedom. It was a gamble, but he would risk it if Angy would remain sober enough to talk. His only chance of freedom lay in his friend's misdirected eloquence, and when Babe was entirely himself Pecos backed him up into a corner and talked to him with tears in his voice.

"Never, never, never—" began Angy, holding up his hand to swear; but Pecos stopped him with a sign.

"Nothing like that, Pardner," he said. "You been breakin' that pledge for forty years. Jest look me in the eye now and promise me you won't tech a drop until I'm free."

"All right, Pecos," agreed Angy, "I'll do it, I won't touch a drop till you're free."

"And when I'm free," continued Pecos, "I'll stake you to a drunk from which Geronimo will sure date time. Now let's git down to business."

The details of that campaign against the People were talked over in hushed secrecy and when on Monday morning Pecos appeared before the stern judge to plead, Angevine Thorne stood just within the rail, shuffling his worn hat nervously.

"I will call the case of the People versus Pecos Dalhart," said the judge. "Pecos Dalhart, to the charge of grand larceny do you plead 'Guilty' or 'Not guilty'?"

"'Not guilty,' Your Honor!" responded Pecos.

"The defendant enters a plea of 'Not guilty,'" observed the judge impassively. "Are you represented by counsel, Mr. Dalhart?"

"No, Your Honor," replied Pecos.

"You understand, do you not, that in case you are unable to employ an attorney the court will appoint one to advise you, free of charge?"

"Yes, Your Honor," answered Pecos, "but if it's all the same to you I'd rather not have a lawyer. I'd like to ask a favor, Judge, if you don't mind. The reason I don't want an attorney appointed is that I know very well none of these lawyers around here can stand up to the district attorney when it comes to a case of law"—here Kilkenny smiled grimly to himself and glanced at Mr. Baker of the *Blade*—"but at the same time, Judge, I do want some one to speak for me, and I'm goin' to ask you to appoint my friend Mr. Thorne, back there, as my counsellor."

"Mr. Thorne?" inquired the judge, and as Angy stepped forward, smirking and bowing, a slight smile broke up the fine legal lines on the judicial brows. At no time was Angy over-fastidious about his attire, and a night in jail, particularly in the jag-cell, is warranted to spoil the appearance of the finest suit of clothes that was ever made. Angy's clothes were old and worn; his shirt was greasy around the neck, and his overalls, hanging loosely about his hips, piled up in slovenly rolls above his shoe-tops; his hat, from much fanning of open fires, was grimed with ashes and whitened with splashes of sour dough, and his shiny bald head and red face told all too

plainly the story of his past. In the titter that followed his announcement he stood silent, rolling his bloodshot eyes upon the audience, but as the grinning bailiff smote the table for order he turned with the dignity of an orator and addressed the judge.

"Your Honor," he said, beginning the set speech which he had prepared, "I am not unaware that this request on the part of the defendant is a little irregular, but if the court please I should like to state the reasons—"

"Just a moment!" cut in the district attorney brusquely. "Your Honor, I object to this man being appointed to the position of counsellor on the ground that he is not a duly-licensed attorney and therefore not competent to practise in this court."

"As I am tendering my services without hope of compensation," observed Angy suavely, "and also without submitting briefs or other legal papers, I hope that the court will overlook this trifling irregularity. The law referred to by the district attorney, as applied to this case, was intended solely to protect the defendant in his rights, the inference being that no one not a regularly practising attorney is competent to adequately represent the defendant against the learned district attorney"—Angy bowed to that gentleman—"but at the same time, Your Honor, I wish to say that in days gone by I have stood before the bar"—the bailiff struck his gavel to quiet the sudden laughter—"I have stood before the bar of justice, Your Honor, and I have stood there, sir, not as Angevine Thorne, the drunkard, but as a regular practitioner in that court. I submit, Your Honor, that I am fully qualified, both by past experience and present information, to represent Mr. Dalhart in this unfortunate case!"

A murmur of astonishment passed around the room at this revelation of his past; for while Angevine Thorne had been about Geronimo, drunk and sober, for over twenty years, he had never referred except in the vaguest terms to the life which he had left behind. It struck wonder into the breasts of the court-room bums, many of whom had shared the jag-cell with him in times past, and Mr. Baker of the *Blade* sank down into a seat and began to write hurriedly upon his pad; but Shepherd Kilkenny, with a sudden premonition of what Angy's "present information" might lead to, did not

yield himself to any such puny emotion as surprise. He was a fighter, and a sure-thing fighter to boot.

"Your Honor!" he cried, "I wish to protest most—"

"Objection is overruled!" interposed the judge. "I see no reason why Mr. Thorne should not conduct this case if the defendant so wishes, and the clerk will enter him accordingly. Would Wednesday be too soon for you to prepare your argument, Mr. Thorne? Is it satisfactory to you, Mr. Kilkenny? Very well, then, I will set the case for Wednesday, the eighth of October, at ten A. M. Call the next case, Mr. Bailiff!"

The bailiff called it, still smiling, and in the pause half the occupants of the court-room boiled out onto the court-house lawn and gave vent to their pent-up emotions. Babe Thorne was going to buck Kilkenny and plead a case in court! He would make an impassioned appeal and raise Cain with Ike Crittenden's witnesses—it would be an event never to be forgotten! Still laughing they scattered through the town, and soon men came hurrying forth from the different saloons to verify the report; they gathered in a crowd by the sheriff's office and, as the word spread that it was true, gangs of cowboys and men on livery-stable plugs went dashing down the streets, whooping and laughing and crying the news to their friends. It was a new excitement—something doing—and the way an Arizona town will take on over some such trifling event is nothing short of scandalous. Within two hours the leisure male population of Geronimo was divided into two hostile camps—those who would get Babe drunk before the event and those who would keep him sober and have him take a fall out of Kilkenny. On the one side it was argued that, unless he was properly ginned up, Babe would not do justice to the occasion; but cooler heads won on the proposition that the judge would bar him if he got drunk and hollered, and a committee of prominent citizens was organized to protect him from himself.

Being quick to see the news value of the incident the *Blade* printed an exclusive interview with Angevine Thorne—formerly of the Kentucky bar—and announced that the trial would be covered in detail by "our Mr. Baker." A series of Communications, written under pressure in the card-rooms of various casinos, expressed the greatest indignation at the "dastardly attempt of a certain interested party to debar Mr. Thorne from the

trial," and the hope that this exhibition of professional jealousy would receive the rebuke it so richly deserved. In an editorial the *Daily Blade* spoke at some length of the rare eloquence of "our gifted fellow-citizen, Colonel Thorne," and felicitated Alcalde Dalhart upon the acumen he had shown in retaining counsel. Everything goes, in a case like that, and the *Blade* played it up to the limit.

As night came on a select circle of visitors gathered at the county jail to witness the kangaroo trial of two more of Crit's cowboys who had unwittingly placed themselves in the power of Pecos Dalhart. The summary punishment of the first three—the ones who had occupied the jag-cell with Angevine Thorne—had been heralded far and wide as an example of poetic justice, but the grim humor of this last arraignment set the town in an uproar. Within two days these same booze-fighting cowboys would appear against him in the upper court, but of that event Pecos Dalhart took no thought and he kangarooed them to a finish. It was good business, as the actors say, and won him many a friend, for Arizona loves a sport—but after they had been spread-eagled over a chair and received twenty blows for contempt of court, the cowboys were ready to take their oath to anything. That was it—Pecos might win the hearts of the people and still go down before the law and the evidence. Only two things cheered him on—Angy and Bill Todhunter had gone up the river for Old Funny-face, and Joe Garcia was in town. After Crit had sworn himself into perdition over the calf they would spring Funny-face on him—Mexican brands and all—and show that he was a liar. Then José Garcia would testify to the sale of Funny-face and her calf and the rest would go off in a canter. It was a pleasing dream, and Pecos indulged it to the full, for it was the only hope he had. But the next morning he was nervous.

It was the day before his trial and even his six months in jail had not taught him to be patient. As soon as the cells were unlocked he began to pace up and down the corridor like a caged lion, scowling and muttering to himself. To the stray visitors who dropped in he was distant but civil, as befits a man who must act his part, but all the time a growing uneasiness was gnawing at his heart and he looked past them to the outer door. Hours dragged by and his uneasiness changed into despair; he hurled himself upon his bunk and was lying with his haggard face to the bars when the jail deputy entered and gazed in upon him curiously.

"They's a lady out here to see you," he whispered, laying his finger along his nose with an air of roguish secrecy, "shall I bring her in? She's got something she wants to give you!"

A vision of the unbalanced females who had been bringing flowers to a murderer came over Pecos and he debated swiftly with himself whether to accept this last humiliation or plead a sudden indisposition.

"She's been waiting around all the morning," continued the deputy. "Kinder shy, I reckon—shall I bring 'er in? She's a Mex!"

A Mex! The word shocked Pecos like a blow; it made him glad, and then it made him angry.

"Well, what's the matter with a Mex?" he demanded sharply. "Ain't a Mexican got no rights in this dam' jail? I guess she's as good as any white woman—show her in!"

He waited in palpitating silence, and when the soft rustle of skirts sounded down the corridor his heart stopped beating entirely. Then Marcelina pressed her face against the screened bars and gazed wistfully into the darkened cell. She had grown taller since he last saw her and her dark eyes had taken on a look of infinite melancholy; the rare promise of her youth had flowered suddenly in his absence and she stood before him a woman. Often in his dreams he had thought of her, but always as the black-eyed girl, saucy and fugitive as a bird, who had bewitched him with her childish graces; now she peered in at him through the prison bars with the eyes of a woman who has suffered and found her soul. For a moment she gazed into the darkness, and then she drew back involuntarily. The Pecos she had known was a grown-up boy, grim and quick in speech but full of the reckless fire of youth; a dashing cowboy, guiding his horse by a touch of the hand and riding, riding, always. Here was a hard-faced man, pale and bowed by confinement, and his eyes were like a starved animal's. She started and bit her lip.

"Are you Paycos?" she asked timidly.

The bitterness of his fate swept over Pecos at the words—he looked down at his crumpled clothes, his outworn boots, and faded shirt and rumbled in his throat.

"No, Marcelina," he said, "I'm only a caged wolf—a coyote that the vaqueros have roped and tied and fastened to a tree. I'm a hard-looker, all right—how'd you come to find me?"



She laid a brown hand against the bars as if in protest and motioned him nearer the screen

She laid a brown hand against the bars as if in protest and motioned him nearer the screen.

"I have only been in town four days," she said hurriedly. "All summer I was shut up at Verde, and Ol' Creet—ah, that bad, ba-ad man! My mother took

me to school the day he come to Geronimo. I am 'fraid, Paycos—but this morning I run away to see you. The seesters will be hunt for me now. Look Paycos"—she thrust her hand into the bosom of her dress and drew forth a small bundle, wrapped in a blue silk handkerchief—"Cuidado, be careful," she whispered; "when I keess you good-bye at the door I weel put thees een your hand—ssst!" She turned and looked up the corridor where the deputy was doing the Sherlock. He was a new man—the jail deputy—just helping out during the session of the court and correspondingly impressed with his own importance. Nothing larger than a darning-needle could be passed through the heavy iron screen, but all the same he kept his eye on them, and when he saw the quick thrust of her hand all the suspicions of the amateur sleuth rushed over him at once.

"Hey! What's that?" he demanded, striding down the run-around. "What you got hid there, eh?" He ogled Marcelina threateningly as he stood over her and she shrank before his glance like a school-girl. "Come, now," he blustered, "show me what that is or I'll take it away from you. We don't allow anything to be passed in to the prisoners!"

"She can't pass nothin' through here!" interposed Pecos, tapping on the screen. "You haven't got nothin', have you, Marcelina?"

"Well, I saw her hide something blue in her dress just now," persisted the jailer, "and I want to see it, that's all!"

"It was—it was only a handkerchief!" sobbed Marcelina, clutching at her breast. "No, no! Eet is mine—he—he geev it to me! You can not—" she choked, and backed swiftly toward the door. Like a panther Pecos whipped out of his cell and sprang against the corridor grating, but she was gone. The deputy made a futile grab as she darted away from him and sprang after her, but she swung the great door in his face and sped like a deer down the hall. The next moment she was gone, leaving Pecos and the deputy to have it out together.

"Aha!" cried the deputy vengefully, "you will try to smuggle things in, will you? I'll report this matter to Mr. Morgan at once!"

"Well, report it, then, you low-flung hound!" wailed Pecos, "report it, and be damned to you! But if I was outside these bars I'd beat you to death for

this!" They raged up and down the grating, snarling at each other like dogs that fight through a lattice, and even when Boone Morgan came and called them down Pecos would not be appeased.

"He scairt my girl away!" he cried, scowling menacingly at the raw deputy. "She come to give me a handkerchief and he jumped at her. I'll fix him, the dastard, if ever I git a chance!" And so he raged and stormed until they went away and left him, mystified. To Boone Morgan it seemed as if his alcalde was raising a row out of all proportion to his grievance, but that was because Pecos could not explain his woes. Marcelina had promised to kiss him good-bye, and the damned deputy had intervened!

CHAPTER XX

THE LAW AND THE EVIDENCE

AS the rising sun poured its flood of glorious light into the court-house square and the janitor, according to his custom, threw open the courtroom doors to sweep, there was a scuffling of eager feet from without and the swift-moving pageantry of the Dalhart trial began. A trio of bums who had passed the night *al fresco* on the park benches hustled past the astounded caretaker and bestowed themselves luxuriously on the front seats. As the saloons opened up and discharged their over-night guests others of the brotherhood drifted in and occupied the seats behind, and by the time the solid citizens of Geronimo had taken care of their stock, snatched their breakfasts, and hurried to the scene there was standing room only in the teeming chamber of justice. Only the special venire of jurymen took their time in the matter and the sweating bailiff had to pass them in through the side door in order to get them seated inside the railing. At nine-thirty Boone Morgan brought in the defendant, freshly shaven and with his hair plastered down across his forehead, and sat with him near the jail door. It was all in the line of duty, but there were those who remarked that it was right clever of old Boone to throw in that way with his jail alcalde. Some people would have put the nippers on him for the cow-thief that he was, and chained him to a deputy. Behind them, the cynosure of all eyes, sat the counsel for the defendant, Angevine Thorne, his round baby face illuminated with the light of a great resolve. On that day he was going to save his friend from prison or climb spider-webs in the attempt. A hush fell over the assembly as the hour of trial drew near and only the gaunt figure of Shepherd Kilkenny, pacing up and down before the empty jury-box, suggested the battle that was to come. The rest was as pathetic as the Angelus.

The soft morning breeze breathed in through the windows and as Pecos glimpsed the row of horses tied to the hitching rack he filled his lungs deep with the sweet air, and sighed. The invalid who has been confined to his room longs vaguely for the open air, but to the strong man of action, shut up

for months in a close cell, the outer world seems like a dream of paradise and he sees a new heaven in the skies. In the tense silence of waiting the tragedy in his face afflicted the morbid crowd and made them uneasy; they shifted their eyes to the stern, fighting visage of the district attorney and listened hopefully for the clock. It struck, slowly and with measured pauses, and as the last stroke sounded through the hall the black curtain behind the bench parted and the judge stepped into court. Then instantly the sheriff's gavel came down upon the table; the People rose before the person of the Law, and in sonorous tones Boone Morgan repeated the ancient formula for the calling of the court.

"Oyez! Oyez! Oyez! The District Court of Geronimo County is now in session!"

The judge threw off his robes and sat down and as the audience sank back into their crowded seats he cast one swift, judicial glance at the defendant, the clerk, and the district attorney and called the case of Pecos Dalhart, charged with the crime of grand larceny. With the smoothness of well-worn machinery the ponderous wheels of justice began to turn, never halting, never faltering, until the forms prescribed by law had been observed. One after the other, the clerk called the names of the forty talesmen, writing each name on a slip of paper as the owner answered "Here"; then at a word from the judge he placed the slips in a box and shook out twelve names upon the table. As his name was called and spelled each talesman rose from his seat and shambled over to the jury-box, turning his solemn face from the crowd. They held up their right hands and swore to answer truthfully all questions relative to their qualifications as jurors, and sat down to listen to the charges; then, after reading the information upon which the accusations were based, the district attorney glanced shrewdly at the counsel for defendant and called the first jurymen. The battle had begun.

The first talesman was a tall, raw-boned individual with cowman written all over him, and the district attorney was careful not to ask his occupation. He wanted a jury of twelve cowmen, no less; and, knowing every man in the venire either by sight or reputation, he laid himself out to get it.

"Mr. Rambo," he began, "do you know the defendant in this case?" He indicated Pecos Dalhart with a contemptuous wave of the hand, and Mr.

Rambo said he did not. "Know anything about this case?"

"Only what I read in the papers," responded the cowman dryly.

"You don't believe everything you read, do you, Mr. Rambo? If you were passed for a juror you wouldn't let anything you have read influence your mind, if it was proven that the defendant was guilty, would you?"

"No, sir!"

"If I should prove to your satisfaction that the defendant here"—another contemptuous wave of the hand—"had wilfully and feloniously stolen and branded the animal in question, what would your verdict be—'Guilty' or 'Not guilty'?"

"W'y—er—'Guilty'!"

"Pass the juror!" snapped the district attorney, and then he looked at the counsel for the defendant as if imploring him not to waste any of the court's valuable time.

"Mr. Rambo," began Angy, singing the words in a child-like, embarrassed manner, "you are engaged in the business of raising cattle, are you not?"

The district attorney winced at this, but Angevine Thorne did not take advantage of his discovery. He also wanted a jury of twelve cowmen, though he did not show his hand.

"Very good," he observed, "and I suppose, Mr. Rambo, that you are acquainted with the law in this case which makes it a felony for any man to mark or brand the stock of another man? Very good. Have you any prejudice against that law, Mr. Rambo? You believe that it should be enforced impartially, do you not—against the rich as well as the poor? Very good. Pass the juror!"

For a moment Shepherd Kilkenny could hardly believe his ears. The drift of every one of the questions had led naturally up to a challenge and yet at the end Angy had passed the juror. He glanced quickly at the innocent face of his opponent, opened his mouth to speak, and then hurried on with his examination. The second man was interested in the cattle business, too; and when Angy passed him the judge felt called upon to speak.

"You know, do you not, Mr. Thorne," he said, "that it is your privilege to excuse any juror whose occupation or condition of mind might indicate a prejudice against your client?"

"Yes, indeed, Your Honor," replied Mr. Thorne, suavely, "but I have perfect confidence in the integrity of the two gentlemen just passed. I feel sure that they will do full justice to Mr. Dalhart."

"Very well, then," said His Honor, "let the examination proceed!"

With all the address of a good tactician who sees that his opponent has mistaken a two-spot for an ace, Shepherd Kilkenny flew at his task, but each time that Angy passed one of his cowmen he paused just the fraction of a second, glanced apprehensively about the room, and rubbed his chin thoughtfully. The defence was playing right into his hand, but he didn't know whether he liked it or not. When it came to the peremptory challenges he excused two health-seekers and a mining man, but Thorne did not challenge a man. Once more the clerk shook the names out of his box and within half an hour the district attorney had the very jury he wanted—every man of them interested in the cattle business and ready to cinch a rustler as they would kill a rattlesnake. It seemed almost too good to be true. Even the staid judge was concerned, for he had a sober sense of justice and Angy's appointment had been slightly irregular; but after a long look at that individual he motioned for the trial to proceed. The evidence was all against the defendant anyway, and he could cut off a year or two on the sentence to make amends.

"Swear the jurors!" he said, and holding up their rope-scarred hands and looking coldly across the room at the alleged rustler, the twelve cowmen swore to abide by the law and the evidence and a true verdict find. Then the district attorney pulled his notes from his hip-pocket as a man might draw a deadly weapon and began his opening statement to the jury.

"Your Honor and gentlemen of the jury," he said, "in the case of the People of the Territory of Arizona *versus* Pecos Dalhart, we shall show that on or about the eighth day of May the said Pecos Dalhart did wilfully, feloniously, and unlawfully pursue, rope, and brand a calf, said calf being the property of Isaac Crittenden of Verde Crossing, Territory of Arizona; that the said Pecos Dalhart was arrested and, upon being taken before a magistrate, he

did plead 'Not guilty' and was held for the grand jury, which handed down an indictment against him; that upon being arraigned before the judge he did plead 'Not guilty' and was remanded for trial upon the crime charged in the indictment, to wit:—that he did feloniously and unlawfully mark, brand, or alter the brand on a neat animal, to wit, one red-and-white spotted calf, said calf being the property of Isaac Crittenden, of Verde Crossing, Territory of Arizona, contrary to the form, force, and effect of the statute in such case made and provided and against the peace and dignity of the People of the Territory of Arizona. Mr. Crittenden, will you please take the stand!"

All the other witnesses had been relegated to the jury-room, where they would be beyond the sound of the court, but being the complaining witness Isaac Crittenden was entitled to remain and he sat just behind the district attorney, fumbling with the high collar that galled his scrawny neck and rolling his evil eye upon the assemblage. As he rose up from his place and mounted the witness stand a rumble of comment passed through the hall and the sheriff struck his gavel sharply for order.

"Swear the witness, Mr. Clerk," directed the judge, and raising his right hand in the air Isaac Crittenden rose and faced the court, looking a trifle anxious and apprehensive, as befits one who is about to swear to a lie. Also, not being used to actions in court, he entertained certain illusions as to the sanctity of an oath, illusions which were, however, speedily banished by the professional disrespect of the clerk. Reaching down under the table for a penholder which he had dropped and holding one hand weakly above his head he recited with parrot-like rapidity the wearisome formula of the oath:—"Do you solemnly swear that the evidence you are about to give in the case of the People *versus* Pecos Dalhart shall be the truth, the whole truth, and nothing but the truth, s'elpyougod?"

Crittenden blinked his good eye and sat down. There was nothing very impressive about the proceeding, but all the same he was liable for perjury.

"Calling your attention to the eighth day of May, of the present year, where were you on that day, Mr. Crittenden?" It was the first gun in the real engagement and the surging crowd about the doors quit scrouging for a view and poised their heads to listen. The voice of the district attorney was

very quiet and reassuring, and Isaac Crittenden, taking his cue, answered with the glib readiness of a previous understanding.

"I was gathering cattle with my cowboys near my ranch at Verde Crossing."

"And upon returning to your home did you encounter any one in the deep *arroyo* which lies above your ranch?"

"Yes, sir," responded Crittenden, "I come across Pecos Dalhart."

"Is this the gentleman to whom you refer?" inquired Kilkenny, pointing an accusing thumb toward Pecos. "Very good, then—you identify the defendant. Now, Mr. Crittenden, what was the defendant doing at that time?"

"He had a spotted calf of mine strung out by a little fire and was alterin' the brand with a runnin' iron." Old Crit's eye wandered instinctively to Pecos Dalhart as he spoke and gleamed with a hidden fire, but his face was as expressionless as a death mask.

"I offer the following animal in evidence," said the district attorney, beckoning toward the side door. "Bring in the exhibit!" And as Bill Todhunter appeared, sheepishly leading the spotted calf, which had been boarded all summer in town, he threw out his hand dramatically and hissed:

"Do you identify this animal? Is that the calf?"

"I do!" responded Crit. "It is the same animal!"

"That's all!" announced Kilkenny, and with a grin of triumph he summoned the hawk-eyed jurymen to inspect the brand. There it was, written on the spotted side of the calf, in ineffaceable lines—the plain record of Pecos Dalhart's crime, burned with his own hands. Across the older scar of Isaac Crittenden's brand there ran a fresh-burnt bar, and below the barred Spectacle was a Monkey-wrench, seared in the tender hide. To a health-seeker or a mining man the significance of those marks might be hidden, but the twelve cowmen on the jury read it like a book. Only one thing gave them a passing uneasiness—Crit's Spectacle brand was very evidently devised to burn over Pecos Dalhart's Monkey-wrench, but that was beside the point. They were there to decide whether Pecos Dalhart had stolen that

particular spotted calf, and the markings said that he did. By that broad bar which ran through the pair of Spectacles he deprived Isaac Crittenden of its ownership, and by the Monkey-wrench burned below he took it for his own. All right then,—they retired to their seats and Angevine Thorne took the witness.

They faced each other for a minute—the man who had committed a crime and covered it, and the man who had sworn to expose his guilt—and began their fencing warily.

"Mr. Crittenden," purred Angy, "you are in the cattle business, are you not? Yes, indeed; and about how many cattle have you running on your range?"

"I don't know!" answered Crittenden gruffly.

"At the last time you paid your taxes you were assessed for about ten thousand, were you not? Quite correct; I have the statement of the assessor here to verify it. Now, Mr. Crittenden, kindly tell the jury what per cent of those cattle are calves?"

"I don't know," replied Crit.

"No?" said Angy, with assumed surprise. "Well then, I hope the court will excuse me for presuming to tell a cowman about cows but the percentage of calves on an ordinary range is between fifty and sixty per cent. So, according to that you have on your range between five and six thousand calves, have you not? Very good. And now, Mr. Crittenden, speaking roughly, about how many of your cattle are solid color?"

"I don't know!" scowled Crit.

"You don't know," repeated Angy gravely. "Very good. I wish the court to note that Mr. Crittenden is a very poor observer. Now, Mr. Crittenden, you have stated that you do not know how many cattle you have; nor how many of said cattle are calves; nor how many of said calves are solid color or spotted. Will you kindly inform the court, then, how you know that the calf which has been produced in evidence is yours?"

"Well—" said Crittenden, and then he stopped. The one thing which he was afraid of in this trial was about to happen—Angy was going to corner him

on the maternity of the calf, and that would make him out a cow-thief. The district attorney scowled at him to go ahead and then, in order to cover up the failure, he leapt to his feet and cried:

"Your Honor, I object to the line of questioning on the ground that it is irrelevant, incompetent, and immaterial!"

"If the court please," spoke up Angevine Thorne, "the witness has positively identified the calf in question as his own, although it is a matter of record that he possesses four or five thousand calves, all of which have been born within the past year and over half of which are spotted. It is the purpose of the defence to prove that this calf does not belong to the witness; that it was the property of Pecos Dalhart at the time the alleged crime was committed, *and that it had been previously stolen by Isaac Crittenden!*"

As he shouted these words Angy pointed an accusing finger at Old Crit, who started back like a man who had been struck, and while the clamor of deputies and bailiffs filled the court-room they stood there like the figures in a tableau, glaring at each other with inextinguishable hatred.

"Order in the court! Order in the court!" cried the bailiffs, beating back the crowd, and when the assembly had been quieted the judge motioned to Angy to proceed.

"Objection is overruled," he said, and bent his dark brows upon Isaac Crittenden. "Let the witness answer the question."

"Well, the calf had my brand on it," responded Crittenden defiantly, and then, egged on by Angy's sarcastic smile, he went a step too far. "Yes, and I know him, too!" he blurted out. "I'd know that calf among a thousand, by them spots across his face."

"Oh, you would, would you?" spoke up Angy quickly. "You have a distinct recollection of the animal on account of its peculiar markings then; is that right? Very good. When did you put your brand on that calf, Mr. Crittenden?"

"Last Spring," replied Crittenden grudgingly.

"You know the law regarding the branding of calves," prompted Angy.
"Was the calf with its mother at the time?"

"It was!"

"And did she bear the same brand that you burned upon her calf?"

"She did!"

"Any other brands?"

"Nope!"

"Raised her yourself, did you?"

"Yes!" shouted Crittenden angrily.

"That's all!" said Angy briefly, and Isaac Crittenden sank back into his chair, dazed at the very unexpectedness of his escape. It was a perilous line of questioning that his former roustabout had taken up, leading close to the stealing of Upton's cattle and the seizing of Pecos Dalhart's herd, but at the very moment when he might have sprung the mine Angy had withheld his hand. The gaunt cowman tottered to his seat in a smother of perspiration, and Shepherd Kilkenny, after a moment's consideration, decided to make his hand good by calling a host of witnesses.

They came into court, one after the other, the hard-faced gun-men that Crittenden kept about his place, and with the unblinking assurance of men who gamble even with life itself they swore to the stereotyped facts, while Angy said never a word.

"The People rest!" announced the district attorney at last, and lay back smiling in his chair to see what his opponent would spring.

"Your Honor and gentlemen of the jury," began Angevine Thorne, speaking with the easy confidence of a barrister, "the prosecution has gone to great lengths to prove that Pecos Dalhart branded this calf. The defence freely admits that act, but denies all felonious intent. We will show you, gentlemen of the jury, that at the time he branded the animal it was by law and right his own, and that during his absence it had been feloniously and unlawfully

branded into the Spectacle brand by the complaining witness, Isaac Crittenden. Mr. Dalhart, will you please take the stand!"

Awkward and shamefaced in the presence of the multitude and painfully conscious of his jail clothes, Pecos mounted to the stand and turned to face his inquisitor. They had rehearsed the scene before—for Babe Thorne was not altogether ignorant of a lawyer's wiles—and his examination went off as smoothly as Kilkenny's examination of Crit, down to the point where Pecos was rudely pounced upon and roped while he was branding his spotted calf. Then it was that Angevine Thorne's voice began to ring like a trumpet, and as he came to the crucial question the audience stood motionless to listen.

"Now, Mr. Dalhart," he clarioned, "you say that you purposely barred the Spectacle brand upon this calf and burned your own brand, which was a Monkey-wrench, below it? What was your reason for that act?"

"My reason was that the calf was mine!" cried Pecos, rising angrily to his feet. "When I first come to Verde Crossing I bought an old spotted cow and her calf from José Garcia and branded them with a Monkey-wrench on the ribs—I kept her around my camp for a milk cow. That first calf growed up and she was jest comin' in with another one when I went to New Mexico last Fall. Well, when I came back last Spring I hadn't got into town yet when I come across my old milk cow with her ears all chopped up and her brand burned over and this little calf, lookin' jest like her, with a Spectacle brand burned on his ribs. That made me mad and I was jest ventin' the calf back to a Monkey-wrench when Crittenden and his cowboys jumped in and roped me!"

"You say that you bought the mother of this calf from José Garcia?"

"Yes, sir! I paid him twenty-five dollars for the cow and five dollars for the first calf."

"What were the brand and markings of this cow at the time you bought her?"

"She had a Mexican brand, like an Injun arrer struck by lightning, on her left hip, a big window or *ventano* in the left ear, and a slash and underbit in the right. Garcia vented his brand on her shoulder and I run a Monkey-

wrench—that's my regular, registered brand—on her ribs, but I never changed her ear marks because I kept her for a milk cow anyway."

"Your Honor," interposed Kilkenny, rising with a bored air to his feet, "I object to this testimony on the ground that it is irrelevant, incompetent, and immaterial. I fail to see the relation of this hypothetical milk cow to the question before the court."

"The cow in question was the mother of the calf which my client is accused of stealing!" cried Angy, panting with excitement as he saw the moment of his triumph approaching. "She was sold to the defendant and he had a legal right to her offspring. Can a man steal his own property, Your Honor? Most assuredly not! I wish to produce that cow in evidence and I will bring competent witnesses to prove that she belongs by rights to Pecos Dalhart. Bring in the exhibit, Mr. Todhunter!"

He waved his hand toward the side door and as Kilkenny saw the *coup* which had been sprung on him he burst into a storm of protest. "I object, Your Honor!" he shouted, "I object!"

"Objection overruled!" pronounced the judge. "Let the cow be brought in as quickly as possible and after the examination of the exhibit we will proceed at once to the argument."

He paused, and as the crowd that blocked the side door gave way before the bailiffs, Old Funny-face was dragged unwillingly into court and led to the sand boat to join her calf. At the first sight of her dun-colored face and spotted neck every man in the jury-box looked at his neighbor knowingly. They were cowmen, every one of them used to picking out mothers by hair-marks in the corral cut, and Old Funny-face was a dead ringer for her calf. Even to the red blotch across his dun face the calf was the same, and when Funny-face indignantly repulsed its advances they were not deceived, for a cow soon forgets her offspring, once it is taken away. But most of all their trained eyes dwelt upon the mangled ears, the deep swallow fork in the left and the short crop in the right, and the record of the brands on her side. There was the broken arrow, just as Pecos had described it, and the vent mark on the shoulder. It would take some pretty stiff swearing to make them believe that that Spectacle brand on her ribs had not been burnt over a Monkey-wrench. It was Angy's inning now, and with a flourish he called

Pecos to the stand and had him identify his cow; but when he called José Garcia, and José, gazing trustfully into Angy's eyes, testified that she was his old milk cow and he had, *sin duda*, sold her to Pecos Dalhart for twenty-five dollars, the self-composed Kilkenny began to rave with questions, while Crittenden broke into a cold sweat. Not only was the case going against him, but it threatened to leave him in the toils. It was too late to stop Garcia now—he had said his say and gone into a sullen silence—there was nothing for it but to swear, and swear hard. Kilkenny was on his toes, swinging his clenched fist into the hollow of his hand and raging at the witness, when Crittenden suddenly dragged him down by the coat-tails and began to whisper into his ear. Instantly the district attorney was all attention; he asked a question, and then another; nodded, and addressed the court.

"Your Honor," he said, "I will excuse the witness and ask to call others in rebuttal. Will you take the chair, Mr. Crittenden!"

Old Crit advanced to the stand and faced the court-room, a savage gleam in his eye.

"Do you recognize this cow, Mr. Crittenden?" inquired Kilkenny mildly.

"Yes, sir, I know her well. She's an old gentle cow that's been hangin' around my corral for years. I took her from Joe Garcia, last Spring, for some money he was owin' me."

"What?" yelled Angy, springing up from his chair, "do you mean to say—"

"I object, Your Honor!" clamored Kilkenny desperately. "I object! The witness is mine!"

"The People's witness," ruled the judge; "let the examination proceed."

"Is this cow the mother of the calf in question—do you identify her as the mother of this calf?"

"I do!" repeated Crittenden solemnly. "And you can summon any of my cowboys—they'll swear to her."

"Take the witness!" said Kilkenny, leering at Angevine Thorne, and in spite of all Angy could do Crit stuck to his story, word for word. One after the

other his cowboys took the chair, glanced at their boss, and identified the cow and calf. Kilkenny had won, and before Babe Thorne could collect his wits he plunged into his closing argument.

"Gentlemen of the jury," he cried, "the people of Geronimo County are looking to you to-day to vindicate justice in the courts. It is the shame of Geronimo County—spoken against her by all the world—that not a single cattle-thief has ever been convicted in her courts. Men have been tried; their guilt has been demonstrated to a moral certainty; but the evidence has been insufficient, and they have escaped. Gentlemen of the jury, a year and a half ago the defendant in this case came to Geronimo County without a cent; he went to work for Mr. Crittenden, who kindly took him in; but within a few months, gentlemen of the jury, Pecos Dalhart left the service of his benefactor and moved to Lost Dog Cañon. Six months later, gentlemen, when the sheriff at the risk of his life rode into his guilty hiding-place, Mr. Dalhart had *two hundred head of cattle* shut up in a secret pasture! *Two—hundred—head*, gentlemen; and he defied the sheriff of this county *to even collect the taxes* upon those cattle! Gentlemen of the jury, I ask you, Where did this man get those two hundred head of cattle? Did he bring them with him? No, for the evidence shows that he rode in alone. Did he buy them? No, for he had no money. Gentlemen of the jury, that man who sits before you *stole* those cattle, and he does not dare to deny it!"

He paused and looked about the court-room, and a great hush came upon the entire assembly. Every man in the crowded standing room stood silent and the surge of those without the doorway died down in a tremor of craning heads. Kilkenny had won—but he had not finished. Point by point he went over the chain of his evidence, testing every link to prove that it was true, and then in a final outburst of frenzy he drove the last point home.

"Gentlemen of the jury," he said, in closing, "the defendant stands before you, convicted by his own words. He acknowledges that he branded the calf; he acknowledges that he set at defiance all law and justice and robbed the man who had befriended him—and what is his defence? That Isaac Crittenden had robbed him of his cow! Isaac Crittenden, who has cattle on a thousand hills! A man known, and favorably known, in this community for twenty years! Gentlemen, I ask of you, whose word will you take in this matter? The word of this self-confessed cattle-rustler and his Mexican

consort or the word of Isaac Crittenden of Verde Crossing? Gentlemen of the jury, it has been the shame of Geronimo County for many years that this practice of rustling cattle has never received its fitting rebuke. It has been the shame of Arizona that the rights of the cattle men, the men who dared the Indians and braved the desert and made this country what it is, have never been protected. You have seen what this negligence has brought to our near neighbor, Tonto County—a cattle war in which over fifty men have given up their lives; a beautiful cattle country, devastated of all its flocks and herds. It has brought death, gentlemen, and destruction of property, and—*bankruptcy*! Gentlemen, I ask you for a verdict of 'Guilty'!"

He sat down, and Angevine Thorne rose to his feet, bewildered. The speech which he had prepared to save his friend was forgotten; the appeals which he could have made were dead. He gazed about the court and read in every eye the word that was still ringing in his ears: "Guilty!" And yet he knew that Pecos was not guilty. Cattle he had stolen, yes—but not the cattle in court. They, of all the animals he had owned, had been honestly acquired; but Old Crit had sworn him into prison. It was right, perhaps, but it was not Law—and it was the law that held him. As he looked at the forbidding faces before him, each one hard and set by the false words of Crit and Shepherd Kilkenny, the monstrous injustice of the thing rushed over him and he opened his lips to speak. It was a conspiracy—a hellish combination of lawyers and the men they served, to beat the poor man down. The old rage for the revolution, the rage which he had put so resolutely from his heart, rushed back and choked him; he scowled at the sneering district attorney and Old Crit, humped over in his chair; and turned to the glowering audience, searching with the orator's instinct for a single friendly face. But there was none; every man was against him—every one! He raised his hand to heaven—and stopped. There was a struggle in the doorway—a bailiff, tall and burly, was thrusting back a young girl who struggled to get free—and then like a flash of light Babe Thorne saw her face, the wild-eyed, piteous face of Marcelina!

"Here!" he commanded, leaping upon a chair and pointing with an imperious hand. "Let that girl in! Your Honor, I demand that that girl be let in! This trial is her trial, Your Honor—she is Marcelina Garcia, my friend's affianced bride!" In that single moment he saw it—the last desperate chance to save his friend—a sentimental appeal to the jury! How many men have

been saved from prison and gallows and the just punishment of their crimes by such a ruse! Given the aged mother, the despairing wife, the sweetheart, clinging to his hand, and all the thunderings of Jove will fail of conviction. The law and the evidence are nothing; Reason is dethroned and Justice tips her scales to send the prisoner free. With a surly frown the bailiff let go his hold and like a hunted creature that flees from the memory of her pursuers Marcelina ran panting down the aisle and threw herself at the feet of the just judge.

"Oh, Meester," she cried, holding up her hands, "do not send Paycos to preeson! Look, here are the ears of Old Funny-face, his cow, what Ol' Creet stole while he was gone! Paycos did not steal the cow—no, no! He buy heem from my papa, and this is *mi padre's* mark!" She unwound the blue silk handkerchief that encased them and thrust into the hands of the astounded judge—*two ears!* With eager glances she held them up—the keys which Old Crit had cut from Funny-face's ears on the day that he stole Pecos's herd—and thrust her brown finger through the Mexican *ventano*. Then, impatient of her English, she snatched them back and, scampering back to where Old Funny-face still stood on the sand boat, she fitted the crop and swallow-fork back into the mangled ears.

"Look! Look!" she cried, "these are the dried-up ears what Ol' Creet cut from my Paycos's cow, that day when he stole his cattle. My leetle brothers bring them from the corral to play with and I hide them, to show to Paycos. Meester, he is bad man, that Creet! He—he—"

She faltered and started back. There before her, humped over in his chair, sat Isaac Crittenden, and his one eye covered her like the evil glare of a rattlesnake.

"*Santa Maria!*" she gasped. "*Madre de Dios! Creet!*" And with a scared sob she turned and ran to Babe. It was an affecting scene, but Babe did not overdo it.

"Your Honor," he said, speaking over her bowed head with portentous calm, "I wish to offer these two ears in evidence as an exhibit in this case. One of them, you will notice, is cut in a swallow-fork and exhibits, above, the *ventano* which defendant testified belonged to the mother of this calf; the other is cropped short and exhibits the slash and Mexican *anzuelo*; both of

them show the peculiar red and white spots which gave to the cow in question the name of Funny-face. After the jury has inspected the exhibit I will ask that Marcelina Garcia be sworn."

It was not a long speech and had nothing of dramatic appeal; and yet as it came out, this was Angevine Thorne's closing speech. When he saw how the pendulum had swung, Shepherd Kilkenny, the fighting district attorney, went into a black, frowning silence and refused to speak to Old Crit; but as the judge began his instructions to the jury he suddenly roused up and beckoned to Boone Morgan. They whispered together while the law was being read and then the sheriff went over and spoke a few words to Pecos Dalhart.

"Sure!" nodded Pecos, and at the signal Shepherd Kilkenny rose quickly to his feet.

"Your Honor," he said, bowing apologetically to the judge, "in consideration of the evidence which has just been introduced I wish to withdraw my former request to the jury, and I now ask for a verdict of 'Not guilty.'" He sat down, and a hum went up from the crowded court-room like the zooning of swarming bees. There was something coming—something tremendous—that they all knew; and when the verdict was given not a man moved from his place. Then Boone Morgan rose up from beside the district attorney and touched Isaac Crittenden on the shoulder. There was nothing rough about it, and Crittenden followed without a word, but the significance was plain. The man who had sworn others into prison had done as much for himself, and it would take a Philadelphia lawyer to turn him loose. He had sworn that the cow was his, and the ear keys showed that he lied. Swallow-fork and crop, and Mexican marks above, and Old Funny-face, wagging her mangled ears in court! There had never been a cow-thief convicted in the Geronimo courts, and Old Crit would spend every cent he had to keep out of jail, but if Shepherd Kilkenny could not get him on evidence like that, then tyranny is dead and the devil has lost his claws.

CHAPTER XXI

NEVER AGAIN

THE District Court of Geronimo County broke up like a stampede of cattle when Ike Crittenden was placed under arrest, and in the general scramble Angevine Thorne was seized by a band of determined men and rushed to the Big Adobe bar. The committee on public entertainment had set their hearts on a speech, and they would not be denied. Meanwhile Pecos Dalhart was borne off as inexorably in the other direction by Boone Morgan and Shepherd Kilkenney, and not until he had sworn to the complaint and testified against Old Crit before the J. P. would they let him go his way. First on the programme which he had mapped out for himself was a big feed at Hung Wo's restaurant, and Charley Hung Wo was so happy over his release that he refused to accept a cent. That was right friendly of Charley and shows what a good fellow a Chink can be—give him a chance. It cheered Pecos up, and after he had got a new outfit of clothes all around and scoured the jail smell out of his skin he began to feel like a white man again. The hot sunshine felt good on his cheek, the wind smelled sweet, and he liked the clump of board sidewalks beneath his feet; but at the same time he was lonely. Somehow he did not seem to fit into this great outer world any more—there was no place to go and nothing to do; that is, nothing but throw in with Babe Thorne and get drunk, and even that had its disadvantages.

Lighting a cigar and wandering down the street Pecos pondered upon the matter and finally decided to hunt up Angy and see if anything could be done. Taking advantage of the general preoccupation he managed to fight his way through the crowded portals of the Big Adobe Saloon unobserved and there, surrounded by the heaving multitude, he stopped to listen. A committee of citizens had just presented Colonel Thorne with the keys of the town, appended to which as a further token of regard was a drink check on the Big Adobe—good for life. Mr. Thorne had evidently taken a few of the drinks already and mellowed to the mood of his admirers; for when Pecos arrived he was midway in a flamboyant speech of declination.

"No, gentlemen," he was saying, "much as I appreciate the honor conferred upon me by your kind invitation, I can never accept the nomination for such an office. What, shall men say in times to come that Angevine Thorne, after freeing his friend from the clutches of the law, turned traitor to the common people and became the district attorney? Never! Nay, if I were prosecuting attorney I would prosecute the judge and the jury, the rich corporations and cattle kings, and all who make the law a scourge for the poor and lowly. Never, never, never, shall the word go forth—"

That was enough for Pecos—he saw that he was not needed. True, he had promised Angy a drink from which Geronimo should date time, but the citizens' committee had taken all that off his hands. Pulling his hat down over his eyes he struggled out into the deserted street and looked around like a lost dog—then with a sigh he turned and made his way back to the jail. It was the only home he had now. On one shoulder he bore a box of apples—a last gift for the boys inside—and as he stepped in through the sliding doors and saw them come swarming out from their cells to greet him he regarded them almost with affection. For six months he had been alcalde in that jail, laying down the law with fist and strap, and now he must resign. As his sheriff attended to the distribution of the fruit Pecos stepped into his little cell, shoved the worn Bible into his pocket and got his strap; then, after a hurried word with Boone Morgan through the bars, he mounted on the alcalde's chair and addressed them.

"Boys," he said, "luck come my way and I'm goin' to leave you. You'll have to have a new alcalde now and I only ask one thing before I go. They're goin' to throw a big, tall, hump-backed dastard in here pretty soon. He's only got one eye, but he's got lots of money and I want you to kangaroo him to the limit, and give him *this* for contempt of court!" He raised the broad strap in the air. "Will you do it?" he yelled, and when they answered with a roar he hurled it into their midst.

"All right then; fight for it, you tarriers!" he shouted, "*and the one that gits it is alcalde!*"

They fought, and when it was over Pecos Dalhart stepped out of jail, a free man. It is a fine thing to be free, but freedom carries with it certain obligations, one of which is to keep out of jail. Pecos glanced into the jag-

cell in passing and decided not to get drunk, at any rate. Then he went down to the office with Boone Morgan.

"Well, Pecos," said that genial official, shaking out a bunch of keys, "you might as well take your property envelope and what money you got left—unless you expect to be back soon," he hinted. "By the way, what you goin' to do after you sober up?"

"Well, I dunno," said Pecos, scratching his head. "I could go back up on the Verde, now Old Crit's in jail, and burn them Spectacle cows he stole off of me back into a Hock-sign—two bars and another circle would make a three-ball sign, all right—but I've quit that line of business. Look at Crit!"

"Oh!" grunted the sheriff, "think you'll quit rustlin', eh? But say, how come you ain't drunk already? I had a little business I wanted to talk over with you, but I thought I'd better wait till you blew off."

"Nope, no more booze for me!" declared Pecos virtuously. "You fellers never git me in *here* no more. You come so dam' near sendin' me to Yuma for somethin' I never done that I'm goin' to be mighty careful what I *do*!" He paused and gazed sombrely out of the window and a new courage—the courage of clean clothes and freedom—drew him on to speak. "This is a hell of a thing you call the law," he observed, "now ain't it? How much of a show does a poor man git in your courts with Shepherd Kilkenny ravin' for his life? I'm goin' to git on a good horse and ride, and ride, and ride, until I git away from that dastard; that's what I'm goin' to do!"

The sheriff had laid out the familiar property envelope and was twirling the combination of his safe, but at this last outburst he stopped short.

"You'll do nothing of the kind," he said shortly. "I been tryin' for two years to get Ike Crittenden for stealing cows, and I want you to stay in Geronimo County until we get him *cinched*! Are you goin' to do it?"

For an instant Pecos met his eye defiantly; then the memory of other cows that he *had* stolen rose up in his mind and he nodded his head.

"Sure!" he said, "I'll be your star witness."

"All right then," grumbled the sheriff, turning morosely away from his safe, "but bein' as you seem to be making medicine against the law again I jest want to ask you a few questions. You say the law is a hell of a thing—and it is; I admit it. And the poor man don't have no show against it—that's a fact, too. But here's what I want to know—what you goin' to do about it? How long do you think it will take to change the law so a poor man will have an even break with a rich one, the way things are goin'? 'Bout a thousand years, hey? Well, I call that conservative. But say, do you expect to live that long? No? Think you can hurry it up any by buckin' against the law? Well, what you goin' to do about it—spend your time in jail?"

"Well, it ain't right," muttered Pecos, "that's all I got to say. Jest look at your dam' law!" he cried, the memory of his wrongs getting the better of him; "look at *me*! Kep' six months in jail before I could git a trial—d' you call that right?"

"Nope," said Boone Morgan calmly, "but what you goin' to do about it? I mean *you*, now! D' you think you can mend matters any by gettin' thrown into jail? I got my eye on you, and that's just where you'll land. Sure, the law is rotten, but what you goin' to *do* about it?"

The coldblooded insistence of the man jangled on Pecos's nerves and made him pass it back.

"Well, what *can* a feller do?" he demanded savagely.

"Keep out of trouble—don't break the law—that's all!" rumbled the sheriff, fixing him with his masterful eyes. He turned slowly back to the combination of his safe, twirling the tumblers while the wisdom of his words went home; then he threw open the door, drew out a large official envelope, and balanced it in his hand. "Well," he challenged, looking Pecos in the eye, "ain't that right?"

Pecos pondered upon it a minute longer, much as he had studied on Crit's proposition that it is no crime to rob a thief, and right there the cause of the revolution lost another fervent disciple.

"By God, Boone," he said, "I believe you're right!"

"W'y, of course I'm right!" cried Morgan, slapping him jovially on the back; "and there's a thousand dollars to prove it!"

He tore open the official envelope and thrust a sheaf of bills into the astonished cowboy's hands.

"Money talks," he observed sententiously, "only there're some people have such a roarin' in the ears they can't hear it. This roll of velvet is what's left from the tax sale of those Monkey-wrench cows I seized, and it says that you are a capitalist, with all the errors and prejudices of your class. Just put that into cows now, and look after 'em, and you'll forget all about the revolution."

"Hell's fire!" ejaculated Pecos, shutting down on the money. "You don't mean to say this is all mine?"

"That's right. I tried to give it to you last Fall, up there at Verde Crossing, but you heard the wind in your ears, clean to New Mexico. Guess your conscience was kind of troublin' you, hey?"

"Umm," answered Pecos absently. He was studying on how to spend his money. For several minutes he sat thumbing over the new bills and gazing out into the twilight; then he jammed them deep into his pocket and started for the door.

"Hey! Where you goin'?" shouted Boone Morgan, as he clattered down the steps. "Come back here and get this property envelope! You must've had an idee," he ventured, as Pecos reappeared.

"Yep," said Pecos, "an' a good one." He dumped the contents of his envelope on top of the desk and regarded the articles fixedly. There, sparkling brightly as when he first bought it, was the eighteen-carat, solitaire-diamond engagement-ring.

"That ought to come in pretty handy now," suggested the sheriff, pointing to it with the butt of his cigar.

"Nope," replied Pecos noncommittally, "too late now."

"That's bad," commented Boone Morgan sociably. "Mighty pretty girl, too. All off, hey?"

Pecos looked him over carefully, grunted, and started for the door.

It would be difficult to tell just how it happened so, but as Pecos Dalhart, with a firm resolve in his heart, dashed down the steps once more, his eye caught a darker shadow in the dusky corner of the jail and he stopped dead in his tracks. Then as his vision became adjusted to the twilight he walked slowly over toward the corner, where a woman's figure was crouched against the wall. It was Marcelina, worn, draggled, and tear-stained, and as she gazed up at him from beneath her tangled hair his heart stopped in its beat.

"Ah, Paycos," she murmured brokenly, "where can I go? The seesters lock me up in hi-igh room, for run away to see you. Two day I cry *todo-tiempo* because you no have ears—then I jump out of window to breeng them. Now I can not go home. An', Paycos," she rose up suddenly and moved toward him, "I am 'fraid! I am 'fraid Ol' Creet will catch me!"

"Crit nothin'!" said Pecos scornfully. "Come on over here—what's the matter with you?" He gathered her into his arms and held her close a minute.

"You ain't scairt now, are you?" he inquired tenderly.

"A-ah, no!" sighed Marcelina, nestling against his breast.

"Well, gimme that kiss, then," said Pecos.

There were no wedding bells at Pecos Dalhart's marriage—that takes too much time—but the county clerk gave him a license right away, Boone Morgan went along for a witness, and the J. P. did the rest. It was the same J. P. who had held Pecos for cattle-rustling, but what of that? Upon such an occasion the past is forgotten and we care little what hand it is that confers our greatest happiness. Pecos pressed a ten-dollar bill into the guilt-stained palm of the magistrate and then, while his roll was out, he peeled off another bill and handed it to Boone Morgan.

"Give that to Angy when he comes to," he said, "and tell 'im to hunt me up. Don't know where we'll live yet, but it wouldn't be like home without old Babe—would it, Marcelina?"

"Ah, Paycos," breathed Marcelina, gazing up at him with adoring eyes, "you are such a *goo-ood* man!"

The rustler glanced doubtfully over his shoulder at Boone Morgan, grinned, and passed out into the starlit night.

"All right, Chiquita," he said. "You got a monopoly on that idee—but whatever you say, goes!"

THE END



Transcriber's Note:

- Minor typographical errors have been corrected without note.
- Word combinations that appeared with and without hyphens were changed to the predominant form if it could be determined, or to the hyphenated form if it could not.
- Mid-paragraph illustrations have been moved between paragraphs and some illustrations have been moved closer to the text that references them. The paginations in the list of Illustrations were adjusted accordingly.
- Punctuation and spelling were made consistent when a predominant form was found in this book; otherwise they were not changed.
- Corrections in the spelling of names were made when those could be verified. Otherwise the variations were left as they were.
- Other corrections:
 - Page 51: slahsh changed to slash.
 - Page 71: ailes changed to bailes (open house day and night, *fistas* and *bailes*).
 - Page 284: plead changed to pled (the petty criminals pled guilty).
- Error uncorrected: Page 233: stlong ("make me hip stlong.")
- Variation unchanged: Joe Garcia and José Garcia.

*** END OF THE PROJECT GUTENBERG EBOOK THE TEXICAN ***

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